JUDICIARY OF TANZANIA

A BENCH BOOK FOR JUDGES IN TANZANIA

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Republic v. Kusenta Chaligana and Another [1978] LRT n.11

Republic v. Mgema Manyanya [1992] TLR 48

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Republic v. Solile d/o Maganga [1974] TLR 2

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Sekunda Mbwambo v. Rose Ramadhani [2004] TLR 439

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T

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Tanzania Telecommunications Company Limited v. Timothy Lwoga [2002] TLR 150

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Tongeni Naata v. Republic [1991] TLR 54

Tulubuzya Bituro v. Republic [1982] TLR 264

Tuungane Workshop v. Audax Kamala [1978] LRT 21

Tuwamoi v. Uganda [1967] EA 84, 87

Theobald Charles Kessy and Vicent Mwaikambo v. Republic [2000] TLR 186

Thuway Akonaay v. Republic [1987] TLR 92

Twaha Elias Mwandungu v. Republic, Criminal Appeal No. 80 of 1995, CAT (unreported)

Twaha Ali and 5 Others v. Republic, Criminal Appeal No. 78 of 2004, CAT (unreported)

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Violet Ishengoma Kahangwa and Jovin Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa [1990] TLR 72

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Wallii Abdallah Kibutwa, Kadili Ahmad and Happy Balama v. Republic, Criminal Appeal No. 127 of 2003, CAT (unreported)

Wambura Nyango v. Republic [1990] TLR 38

William Rajabu Mallya and Two Others v. Republic [1991] TLR 83

Wolfgango Dourado v. Toto Da Costa, Civil Appeal No. 102 of 2002, CAT (unreported)

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Yakobo Magoiga Gichere v. Peninah Yusuph, Civil Appeal No. 55 of 2017, CAT (unreported)

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Zee Hotel v. Minister of Finance [1997] TLR 265

FOREWORD

The role and responsibility of the Court in the handling of both Civil and Criminal disputes depends on the efficiency of the judicial system and the proper functioning of the legal framework for resolving disputes, in particular. There must therefore exist effective legal institutions, good governance and a conducive environment in which disputes are resolved. To complement these factors, it is significant that competent and efficient institutional arrangements exist to facilitate the effective management of disputes. Moreover, an independent, credible, skilled, well-resourced, and efficient judicial system is indispensable if it is to properly discharge its duty in the resolution of disputes timeously and effectively.

As part of the efforts to make justice delivery more efficient and to enable judges to perform their judicial work professionally and diligently, the Judiciary of Tanzania has developed this Bench Book for Judges. Indeed, the establishment, maintainance, enhancement of a strong, reliable, competent and efficient judicial system is linked to the professional training and appraisal of judicial officers.

The effort to produce a Bench Book of this kind underscores the fact that the work of a judge comprises of a significant portion of the work load of our courts. The Bench Book also underscores the fact that to do their work

well, courts need Judges with highest ethical standards and extensive legal knowledge and unique skills in decision making.

This Bench Book therefore aims primarily at providing judicial officers particularly judges, with a tool that will assist them in acquiring the necessary skills, knowledge and proficiency that would give them a better understanding of legal issues, interpretation of laws, the functions of the Judiciary and methodologies deployed in the adjudication of disputes and decision making.

I wish to congratulate the Team which developed this Bench Book, and put together the relevant materials on the law, procedure and best practices of adjudication of cases in Tanzania. This crucial information on fundamental issues on some areas of the law and procedure will now be available to the judges and certainly to other judicial officers. I also wish to recognize the role of the Institute of Judicial Administration Lushoto for coordinating the project from its inception stage up to its final stage.

I hope that all Judges will diligently study and apply the best practices contained herein alongside other relevant Acts, regulations and decided cases.

Professor Ibrahim Hamis Juma

Chief Justice

Dar es Salaam, December, 2018

ACKNOWLEDGMENT

Many people and partners have contributed significantly in a variety of ways in the realization of the project for the production and ultimate publication of this Bench Book for Judges in Tanzania.

This publication is the product of the joint efforts of the Judiciary of Tanzania and the Team, comprising retired and serving Justices, Judges, Registrars and Judges' Assistants on behalf of the Judiciary of Tanzania who worked tirelessly to produce the work within strict time limits.

I wish to express my profound gratitude to the Hon. Mr. Justice Mohamed Chande Othman, the retired Chief Justice of Tanzania for conceiving the idea of developing this Bench Book. Through his efforts he requested and encouraged the Hon. Mr. Justice Harold Reginald Nsekela and the Honourable Mr. Justice January Henry Msoffe, Justices of Appeal (both retired) to be part of the Team to undertake this assignment which was actively coordinated by the then Principal of the Institute of Judicial Administration Lushoto (currently the Justice of Appeal) the Hon. Mr. Justice Ferdinand.L.K. Wambali. The team was strongly facilitated by the Secretariat comprising of Hon. Mr. Dunstan Beda Ndunguru, Deputy Registrar and the Private Secretary to the Principal Judge and Mr. Jovine Costantine Bishanga, a Judge's Assistant. There is no doubt that through encouragement and support to the Team and enthusiasm for continuing judicial education by the Judiciary made this project possible. Indeed, the passion by the leadership to see this project succeed was extraordinary.

I wish further to acknowledge with sincere gratitude, the support of the Chief Justice Hon. Prof Ibrahim Hamis Juma who has seen through this project to its completion, recognizing it as an important tool through which justice will be enhanced through improved jurisprudence and clearly laid out court processes.

I am grateful to all Justices of Appeal and Judges of the High Court who actively participated in the review and validation exercises. Their efforts and contributions were very essential to the production of this Bench Book.

My immense gratitude goes to the Institute of Judicial Administration Lushoto for the tireless efforts of coordinating the project from the beginning to the end and the World Bank for financial and technical support without which this publication would not have been completed. Asante sana.

Eliezer Mbuki Feleshi (PhD)

Principal Judge

Dar es Salaam, December, 2018

ABBRREVIATIONS

AC - Appeal Cases

AG - Attorney General

CAP - Chapter

CAT - The Court of Appeal of Tanzania

CPC - The Civil Procedure Code

CPA - The Criminal Procedure Act

DPP- Director of Public Prosecutions

EA -The East Africa

EACA - The East Africa Court of Appeal

EACJ - The East African Court of Justice

EALR - East Africa Law Reports

GN - Government Notice

HC- High Court

HCD - High Court Digest

JAA- Judiciary Administration Act

JSC- Judicial Service Commission

KB - King's Bench

LRT - Law Reports of Tanzania

MCA - The Magistrates' Courts Act

PC - Primary Court

PH- Preliminary Hearing

QB - Queen's Bench

R.E - Revised Edition

RM - Resident Magistrate

UKHL - United Kingdom House of Lords

TEA- The Evidence Act

TLR - Tanzania Law Reports

CHAPTER ONE

CIVIL PROCEDURE AND PRACTICE

1.0: Basic Principles of Administration of Justice

- Article 107A (2) of the Constitution of the United Republic of Tanzania cap 2 provides:

  (2) Katika kutoa uamuzi wa mashauri ya madai na jinai kwa kuzingatia sheria, Mahakama zitafuata kanuni zifuatazo, yaani–

  (a) kutenda haki kwa wote bila ya kujali hali ya mtu kijamii au kiuchumi;

  (b) kutochelewesha haki bila sababu ya kimsingi;

  (c) kutoa fidia ipasayo kwa watu wanaoathirika kutokana na makosa ya watu wengine, na kwa mujibu wa sheria mahususi iliyotungwa na Bunge;

  (d) kukuza na kuendeleza usuluhishi baina ya wanaohusika katika migogoro.

  (e) kutenda haki bila ya kufungwa kupita kiasi na masharti ya kiufundi yanayoweza kukwamisha haki kutendeka.

1.1: Overriding objective

- It is also important to note that overriding objective has been introduced in the Civil Procedure Code, Cap 33 by the Written Laws

(Miscellaneous Amendmnent) (No. 3) Act, 2018 [Act No. 8 of 2018] in which sections 3A and 3B have been added in the Code:

"3A. Overriding Objective of Act

(1) The overriding objective of this Act shall be to facilitate the just, expeditious, proportionate and affordable resolution of civil disputes governed by this Act.

(2) The Court shall, in the exercise of its powers under this Act or the interpretation of any of its provisions, seek to give effect to the overriding objective specified in subsection (1).

3B. Duty to uphold objective

(1). For the purpose of furthering the overriding objective specified in section 3A, the Court shall handle all matters presented before it with a view to attaining the following-

(a) just determination of the proceedings;

(b) efficient use of the available judicial and administrative resources including the use of suitable technology; and

(c) timely disposal of the proceedings at a cost affordable by the respective parties.

(2) A party to proceedings or an advocate for such a party shall have a duty to assist the Court to further the overriding the objective of this Act and, to that effect, to participate in the processes of the Court and to comply with the directions and orders of the Court.

(3) The Chief Justice may make rules for better carrying out the provisions of sections 3A and 3B."

- In **Yakobo Magoiga Gichere v. Peninah Yusuph**, Civil Appeal No. 55 of 2017, CAT (unreported) the Court stated as follows at page 13 of the typed judgment:

  With the advent of the principle of Overriding Objective brought by the the Written Laws (Miscellaneous Amendments) (No. 3) Act, 2018 [ACT NO. 8 of 2018] which now requires the courts to deal with cases justly, and to have regard to substantive justice; section 45 of the Land Disputes Courts Act should be given more prominence to cut back on over-reliance on procedural technicalities.

1.2: Jurisdiction

- Jurisdiction is a fundamental matter to be considered by a Judge before hearing a matter. Before assuming powers to entertain any matter, Judges are supposed to ensure that they have requisite Jurisdiction to do so.
- Jurisdiction is a creature of statutes. In **Shyam Thanki and Others v. New Palace Hotel** [1972] HCD n. 92 it was held:

  "All the courts in Tanzania are created by statutes and their jurisdiction is purely statutory. It is an elementary principle of law that parties cannot by consent give a court jurisdiction which it does not possess."

- Article 108 (1) and (2) of the Constitution of the United Republic of Tanzania Cap 2 states:

(1) Kutakuwa na Mahakama Kuu ya Jamhuri ya Muungano (itakayojulikana kwa kifupi kama "Mahakama Kuu") ambayo mamlaka yake yatakuwa kama ilivyoelezwa katika Katiba hii au katika Sheria nyingine yoyote.

(2) Iwapo Katiba hii au Sheria nyingine yoyote haikutamka wazi kwamba shauri la aina iliyotajwa mahsusi litasikilizwa kwanza katika Mahakama ya ngazi iliyotajwa mahsusi kwa ajili hiyo, basi Mahakama Kuu itakuwa na mamlaka ya kusikiliza kila shauri la aina hiyo. Hali kadhalika, Mahakama Kuu itakuwa na uwezo wa kutekeleza shughuli yoyote ambayo kwa mujibu wa mila za kisheria zinazotumika Tanzania, shughuli ya aina hiyo kwa kawaida hutekelezwa na Mahakama Kuu.

Isipokuwa kwamba masharti ya ibara hii ndogo yatatumika bila ya kuathiri mamlaka ya Mahakama ya Rufani ya Tanzania kama ilivyoelezwa katika Katiba hii au katika sheria nyingine yoyote.

- **Note that:**

  Section 2 of Judicature and Application of Laws Act, Cap 358 R.E 2002 provides that the High Court have full jurisdiction over civil matters.

- **Note further that:**

  Section 9 of the Written Laws (Miscellaneous Amendments) Act No. 2 of 2016 amended section 13 of the CPC Cap 33 R.E 2002 by introducing a proviso to the effect that the provision of section 13

shall not be construed to oust the general jurisdiction of the High Court.

- **Note also that:**

  The High Court has Territorial, original, appellate, review and revision Jurisdictions.

1.2.1: Jurisdiction in general

Fanuel Mantiri Ng'unda v. Herman M Ngunda, Civil Appeal No. 8 of 1995, CAT (unreported)

> "The jurisdiction of any court is basic, it goes to the very root of the authority of the court to adjudicate upon cases of different nature….the question of jurisdiction is so fundamental that courts must as a matter of practice on the face of it be certain and assured of their jurisdictional position at the commencement of the trial. It is risky and unsafe for the court to proceed on the assumption that the court has jurisdiction to adjudicate upon the case."

Consolidated Holding Corporation Ltd v. Rajani Industries Ltd and Bank of Tanzania, Civil Appeal No. 2 of 2003, CAT (unreported)

M/S Tanzania China Friendship Textile Co. Ltd v. Our Lady of the Usambara Sisters [2006] TLR70

> "The issue of jurisdiction of the Court can be raised at any stage even before an appellate court. It is the substantive claim and not general damages which determine the pecuniary jurisdiction of the court."

1.2.2: Inherent jurisdiction

Inherent powers of the court are generally those powers which are expressly not provided by the Code of Civil Procedure, but conferred on the court in addition to those expressly provided by the Code. The said power cannot be exercised in contravention or in conflict of or ignoring express and specific provisions of law.

Bunda District Council v. Virian Tanzania Ltd [2000] TLR 385

> "Inherent jurisdiction must be exercised subject to the rule that if the Code does contain specific provisions which will meet the necessities of the case in question, such provisions should be followed and the inherent jurisdiction should not be invoked; it is only when there is no clear provision in the Civil Procedure Code that inherent jurisdiction can be invoked."

Shaku Haji Osman Juma v. Attorney General and Two Others [2000] TLR 49

Tanzania Electric Supply Company (TANESCO) v. Independent Power Tanzania Ltd (IPTL) and Others [2000] TLR 324

1.2.3: Extended Jurisdiction

S.45 of the Magistrate Courts Act, Cap 11 R.E 2002 provides:

(1) The Minister may, after consultation with the Chief Justice and with the Attorney-General, by order published in the Gazette–

(a) invest any resident magistrate, in relation to any category of cases specified in the order, with the appellate jurisdiction ordinarily exercisable by the High Court; or

(b)……

(2) The High Court may direct that an appeal instituted in the High Court be transferred to and be heard by a resident magistrate upon whom extended jurisdiction has been conferred by section 45(1).

Note that section 45 of MCA was amended by section 11 of the Written Laws (Miscellaneous Amendments) Act, No. 8 of 2018:

11. Amendment of section 45

The principal Act is amended in section 45 (1), by adding immediately after the words "High Court" appearing at the end of paragraphs (a) and (b) the words, "under this Part and subpart (c) of Part III to this Act."

Note further that section 8 of the Written Laws (Miscellaneous Amendments) Act No. 8 of 2018 amended section 41 of the Land Disputes Courts Act, Cap 216 by adding section 41A.The new provision vests appellate and revisional jurisdiction over land matters to Resident Magistrates with extended jurisdiction.

8. Addition of section 41A

The principal Act is amended by adding immediately after section 41 the following new section-

"41A. Extended jurisdiction

(1) Notwithstanding section 41, the Chief Justice may, after consultation with the Minister responsible for legal affairs and the Attorney General, by order published in the Gazette, vest any resident magistrate with the appellate or revisional jurisdiction ordinarily exercisable by the High Court under this Act.

(2) For the purpose of any appeal from or revision in the exercise of jurisdiction referred to under subsection (1), the resident magistrate with extended jurisdiction shall be deemed to be the judge of the High Court, and court presided over by him while exercising such jurisdiction shall be deemed to be the High Court.

(3) The High Court may direct that an appeal or revision instituted in the High Court be transferred to and be heard by a residen magistrate upon whom extended jurisdiction has been conferred by this section."

1.3: Parties to suits

A suit is a contest between two or several parties. The person who institutes a suit is called a plaintiff or complainant.

The plaintiff/complainant complains about a certain wrong and claims a relief as redress from the court of law against a wrong doer called defendant. A defendant is therefore any person (legal or natural) against whom civil proceedings are initiated against.

Consolidated Holding Corporation v. Rajani Industries Ltd and Bank of Tanzania, Civil Appeal No. 2 of 2003 CAT (unreported).

1.3.1: Joinder of the parties

Order 1 rule 10(2) Civil Procedure Code, Cap 33 R.E. 2002

> "The court may, at any stage of the proceedings, either upon or without the application of either party and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all the questions involved in the suit, be added."

Conrad Berege v. Registrar of Cooperative Societies and the Attorney General [1998] TLR 22

> "In accordance with the provisions of Order I rule 10 (2) of the Civil Procedure Code 1966, the court may at any stage of the proceedings either upon or without application of either party, order that the name of any person who ought to have been joined, be added."

1.4: The Institution of suits

1.4.1: Plaint

Order VII rule 1-the plaint shall contain the following particulars-

(a) the name of the court in which the suit is brought;

(b) the name, description and place of residence of the plaintiff;

(c) the name, description and place of residence of the defendant, so far as they can be ascertained;

(d) where the plaintiff or the defendant is a minor or a person of unsound mind, a statement to that effect;

(e) the facts constituting the cause of action and when it arose;

(f) the facts showing that the court has jurisdiction;

(g) the relief which the plaintiff claims;

(h) where the plaintiff has allowed a set-off or relinquished a portion of his claim, the amount so allowed or relinquished; and

(i) a statement of the value of the subject matter of the suit for the purposes of jurisdiction and of court fees, so far as the case admits.

11. The plaint shall be rejected in the following cases–

(a) where it does not disclose a cause of action;

Provided…….

Musanga Ng'anda Andwa v. Chief Japheth Wanzagi and Eight Others [2006] TLR 351

1. A cause of action means every fact which would be necessary for the plaintiff to prove in order to support his title to a decree; in other

words, a cause of action is the sum total of those allegations upon which the right to relief claimed is founded;

2. In determining a cause of action, only the plaint together with anything attached should be looked at. The plaintiff is under no obligation to anticipate any special defence which might be available to the defendant.

John M Byombalirwa v. Agency Maritine Internationale (Tanzania) Ltd [1983] TLR1

"Under Order VII r.11 (a) of the Civil Procedure Code, where the plaint discloses no cause of action the court is to reject it and not dismiss it."

J.B Shirima and Others Express Bus Service v. Humphrey Meena t/a Comfort Bus Service [1992] TLR 290

(i) A relief is not a cause of action;

(ii) where the plaint does not disclose a cause of action the Court has two alternatives:

(a) to order amendment of the plaint, or

(b) to strike out the plaint.

Stanbic Finance Tanzania Ltd v. Giuseppe Trupia and Chiara Malavasi [2002] TLR 217

Hussein Bhanjee v. National Insurance Corporation (T) Ltd [1977] LRT n. 26

> "An application for amendment of a plaint should rarely be allowed at the appellate stage unless the matter has been overlooked by inadvertence or the amendment is necessary for the proper determination of the matters in issue."

1.4.2: Representative suit

Order 1 rule 8

> (1) Where there are numerous person having the same interest in one suit, one or more of such persons may, with the permission of the court, sue or be sued, or may defend, in such suit, on behalf of or for the benefit of all persons so interested; but the court shall in such case give, at the plaintiff's expense, notice of the institution of the suit to all such persons either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, by public advertisement, as the court in each case may direct.

A suit filed by or against one or more persons on behalf of themselves and others having the same interest in the suit. The object of the provision is to facilitate the decision of questions in which large number of persons are interested without recourse to the ordinary procedure.

Kiteria Menezes and 33 Others v. Area Engineering, Work Ltd and the Attorney General [1998] TLR 434

> "…a party desirous of filing a representative suit must, as a pre-condition, seek and obtain leave before filing such suit."

Abdallah Mohamed Msakander v. City Commission of Dar es Salaam and Two Others [1998] TLR 439

An application for leave to bring a representative suit must be filed in the court which will hear and determine the suit in due course. **Mussa Hamis Shah and Two Others v. Dar es Salaam City Council** [1996] TLR 201 **Lujuna Shubi Ballonzi, Senior v. Registered Trustees of Chama cha Mapinduzi** [1996] TLR 203.Thus in a representative suit, in short parties must be numerous, they must have same or common interest in a suit, permission must have been granted and direction must have been given by the court and notice must have been granted to the parties concerned.

1.4.3: Summary Procedure

The object underlying the summary procedure is to prevent unreasonable obstruction by the defendant who has no defence and to assist expeditious disposal of cases.

Order XXXV Civil Procedure Code

> Rule 2(1) Suits to which this Order applies shall be instituted by presenting a plaint in the usual form but endorsed "Order XXXV: Summary Procedure" and the summons shall inform the defendant that unless he obtains leave from the court to defend the suit, a decision may be given against him and shall also inform him of the manner in which application may be made for leave to defend.
>
> (2) In any case in which the plaint and summons are in such forms, respectively, the defendant shall not appear or defend the suit unless

he obtains leave from the judge or magistrate as hereinafter provided so to appear and defend; and, in default of his obtaining such leave or of his appearance and defence in pursuance thereof, the allegations in the plaint shall be deemed to be admitted, and the plaintiff shall be entitled:

(a) where the suit is a suit, referred to in paragraph (a), (b) or (d) of rule 1 or a suit for the recovery of money under a mortgage and no other relief in respect of such mortgage is claimed, to a decree for any sum not exceeding the sum mentioned in the summons, together with interest at the rate specified (if any) and such sum for costs as may be prescribed, unless the plaintiff claims more than such fixed sum, in which case the costs shall be ascertained in the ordinary way, and such decree may be executed forthwith;

(b) where the suit arises out of a mortgage and is for foreclosure, sale, delivery of possession, redemption or retransfer, to a decree in accordance with the provisions of Order XXXII and other provisions of this Code and such decree may, unless it is a preliminary decree, be executed forthwith;

(c) where the suit is for the recovery of possession of any immovable property, building or premises or for payment of rent, mesne profits or damages for unlawful occupation of such immovable property, building or premises, to a decree for possession and for payment of rent, mesne profits or damages as claimed.

CRDB Bank Limited v. John Kagimbo Lwambagaza [2002] TLR 117

The purpose of Order XXXV: "Summary Procedure" is to enable a plaintiff to obtain judgment expeditiously where the defendant has in effect no substantial defence to the suit and to prevent such a defendant from employing delaying tactics to postpone the day of reckoning.

Tanzania Telecommunications Company Limited v. Timothy Lwoga [2002] TLR 150

"A defendant is entitled to leave to appear and defend a summary suit if it is shown that there is a triable issue."

Order XXXV Rule 1 CPC indicates matters that fall under summary procedures. The Order reads:

This Order shall, where the plaintiff desires to proceed in accordance with the Order, apply to–

(a) suits upon bills of exchange (including cheques) or promissory notes;

(b) suits for the recovery of income tax; and

(c) suits arising out of mortgages, whether legal or equitable, for–

(i) payment of monies secured by mortgage;

(ii) sale;

(iii) foreclosure;

(iv) delivery of possession of the mortgaged property (where such possession is sought otherwise than by foreclosure) to

the mortgagee by the mortgagor or by any other person in or alleged to be in possession of the mortgaged property;

(v) redemption; or

(vi) retransfer or discharge; and

(d) suits by the Tanzania Electric Supply Company Limited for the recovery of meter rents, charges for the supply of electricity and other charges (including any tax) connected with or incidental to the supply of electricity to any consumer;

(e) suits for the recovery of rent, interest or other debts due to the Republic, the Government or any local government authority;

(f) suits for the recovery of possession of any immovable property including any building or other premises where the right of the person seeking to recover such possession is not restricted by the provisions of the Rent Restriction Act, and suit for the recovery of rent, mesne profits or damages for unlawful occupation in respect of such immovable property, building or premises; and

(g) suits for the recovery of possession of any immovable property from a lessee under a financial lease agreement where under a financial lease agreement where under such agreement the lessee has no right of ownership over the property leased to him.

Please also take note of the amendment of Order XXX Rule 3 by section 25 of the Mortgage Financing (Special Provisions) Act No. 17 of 2008.

1.5: Issue and service of summons

- Summons- A document which is issued by the court requiring the attendance of a person named in the summons at court on specified date.
- When the suit has been instituted by the plaint summons must be issued to the defendant to appear and answer to the claim on the day specified.
- Every summons should embody sufficient details in simple language.
- Summons must be served a reasonable time previous to the date of the hearing of the case.
- The service of the summons must be performed and proved strictly in accordance with the provisions of the Civil Procedure Code or any other specific law.
- Order V Rule 1 (a) - summons to appear.
- Order V Rule 1 (b) - summons to file a defence.
- Order V Rule 9 – service to be delivered to defendant or agent.
- Order V Rule 18 – serving officer to endorse time and manner of service.
- Order V Rule 20 – substituted service – where there is reason to believe that the defendant is keeping out of the way, service may be by affixation, etc.
- Order V Rule 21 – service by post.
- Order XXXV Rule 2(1) - Summons to apply for leave to appear and defend a summary suit.

1.6: Written statement of defence and counter claim

Rentokil Initials (T) Ltd v. Knight Support (T) Ltd and Forwarders, Civil Appeal No. 52 of 2003 CAT (unreported)

MIC Tanzania Ltd v. Hindow Cellular Phones Ltd, Civil Appeal No. 86 of 2007 CAT (unreported)

Tanzania Harbours Authority v. Mohamed R. Mohamed, Civil Appeal No. 80 of 1999 CAT (unreported)

National Bank of Commerce v. Partners Constructions Co. Ltd, Civil Appeal No. 34 of 2003 CAT (unreported)

1.6.1: Written Statement of Defence

Order VIII

(1) Where a summons to appear has been issued, the defendant may, and if so required by the Court shall, within seven days before the first hearing, present a written statement of his defence.

(2) Where a summons to file a defence has been issued and the defendant wishes to defend the suit, he shall, within twenty-one days of the date of service of the summons upon him present to the court a written statement of his defence:

Provided that the Court may, within twenty-one days of expiration of the prescribed period, grant an extension of time for presentation of the written statement of defence on application by the defendant.

Note that failure to file a Written Statement of Defence within the prescribed period or extended time attacts a default judgment. See Order VIII Rule 14 (1) and (2) (a) of the Civil Procedure Code, Cap 33 R.E 2002.

1.6.2: Counter claim

- Order VIII rules 9 and 10 of CPC
- Order VIII Rule 9 provides:

  (1) Where in any suit the defendant alleges that he has any claim or is entitled to any relief or remedy against the plaintiff in respect of a cause of action accruing to the defendant before the presentation of a written statement of his defence the defendant may, in his written statement of defence, state particulars of the claim made or relief or remedy sought by him:

  Provided that a written statement of defence shall not state–

  (a) any particulars of claim where the suit is brought for the recovery of taxes, duties or penalties;

  (b) particulars of any claim to repayment in respect of any taxes, duties or penalties.

  (2) Where a counterclaim is set-up in a written statement of defence, the counterclaim shall be treated as a cross-suit and the written statement shall have the same effect as a plaint in a cross-suit, and the provisions of Order VII shall apply mutatis mutandis to such written statement as if it were a plaint.

Chibinza Kulwa v. Amisi Kibushi and Others [1990] TLR 36

1.6.3: Extension of time

Order VII Rule 1 (2) CPC

> The court may within twenty-one days of expiration of the prescribed period grant extension for filing written statement of defence on application by the defendant.

Mic Tanzania Limited v. Hindow Cellular Phones Limited, Civil Appeal No. 86 of 2007 CAT (unreported).

Note that Third party procedures are enshrined under Order 1 from Rule 14 to 22 of the Civil Procedure Code, Cap 33 RE 2002.

1.6.4: Preliminary Objection

Mukisa Biscuit Manufacturing Co Ltd v. West End Distributors Ltd [1969] EA 696

> "….a preliminary objection consists of a point of law which has been pleaded or which arises by clear implications out of pleadings, and which if argued as a preliminary point may dispose of the suit. Examples are an objection to the jurisdiction of the Court, or a plea of limitation, or a submission that the parties are bound by the contract giving rise to the suit to refer the dispute to arbitration."

Shahida Abdul Hassamali Kassam v. Mahed Mohamed Gulamali Kanji, Civil Application No. 42 of 1999, CAT (unreported)

Hotels and Lodges (T) Limited v. The Attorney General (II) Chapwani Hotels Limited, Civil Appeal No.27 of 2013, CAT (unreported)

> "Pure point of law must be elicited from what has been pleaded or must be implied from reading pleadings. The parameters for determination of pure points of law…are restricted within the confines of the pleadings."

1.6.5: Res judicata

Section 9 Civil Procedure Code

> "No court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties or between parties under whom they or any of them claim litigating under the same title in a court competent to try such subsequent suit or the suit in which such issue has been subsequently raised and has been heard and finally decided by such court."

The basic object of this provision is to prevent the courts of concurrent jurisdiction from simultaneously entertaining and adjudicating upon two parallel litigations in respect of the same issue, cause of action, same subject matter and the relief prayed for. It aims to prevent the multiplicities of frivolous litigation and to avert inconvenient to the parties and give effect to the Rule of Res judicata.

Peniel Lotta v. Gabriel Tanaki and Others [2003] TLR 312

The doctrine of *res judicata* is provided for in section 9 of the Civil Procedure Code 1966. Its object is to bar multiplicity of suits and guarantee finality to litigation. It makes conclusive a final judgment between the same parties or their privies on the same issue by a Court of competent jurisdiction in the subject matter of the suit.

Umoja Garage v. NBC Holding Corporation [2003] TLR 339

Gerard Chuchuba v. Rector, Itaga Seminary [2002] TLR 213

Stephen Wasira v. J. Warioba and AG [1996] TLR 334

1.7: Pleadings

James Funke Gwagilo v. Attorney General [2004] TLR 161

1. The function of pleadings is to give notice of the case which has to be met. A party must therefore so state his case that his opponent will not be taken by surprise.
2. It is also to define with precision the matters on which the parties differ and the points on which they agree, thereby to identify with clarity the issues on which the Court will be called upon to adjudicate to determine the matters in dispute.
3. If a party wishes to plead inconsistent facts, the practice is to allege them in the alternative.

1.7.1: Amendment of pleadings

The following principles should be kept in mind while dealing with an application for amendment of pleadings:-

(a) All amendments should be allowed which are necessary for determination of the real controversy in the suit.

(b) The proposed amendment should not alter and be a substitute of cause of action on the basis of which original claim was raised.

(c) Inconsistent and contradictory allegation in negation to admitted position of facts or mutually destructive allegations of facts would not be incorporated by means of amendment.

(d) Proposed amendment should not cause prejudice to other side which cannot be compensated by means of costs.

(e) Amendment of claim or relief barred by time should not be allowed.

(f) No amendment should be allowed which amounts to results to defeating a legal right to the opposite party on account of lapse of time.

(g) No party should suffer on account of technicalities of law and the amendment should be allowed to minimize the litigation between the parties.

(h) The delay in filling the application for amendment of the pleadings should be properly compensated by costs.

(i) Error or mistakes which if not fundamental should not be made ground for rejecting the application for amendment of pleading.

Thus amendment cannot be claimed as a matter of right and under all circumstances.

Order VI Rule 17 Civil Procedure Code.

James Kabalo Mapalala v. British Broadcasting Corporation [2004] TLR 143

> Order VI Rule 17 of the Civil Procedure Code allows a party to amend pleadings at any stage of the proceedings. The expression "at any stage of the proceeding" should not be extended to cover the time after delivery of judgment. In its plain and natural interpretation, the wording of Rule 17 clearly shows that the law does not provide for amendment of the pleadings after delivery of the judgment. The rule provides that all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties. If the purpose of allowing the amendment to the pleadings is for the determination of the issues in controversy between the parties, it goes without saying that the provision does not apply at the stage after the delivery of the judgment. At that stage the issues in controversy are already resolved in the judgment.

George M. Shambwe v. Attorney General and Another [1996] TLR 334

> The principles upon which amendments to pleadings should be made need to be re-affirmed:- Amendments to pleadings, sought before the hearing should be freely allowed, if they can be made without injustice to the other side, and there is no injustice if the other side can be compensated by costs.

1.8: Appearance of parties

Order IX rule 1 Civil Procedure Code

> "When a summons to appear has been issued on the day fixed in the summons for the defendant to appear or where a summons to file defence has been issued and a day for the hearing is fixed in accordance with the provisions of rule 15 of Order VIII, on the day so fixed for hearing, the parties shall be in attendance at the court-house in person or by their respective recognised agents or advocate, and the suit shall then be heard unless the hearing is adjourned to a future day fixed by the court."

E.A Posts and Telecommunications Corporation v. M/S Terrazo Paviors [1973] LRT n. 58

> 1."Appearance" under the Civil Procedure Code 1966, means attendance in person or by advocate in Court on the date stated in the summons which is also the date for hearing of the suit; there is no special requirement of "entering an appearance" to a suit as a preliminary step prior to the date fixed for hearing of the suit;
>
> 2. Appearance before a Registrar or Deputy Registrar is a valid appearance in the High Court within the meaning of Rule 1 of Order IX of the Civil Procedure Code.

1.9: Ex-Parte Judgment

Moshi Textile Mills v. B.J. De Voest [1975] LRT n. 17

"An ex-parte judgment is a judgment given when there is no appearance by the party against whom it is given. There is no appearance if the party has neither filed a written statement of defence nor appeared personally or by his advocate."

Faizen Enterprises Ltd v. Africarriers Ltd [1999] TLR 416

Ignazio Messina and Another v. Willow Investment and Another, Civil Appeal No. 105 of 1998 CAT (unreported)

1.9.1: Setting aside ex-parte judgment

- **Kulwa David v. Rebeca Stephen** [1985] TLR 116
- **Rashid Hussein v. Boniface Nyamuhanga and Another** [2002] TLR 172
- **Mwanza Director v. Mwanza Regional Manager of TANESCO Ltd and Another** [2006] TLR 329

1.10: Judgment on admission

- It is a procedure whereby a party is given the opportunity to admit matters which he does not dispute thereby saving time and costs.
- Order XII Rules 1, 2, 3 of Civil Procedure Code, Cap 33 – admission is usually given in writing – **NBC and Another v. Ahmed Abderhaman** [1997] TLR 259.
- Order XII Rule 4 of Civil Procedure Code, Cap 33 – the court may give judgment on admission upon application by any party.

1.11: Interlocutory Proceedings

- An injunction is a court order whereby a party is required to do, or refrain from doing any particular act. It is a remedy in a form of an order of the court addressed to the particular person that either prohibits or orders him to carry out a certain act.
- **University of Dar es Salaam v. Silverster Cyprian and 210 Others** [1998] TLR 175

  "Interlocutory proceedings" are proceedings that do not decide the rights of parties but seek to keep things in *status quo* pending determination of those rights, or enable the court to give directions as to how the cause is to be conducted or what is to be done in the progress of the cause so as to enable the court ultimately to decide on the rights of the parties.
- **Israel Solomon Kivuyo v. Wayani Langoi and Naishooki Wayani** (1989) TLR 140
- **Golcher v. General Manager M.C.M** [1987] TLR 78

1.11.1: Interim or Temporary Injunction

Order XXXVII Rule 4 of the Civil Procedure Code

> "The court shall in all cases, before granting an injunction, direct notice of application for the same to be given to the opposite party, except where it appears that the giving of such notice would cause undue delay and that the object of granting the injunction, would thereby be defeated."

Augustine Lyatonga Mrema and Two Others v. Abdallah Majengo and Two Others [2001] TLR 67

> "The effect of rule 4 of Order 37 is to make it compulsory for the giving of notice to the opposite party in all cases except in situations covered by the exception to the rule."

Tanzania Knitwear Ltd v. Shamshu Esmail [1989] TLR 48

Registered Trustees of Social Action Trust Fund and Another v. Happy Sausages Ltd and Others [2004] TLR 264

Hans Wolfgang Golcher v. General Manager, Morogoro Canvass Mill Ltd [1987] TLR 78

1.12: Pre- trial and scheduling conference and final pre-trial

- Parties at this stage may be involved in an informal conference between them and the court to try to reach a settlement or clarify any matters in dispute before the full hearing
- Please note that, under the scheme of Orders VIIIA and VIIIB of the CPC, Cap 33 there are two conferences which must be conducted after parties complete their pleadings, that is, First Pre - trial settlement and scheduling conference and Final Pre-Trial settlement and scheduling conference.
- Order VIIIA

  Rule 1 – suits in which the rules do not apply.

  Rule 3 (1) – scheduling to be held within 21 days. To be attended by parties.

  Rule 3 (3) – speed track of cases -

  (a) 10 months from commencement of case (Speed Track One)

  (b) 12 months from commencement of case (Speed Track Two)

  (c) Not exceeding 14 months (Speed Track Three)

  (d) 24 months (Speed Track Four)

  Rule 4 – once a scheduling order is made no departure is allowed unless it is necessary in the interest of justice.

  Order VIIIB – final Pre-trial settlement and scheduling conference.

  Rule 1 – Suits in which the rules do not apply.

  Rule 3 (4) – Held where an amicable settlement of the case is not reached.

- **Philemon Joseph Chacha and Three Others v. South African Airways and Three Others** [2002] TLR 362
- **Registered Trustees of Social Action Trust Fund and Another v. Happy Sausages Ltd and Others** [2004] TLR 264
- On the issue of expiry of speed track and due regard to the interest of justice see **Nazira Kamru v. Mic Tanzania Limited**, Civil Appeal No. 111 of 2015, CAT (unreported)

1.13: Disqualification or Recusal of a judge

Is the removal of oneself as a judge in a particular matter because of conflict of interest.

Jasbir Singh Rai and 3 Others v. Tarlochan Singh Rai and 4 Others [2013] eKLR

> "….the circumstances calling for a recusal for a judge, are by no means cast in stone. Perception of fairness of conviction of moral authority to hear the matter is the proper test of whether or not the non-participation of the judicial officer is called for. The object in view, in the recusal of a judicial officer is that justice as between the officers be uncompromised; that due process of law be realized and be seen to have had its role; that the profile of the rule of law in the matter in question be seen, to have remained uncompromised."

Registered Trustees of Social Action Trust Fund and Another v. Happy Sausages Ltd and Others [2004] TLR 264

Attorney General of the Republic of Kenya v. Prof. Anyang' Nyongo and 10 Others, Civil Application No 5 of 2007 EACJ [2007]1 EA 12;

> "In an application for a judge to recuse himself from sitting in a Coram as from sitting as a single judge, the procedure practiced in the East Africa Partner States, and which this court would encourage litigants before it to follow, is that counsel for the applicant seeks a meeting in chambers with the judge or judges in the presence of (the) opponent. The grounds for recusal are put to the judge who would be given an opportunity, if sought, to respond to them. In the event of recusal being refused by the judge, the applicant would, if so advised move the application in open court."

The Court proceeded:

> "The rationale for and benefit from that procedure is obvious, namely apart from anything else, in practical terms, it helps the litigant to avoid rushing to court at the risk of maligning the integrity of the judge or judges and of the court as a whole, without having the full facts. Where a recusal application comes before a court constituted by several judges, it appears to us that, subject to the judge whose recusal is sought giving his individual decision on the matter, all the judges constituting the Coram for the case have (a) collective duty to determine if there is sufficient

ground for the judge to recuse himself from further participation in the case."

- **Issack Mwamasika and 2 Others v. CRDB Bank Ltd,** Civil Revision No. 6 of 2016, CAT (unreported)

1.14: Framing of Issues

- It is very important to frame proper issues.
- Issues draw the attention of the judge and the parties to the precise matters which are in dispute, instead of allowing the case to be left wandering in a vague state.
- Order XIV of Civil Procedure Code, Cap 33 R.E. 2002
- **Sheikh Ahmed Said v. The Registered Trustees of Manyema Masjid** [2005] TLR 61

  "It is an elementary principle of pleading that each issue framed should be definitely resolved one way or the other. It is necessary for a trial court to make a specific finding on each and every issue framed in a case, even where some of the issues cover the same aspect."
- **Tuungane Workshop v. Audax Kamala** [1978] LRT n. 21

  "Omission to frame issues is not fatal unless it results in a failure to decide properly the point in question amounting to a failure of justice. Such an omission should amount to a mistrial, entitling the appellate court to remit the suit for a retrial."

1.15: Adjournments

Order XVII Rule 1(1) CPC

At any stage of the suit the court may, if sufficient cause is shown, grant time to the parties or to any of them, and may from time to time adjourn the hearing of the suit.

(2) In every case under subrule (1), the court shall fix a day for the further hearing of the suit and may make such order as it thinks fit with respect to the costs occasioned by the adjournment:

Provided that, when the hearing of evidence has once begun, the hearing of the suit shall be continued from day to day until all the witnesses in attendance have been examined, unless the court finds the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded.

Shadani Mbega and Another v. Karadha Co. Ltd and Another [1975] LRT n. 13

1.A 'consent letter' filed by the parties wanting to remove a case from the hearing list cannot automatically remove the case from the hearing list and is not more than an application for an adjournment or a notice of an intention to apply for an adjournment of a case.

2. An adjournment cannot be granted as of right but can only be granted for a sufficient course. It therefore involves an exercise of discretion by the court and this must be exercised judicially.

3. Once the pleadings are closed, it is the duty of the court to dispose of the case with reasonable dispatch.

Arcado Ntagazwa v. Bunyambo [1997] TLR 242

CRDB v. Filton [1993] TLR 284

1.16: Transfer of cases

- Section 47(1) (c) of the Magistrates Courts Act, Cap 11 R.E.2002
- Section 49(1) (3) and (4) of the Magistrates Act, Cap 11 R.E. 2002
- Section 94 of the Civil Procedure Code, Cap 33 R.E. 2002
- If the proceeding in question is one which is required by any law to be commenced in a primary court then the transfer of such proceedings must be to some other primary court.
- Transfer must not be made to a court which has no jurisdiction in respect of the subject matter.
- The court exercising the power to transfer proceedings must record in its record its reasons for making such order.
- **Kamgenyi v. Musiru and Another** [1968] E.A 43
- **Fanuel Mantiri Ng'unda v. Herman Ng'unda and Two Others** [1995] TLR 155
- The power to transfer cases will be exercised;

  (a) where it appears that the circumstances or gravity of the proceedings make it desirable that the proceeding should be transferred; or

  (b) where there is reasonable cause to believe that there would be failure of justice were the proceedings to be heard in the primary court; or

  (c) where the subject matter of the proceedings arose outside the local limits of the primary court's jurisdiction or is not within its

jurisdiction, or in any case in which the law applicable is a Customary law which is not a Customary law prevailing within such primary court; or

(d) where the proceedings seek to establish or enforce a right or remedy under Customary law or Islamic law, or are an application for the appointment of an administrator of the estate of the deceased person, and the court is satisfied that the law applicable is neither Customary law nor Islamic law, or that the question whether or not Customary law or Islamic law is applicable cannot be determined without hearing or determining the proceedings.

1.17: Hearing and examination of witnesses

Order XVIII Rules 1, 5 and 8 of the Civil Procedure Code, Cap 33 R.E. 2002

1.18: Arrest and attachment before judgement

Order XXXVI Rules 1 and 6 of the Civil Procedure Code, Cap 33 R.E. 2002

Mtale v. January Kapembwa [1976] LRT n. 7

Fernandes v. Commercial Bank of Africa Limited [1969] EA 482

1.19: Judgment

Order XX Rule 4 Civil Procedure Code

> "A judgment shall contain a concise statement of the case, the points for determination, the decision thereon and the reasons for such decision."

5. In suits in which issues have been framed, the court shall state its finding or decision, with the reason therefor, upon each separate issue unless the finding upon any one or more of the issues is sufficient for the decision of the suit.

Stanslaus Rugaba Kasusura and The Attorney General v. Phares Kabuye [1982] TLR 338

The judgment is fatally defective, it leaves contested material issues of fact unresolved. It is not really a judgment because it decided nothing in so far as material facts are concerned…..It is in fact a travesty of a judgment…

The trial judge should have evaluated the evidence of each of the witnesses, assessed their credibility and made a finding on the contended facts in issue. He did not do so.

Tanga Cement Company Limited v. Christopher Limited [2005] TLR 190

Kashaga v. Ernest Kahoya [1976] LRT n. 10

"The proper thing for the appellate Court to do where it is satisfied that in the case before it, there was a failure by the trial court to try the issues framed in the suit is to remit the case to the trial Magistrate and direct him to write a proper judgment which decides all questions of fact arising from the issue framed."

Lutter Symporian Nelson v. (1) The Hon. Attorney General (2) Ibrahim Said Msabaha, Civil Appeal No. 24 of 1999, CAT (unreported)

A judgment must convey some indication that the judge or magistrate has applied his mind to the evidence on the record.

Though it may be reduced to a minimum, it must show that no material portion of the evidence laid before the court has been ignored. **In Anurali Ismail v. Regina** 1 TLR 370, Abernethy J, made some observations on the requirements of judgment. He said:

> A good judgment is clear, systematic and straightforward. Every judgment should state the facts of the case, establishing each fact by reference to the particular evidence by which it is supported, and it should give sufficiently and plainly the reasons which justify the finding. It should state sufficient particulars to enable a Court of Appeal to know what facts are found and how.

1.19.1: Pronouncement of judgment

Order XX Rule 2 Civil Procedure Code

> "A judge or magistrate may pronounce a judgment written but not pronounced by his predecessor"

(1) VIP Engineering and Marketing Limited (2) Tanzania Revenue Authority v. (1) SGS Societe Generale de Serveillence (2) SGS Tanzania Superintendence Company Limited, Civil Revision No. 5 of 2011, CAT (unreported)

> "Though the word used in the rule is "may" it is mandatory upon the succeeding judge to pronounce the judgment prepared but not delivered by his predecessor, and it is not open to him to re-open the whole matter. That has always been the practice here in our

jurisdiction……..a duty is cast on the judge to pronounce judgment in the interests of litigant public and in the main to save judicial time, the word 'may' used in Order XX rule 2 of the Code has a compulsory force and the succeeding judge is under an obligation to pronounce the judgment that was written by his predecessor and it is not competent for him to re-hear the suit."

In **SGS Societe Generale de Serveillance SA and Another v. VIP Engineering and Marketing Limited and Another**, Civil Application No.25 of 2015, CAT (unreported) the Court of Appeal emphasised that:-

> "The word "may" in rule 2 of Order XX as read along with sections 2(2)(a) and (b) and 53 (1) of Cap 1 must be interpreted in such a way as imposing a mandatory obligation on the successor judge to pronounce the judgment of his predecessor. To interpret otherwise is to invest a successor judge with jurisdiction which he does not have."

Order XLIII rule (m) –GN 136 of 01/04/2011

1. Subject to any general or special direction of the Chief Justice, the following powers may be exercised by the Registrar or any Deputy or District Registrar of the High Court in any proceedings before the High Court

   (m) to exercise the powers and duties of a judge or of a magistrate and may pronounce judgment and sign decrees and make orders and transact the business of the High Court or the Court of a magistrate.

1.20: Decree

- Decree denotes final adjudication between the parties and against which an appeal lies, but only when a suit is completely disposed of, thereby a final decree would come into being.
- Section 3 of CPC
- Order XX Rules 6 and 7 of CPC
- **Dr. Gabriel Michael Muhagama v. Salim Abass Salum and Two Others** [2006] TLR 336
- **Unifrico and Two Others v. Exam Bank (Ltd),** Civil Appeal No. 300 of 2006, CAT (unreported)
- Decree is drawn up after the judgment is delivered.
- The decree must bear the date on which the judgment is pronounced and must be signed by the judge or registrar.

1.21: Award of Interest

Section 29 – Civil Procedure Code

> The Chief Justice may make rules prescribing the rate of interest which shall be carried by judgment debtors and, without prejudice to the power of the court to order interest to be paid upon to the date of judgment at such rates as it may deem reasonable, every judgment debt shall vary interest as the rate prescribed from the date of the delivery of the judgment until the same shall be satisfied.

Order XX rule 21

> The rate of interest on every judgment debt from the date of delivery of the judgment until satisfaction shall be seven per centum per annum or such other rate, not exceeding twelve per centum per annum as the parties may expressly agree in writing before or after the delivery of the judgment or as may be adjudged by consent.

Said Kibwana and General Tyre E.A. Ltd v. Rose Jumbe [1993] TLR 174

> There are two divisions of interest under Tanzania Law. The first period covers the whole of that period up to the delivery of judgment. The second period is the period from the delivery of judgment to final satisfaction. The rate to be awarded for the first period is entirely at the discretion of the court, whereas the rate to be awarded for the second period is also at the discretion of the court but within the set limits i.e. between 7% and 12% per annum.

Francis Andrew v. Kamyn Industries (T) Ltd [1986] TLR 31

> Interest prior to the filing of the suit is a matter of substantive law and it must be specifically pleaded.

Rev. Christopher Mtikila v. Attorney General, [2004] TLR 172

Njoro Furniture v. TANESCO [1995] TLR 205

In **Vijay Shantilal Chohan v. Abdul Shakule Halday and Another**, Civil Appeal No. 105 of 2013, CAT (unreported) the court observed at page 5 of the typed judgment that:

> "We wish to point out on the outset that, it is now settled law that costs follow the event. Section 30 (1) of the Civil Procedure Code, Cap 33 RE 2002 gives discretion to the court to grant or not grant costs. Subsection (2) of section 30 of the CPC, however, requires that if the court does not direct costs to follow the event, then it has to give its reasons in writing. This position of law was reiterated in the case of Njoro Furniture Mart Ltd v. Tanzania Electric Supply Co Ltd [1995] TLR 205 (CA) as under:-
>
> "Undoubtedly in our opinion, costs are within the discretion of the court as stated in s.30 of the Civil Procedure Code, 1966. It has however, long been established by the courts that costs normally follow the event. See cases of Kioka Ltd v. De Angelis (1969) EA 7. Moreover, under ss (2) of s.30 of the Civil Procedure Code it is expressly stated that where the court directs that costs shall not follow the event, the court shall state its reasons in writing."

1.22: Stay of execution

Order XXI, Rules 1 and 5 of CPC

Albert Braganza and Another v. Mrs Flora Lourdin Braganza [1992] TLR 307

Lekule v. Independent Power [1997] TLR 58

TANESCO v. IPTL and Others [2000] TLR 324

Tanga Cement Co. Ltd v. Christopherson Co. Ltd, Civil Appeal No. 11 of 2011 CAT (unreported)

1.23: Execution of Decrees and Orders

Order XXI, Rules 1, 10 and 20 of CPC

M/S Sykes Insurance Consultants Co Ltd v. M/S Sam Constructions Co. Ltd, Civil Revision No. 8 of 2010 CAT (unreported)

1.24: Objection proceedings

The execution of decrees and orders is a very important matter and it should be done in accordance with the prescribed rules.

It is important that a judge should know fully and precisely how far his decree is satisfied.

Order XX1 Rule 57 of the CPC

K. Mussa v. Mchundo [1984] TLR 348

Nyanza Distributors Co v. Geita General Stores (1977) LRT n. 2

Katibu Mkuu Amani Fresh Sports Club v. Dodo Umbwa Mambaya and Another [2004] TLR 326

1.25: Appeals

Appeal may be defined as "the judicial examination of the decision by a Higher court of the decision of an inferior court" (Chamber's 21st century Dictionary (1997, Edn.) p.59)

Section 76 of CPC

Order XXXIX of CPC

Julius Petro v. Cosmas Raphael [1983] TLR 346

Agness Simbambili Gabba v. David Samson Gabba, Civil Appeal No. 26 of 2008 CAT (unreported)

Jaffari Sanya Jussa and Another v. Saleh Sadiq Osman, Civil Appeal No. 54 of 1977 CAT (unreported)

1.26: Appeals to the Court of Appeal of Tanzania

- Take note of the following provisions of the Appellate Jurisdiction Act, Cap 141 RE 2002 in dealing with application by parties for extension of time, leave to appeal and certificate on a point of law.
- Section 5(1)(c) of the Appellate Jurisdiction Act, Cap 141 RE 2002 confers jurisdiction to the High Court in dealing with issues of application for leave to appeal to the Court of Appeal.

  "5. Appeals in civil cases

  (1) In civil proceedings, except where any other written law for the time being in force provides otherwise, an appeal shall lie to the Court of Appeal–

(c) with the leave of the High Court or of the Court of Appeal, against every other decree, order, judgment, decision or finding of the High Court."

- Section 5(2)(c) of the Appellate Jurisdiction Act, Cap 141 RE 2002 confers jurisdiction to the High Court in dealing with applications for certifying a point of law to appeal to the Court of Appeal.

  "5 (2) Notwithstanding the provisions of subsection (1)–

  (c) no appeal shall lie against any decision or order of the High Court in any proceedings under Head (c) of Part III of the Magistrates' Courts Act unless the High Court certifies that a point of law is involved in the decision or order."

- Section 11 of the Appellate Jurisdiction Act, Cap 141 RE 2002 confers jurisdiction to the High Court in dealing with application for extension of time to appeal to the Court of Appeal.

  "11. Extension of time by High Court

  (1) Subject to subsection (2), the High Court or, where an appeal lies from a subordinate court exercising extended powers, the subordinate court concerned, may extend the time for giving notice of intention to appeal from a judgment of the High Court or of the subordinate court concerned, for making an application for leave to appeal or for a certificate that the case is a fit case for appeal, notwithstanding that the time for giving the notice or making the application has already expired.

(2) In criminal cases, in the case of a sentence of death, no extension of time shall be granted after the issue of the warrant for the execution of that sentence."

1.27: Review

Review means "to look once again." The main objective of granting a review of judgment is reconsideration of the same matter by the same judge under certain conditions.

Order XLII Civil Procedure Code

Rule 1(1) Any person considering himself aggrieved–

(a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred; or

(b) by a decree or order from which no appeal is allowed, and who, from the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the court which passed the decree or made the order.

James Kabalo Mapalala v. British Broadcasting Corporation [2004] TLR 143

> "……..in an application for review, the judge is not sitting as an appellate Court. In that situation, if the judge is satisfied that the tests for review laid down under Order XLII, rule 1 are met, it is expected of him to grant the application by effecting the relevant and necessary rectification and corrections sought in the judgment which in warranting circumstances, may be varied as a result of the new and important matters discovered. Otherwise, the judgment is not quashed in a review application. On the other hand, if the judge is satisfied that there is no sufficient ground to justify a review, the application is rejected by dismissing it."

Section 78 Civil Procedure Code

> Subject to any conditions and limitations prescribed under section 77, any person considering himself aggrieved–
>
> (a) by decree or order from which an appeal is allowed by this Code but from which no appeal has been preferred; or
>
> (b) by a decree or order from which no appeal is allowed by this Code, may apply for a review of judgment to the court which passed the decree or made the order, and the court may make such order thereon as it thinks fit.

NBC v. Cosmas.M. Mukoji [1986] TLR 127

Once the appellate court has passed decision, the trial court becomes *functus officio* to review.

Mjasiri v. Joshi [1995] TLR 181

Zee Hotel v. Minister of Finance [1997] TLR 265

Lema v. Chuma [1989] TLR 130

Tanzania Transcontinental Trading Company v. Design Parnership Ltd [1999] TLR 258

Note: Conditions Precedent to allow review application (i) Notice should be given to the opposite party to enable him to appear and be heard in the matter; and (ii) if the application is made on the ground of discovery of new matter/evidence, which the applicant alleges was not within his knowledge or could not be adduced by him, when the decree was passed, or the order was made, the review application is not granted without strict proof of such allegation.

1.28: Reference

Section 77 of Civil Procedure Code

> Subject to such conditions and limitations as may be prescribed, any court may state a case and refer the same for the opinion of the High Court and the High Court may make such order thereon as thinks fit.

See also Order XLI of Civil Procedure Code

1.29: Revision

Generally, revision means "the action of revising, especially critical or careful examination or perusal with a view of correcting or improving."

The powers of revision under the provisions are discretionary and it is for the High court to see whether the facts and circumstances of a particular case call for interference in the interest of justice.

Section 79 Civil Procedure Code

> (1) The High Court may call for the record of any case which has been decided by any court subordinate to it and in which no appeal lies thereto, and if such subordinate court appears–
>
> (a) to have exercised jurisdiction not vested in it by law; or
>
> (b) to have failed to exercise jurisdiction so vested; or
>
> (c) to have acted in the exercise of its jurisdiction illegally or with material irregularity, the High Court may make such order in the case as it thinks fit.

Section 44 (1) Magistrates' Courts Act, Cap 11 R.E 2002

> In addition to any other powers in that behalf conferred upon the High Court, the High Court–
>
> (a)……..
>
> (b)…may, in any proceedings of a civil nature determined in a district court or a court of a resident magistrate on application being made in that behalf by any party or of its own motion, if it appears that there has been an error material to the merits of the case involving injustice, revise the proceedings and make such decision or order therein as it sees fit:

Gapco Tanzania Limited v. Sharif Mansoor t/a Mansoor Service Station [2002] TLR 99

> "Section 79 (1) of the Civil Procedure Code is intended to empower the High Court to *suo moto,* revise a case in which the court would not have any other opportunity to do so in the absence of an appeal."
>
> **NB:** The section applies to jurisdiction alone, the irregular exercise of it or the illegal assumption of it. The section is not directed against conclusions of the law or fact in which the question of jurisdiction is not involved.

Blass Michael v. Saidi Selemani [2000] TLR 260

Moshi Textile Mills v. B.J. De Voest [1975] LRT n. 17

Kulwa Daudi v. Rebeca Stephen [1985] TLR 116

Matemba Yamulinga [1968] EA 643

NOTE: In exercising revisional jurisdiction the following matters must be taken into consideration:-

(i) There must be a case decided by a court.

(ii) The court deciding the case must be one subordinate to the High court.

(iii) The decision must be one in which no appeal lies to the High court.

(iv) The subordinate court in deciding the case must appear to have-

-exercised a jurisdiction not vested in it by the law; or

-failed to exercise a jurisdiction vested in it by the law; or

-acted in the exercise of its jurisdiction illegally or with material irregularity.

(v) The High Court cannot vary or reverse any order except where the order, if it has been made in favour of the party applying for revision, would have finally disposed off the suit or proceedings.

(vi) High Court cannot vary or reverse any decree or order against which an appeal lies either to the High court or to any subordinate court.

(vii) It is not the province of the High Court to enter into the merits of the evidence.

CHAPTER TWO

CRIMINAL LAW, PROCEDURE AND PRACTICE

2.1: Jurisdiction of courts

- Jurisdiction of a court simply means the extent to which, or the limits within which, such court can exercise its powers, and what powers. These limits may be geographical or they may be prescribed by categorization of offences which should be tried or inquired into by a given court, or the sentences which such court can mete out.
- It must be appreciated that the question of jurisdiction is not simply one of technicality. It is fundamental. Any trial or inquiry into a matter by a court which has no jurisdiction to deal with the same renders such trial or inquiry a nullity.
- **Leornard Raphael and Another v. R,** Criminal Appeal No. 4 of 1992 CAT (unreported)
- **Makwizu Msuko and Others v. Republic,** Criminal Appeal No. 8 of 2001 CAT (unreported)
- **Robert Mwingwa v. Republic,** Criminal Appeal No. 326 of 2007 CAT (unreported)

2.2: Extended Jurisdiction

- **Criminal Procedure Act, Cap 20 RE 2002**

  S.173 (1) The Minister may after consultation with the Chief Justice and the Attorney General, by order published in the Gazette–

  (a) invest any resident magistrate with power to try any category of offences which, but for the provisions of this section, would ordinarily be tried by the High Court and may specify the, area within which he may exercise such extended powers; or

  (b) invest any such magistrate with power to try any specified case or cases of such offences and such magistrate shall, by virtue of the order, have the power, in respect of the offences specified in the order to impose any sentence which could lawfully be imposed by the High Court.

  S.256A (1) The High Court may direct that the taking of a plea and the trial of an accused person committed for trial by the High Court, be transferred to, and be conducted by a resident magistrate upon whom extended jurisdiction has been granted under subsection (1) of section 173.

- **Selemani Gabriel v. R**, Criminal Appeal No. 201 of 2007, CAT (unreported)

  "A Principal Resident Magistrate with Extended Jurisdiction has no jurisdiction to hear and determine an application for enlargement of time to lodge an appeal filed in the High Court in terms of section 45 (2) of the Magistrates' Courts Act."

- **Samson S/o Baruna and Sibore S/o Baruna v. The Republic**, Criminal Appeal No. 138 of 2002, CAT (unreported)
- **Athmani Salimu v. The Republic**, Criminal Appeal No. 120 of 2010, CAT (unreported)
- **Beneca Mathayo and Others v. R,** Criminal Appeal No. 251 of 2006, CAT (unreported)

2.3: The Accused and his plea

Section 135 Criminal Procedure Act

> The following provisions of this section shall apply to all charges and informations and, notwithstanding any rule of law or practice, a charge or information shall, subject to the provisions of this Act, not be open to objection in respect of its form or contents if it is framed in accordance with the provisions of this section:–
>
> > (i) A count or a charge or information shall commence with a statement of the offence charged, called the statement of the offence;
> >
> > (ii) the statement of offence shall describe the offence shortly in ordinary language avoiding as far as possible the use of technical terms and without necessarily stating all the essential elements of the offence and, if the offence charged is one created by enactment, shall contain a reference to the section of the enactment creating the offence;
> >
> > (iii)……

Isidori Patrice v. The Republic, Criminal Appeal No. 224 of 2007, CAT (unreported)

> "It is now trite law that the particulars of the charge sheet disclose the essential ingredients of the offence. The requirement hinges on the basic rules of criminal law and evidence to the effect that the prosecution has to prove that the accused committed the *actus reus* of the offence charged with the necessary *mens rea*. Accordingly the particulars in order to give the accused a fair trial in enabling him to prepare his defence, must allege the essential facts of the offence and any intent specifically required by law."

Thuway Akonaay v. Republic [1987] TLR 92

Khalid Athuman v. Republic [2006] TLR 79

Oswald Mangule v. Republic, Criminal Appeal No. 153 of 1994, CAT (unreported)

Nasoro Juma Azizi v. The Republic, Criminal Appeal No. 58 of 2010, CAT (unreported)

2.3.1: Plea of guilty

R v. M/S SP Construction [1981] TLR 6

John Noah v. Republic (1978) LRT n. 61

R v. Yonesani Egalu and Others [1942] 9 EACA 65

> That in any case in which a conviction is likely to proceed on a plea of guilty (in other words, when a admission by the accused is to be allowed to take place of the otherwise necessary strict proof of the charge beyond reasonable doubt by the prosecution) it is most desirable not only that every constituent of the charge should be explained to the accused, but that he should be required to admit or deny every constituent and that what he says should be recorded in a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally.

2.4: Bail

The primary purpose of remanding an accused person in custody is not to punish him but to ensure that he will appear to take his trial and not to seek to evade justice by leaving the jurisdiction of the court. **Jaffer v. Republic** (1972) HCD n. 92

Section 148 Criminal Procedure Act, Cap 20 RE 2002

> (1) When any person is arrested or detained without warrant by an officer in charge of a police station or appears or is brought before a court and is prepared at any time while in the custody of that officer or at any stage of the proceedings before that court to give bail the officer or the court, as the case may be, may, subject to the following provisions of this section, admit that person to bail; save that the officer or the court may, instead of taking bail from that

person, release him on his executing a bond with or without sureties for his appearance as provided in this section.

(5) A police officer in charge of a police station or a court before whom an accused person is brought or appears, shall not admit that person to bail if–

(a) that person is charged with–

(i) murder, treason, armed robbery, or defilement;

(ii) illicit trafficking in drugs against the Drugs and Prevention of Illicit Traffic in Drugs Act, but does not include a person charged for an offence of being in possession of drugs which taking into account all circumstances in which the offence was committed, was not meant for conveyance or commercial purpose;

(iii) an offence involving heroin, cocaine, prepared opium, opium poppy (papaver setigerum), poppy straw, coca plant, coca leaves, cannabis sativa or cannabis resin (Indian hemp), methaqualone (mandrax), catha edulis (khat) or any other narcotic drug or psychotropic substance specified in the Schedule to this Act which has an established value certified by the Commissioner for National Co-ordination of Drugs Control Commission, as exceeding ten million shillings;

(b) it appears that the accused person has previously been sentenced to imprisonment for a term exceeding three years;

(c) it appears that the accused person has previously been granted bail by a court and failed to comply with the conditions of the bail or absconded;

(d) it appears to the court that it is necessary that the accused person be kept in custody for his own protection or safety;

(e) the offence with which the person is charged involves actual money or property whose value exceeds ten million shillings unless that person deposits cash or other property equivalent to half the amount or value of actual money or property involved and the rest is secured by execution of a bond:

Provided that where the property to be deposited is immovable, it shall be sufficient to deposit the title deed, or if the title deed is not available such other evidence as is satisfactory to the court in proof of existence of the property; save that this provision shall not apply in the case of police bail.

The Republic v. (i) Dodoli Kapufi, (ii) Patson Tusalile, Criminal Revision No.1 of 2008 c/f No 2 of 2008, CAT (unreported)

1.Under sections 148 (1) and 148 (5)(a) of the Criminal Procedure Act, subordinate courts are empowered to admit accused persons before them to bail for all bailable offences, including those triable by the High Court, save those specifically enumerated under section 148 (5) (a) thereof, for which no bail is grantable by any court.

2. A subordinate court, during pre-committal period, under sections 245 (1) (4) and 248 (4) read together with section 148 (1) and 148 (5) (a), is empowered to admit an accused to bail for a bailable offence triable by the High Court.

The Director of Public Prosecutions v. (1) Bashiri Waziri (2) Mogesi Anthony, Criminal Appeal No.168 of 2012, CAT (unreported)

2.4.1: A certificate of objection by DPP against the release on bail

Section 148 (4) Criminal Procedure Act, Cap 20 RE 2002

The Director of Public Prosecutions v. Ally Nur Dirie and Another [1998] TLR 252

1. The validity of the Director of Public Prosecutions' Certificate is governed by the following conditions:
    - The Director of the Public Prosecutions must certify in writing; and
    - The certificate must be to the effect that the safety or interests of the United Republic are likely to be prejudiced by granting bail in a case; and
    - The certificate must relate to a criminal case either pending trial or pending appeal
2. The Director of Public Prosecutions is entitled under section 148(4) of the Criminal Procedure Act, 1985 to file a certificate of objection against the release on bail of an accused person by the High Court.

3. Section 148(4) does not require the Director of Public Prosecutions to specify or disclose the nature of the interest concerned.

- For the current position see the cases of **Attorney General v. Jeremiah Mtobesya**, Civil Appeal No 65 of 2016, CAT (unreported) and **Emmanuel Simforian Massawe v. The Republic**, Criminal Appeal No. 252 of 2016, CAT (unreported)

2.5: Preliminary Hearing (PH)

Section 192-Criminal Procedure Act, Cap 20

> (1) Notwithstanding the provisions of section 229, if an accused person pleads not guilty the court shall as soon as is convenient, hold a preliminary hearing in open court in the presence of the accused or his advocate (if he is represented by an advocate) and the public prosecutor to consider such matters as are not in dispute between the parties and which will promote a fair and expeditious trial.
>
> (2) In ascertaining such matters that are not in dispute the court shall explain to an accused who is not represented by an advocate about the nature and purpose of the preliminary hearing and may put questions to the parties as it thinks fit. The answers to the questions may be given without oath or affirmation.
>
> (3) At the conclusion of a preliminary hearing held under this section, the court shall prepare a memorandum of the matters agreed and the memorandum shall be read over and explained to the accused in

a language that he understands, signed by the accused and his advocate and by the public prosecutor, and then filed.

(4) Any fact or document admitted or agreed (whether such fact or document is mentioned in the summary of evidence or not) in a memorandum filed under this section shall be deemed to have been duly proved; save that if, during the course of the trial, the court is of the opinion that the interests of justice so demand, the court may direct that any fact or document admitted or agreed in a memorandum filed under this section be formally proved.

(5)……..

Section 192 was amended by section 17 of the Written Laws (Miscellaneous Amendments) Act No. 3 of 2011:

17. Amendment of section 192

The principal Act is amended in section 192(1) by-

(a) inserting immediately after figure "229" the following words "and 283" and ;

(b) deleting the word "or" appearing between the words "the accused" and "his advocate" and substituting for it the word "and".

MT7479 Sgt Benjamini Holela v. Republic [1992] TLR 121

The main purpose of a preliminary hearing under section 192 of the Criminal Procedure Act, 1985 and Rules-GN 192 of 1988-made under it is to speed up the trial and an ancillary purpose is to reduce the costs of a criminal trial. Both purposes are served by ascertaining at

the earliest stage in the proceedings the matters which are not in dispute. Once those are ascertained then only the evidence on the disputed matters will be called at the trial. There would be no need to call witnesses or other evidence to prove that which is agreed to be undisputed.

Jackson Daudi v. The Republic, Criminal Appeal No.111 of 2002, CAT (unreported)

Efraim Lutambi v. The Republic, [2000] TLR 265

Libert Hubert v. R, Criminal Appeal No 28 of 1999, CAT (unreported)

2.5.1: Alibi

Section 194 (4) Criminal Procedure Act

(4) Where an accused person intends to rely upon an alibi in his defence, he shall give to the court and the prosecution notice of his intention to rely on such defence before the hearing of the case.

(5) ……

(6) If the accused raises a defence of alibi without having first furnished the prosecution pursuant to this section, the court may in its discretion, accord no weight of any kind to the defence.

Mwita S/o Mhere and Ibrahim Mhere v. R [2003] TLR 107

> Where a defence of alibi is given after the prosecution has closed its case, and without any prior notice that such a defence would be relied upon, at least three things are important under section 194(6) of the Criminal Procedure Act, 1985:
>
> > (i) the trial court is not authorized by the provision to treat the defence of alibi like it was never made;
> >
> > (ii) the trial court has to take cognizance of the defence; and
> >
> > (iii) it may exercise its discretion to accord no weight to the defence.

Charles Samson v. Republic [1990] TLR 39

Marwa Wangiti Mwita and Another v. Republic [2002] TLR 39

Ali Salehe Msutu v. Republic [1980] TLR 1

> "As a matter of law an accused person is not required to prove his alibi and that it is sufficient for him if the alibi raises a reasonable doubt."

Failure by the trial court to fully consider a defence of alibi is a serious error. **Alfeo Valentino v. Republic**, Criminal Appeal No. 92 of 2006, CAT (unreported)

2.6: Criminal trial

- After the preliminary hearing has been conducted, the court must set a date for hearing of the case.
- As a general rule, the accused must be present throughout the trial. **Vithlan v. Republic**, (1957) EA 343
- Before the trial commences, the charge should be read over to the accused person. **Magaigwa s/o Chacha and Another v. Republic** (1972) HCD n. 201
- Section 196 of CPA -Evidence to be taken in the presence of accused. "Except as otherwise expressly provided, all evidence taken in any trial under this Act shall be taken in the presence of the accused, save where his personal attendance has been dispensed with."
- **Robinson Mwanjisi and 3 Others v. R** [2003] TLR 218
- **DPP v. Fonja Mathayo** [1995] TLR 23

2.6.1: Adjournment under section 225(4) Criminal Procedure Act

Section 225 (4) Except for cases involving offences under sections 39, 40, 41, 43, 45, 48 (a) and 59, of the Penal Code or offences involving fraud, conspiracy to defraud or forgery, it shall not be lawful for a court to adjourn a case in respect of offences specified in the First Schedule to this Act under the provisions of subsection (1) of this section for an aggregate exceeding sixty days except under the following circumstances–

(a) wherever a certificate by a Regional Crimes Officer is filed in court stating the need and grounds for adjourning the case, the court may

adjourn the case for a further period not exceeding an aggregate of sixty days in respect of offences stated in the First Schedule to this Act;

(b) wherever a certificate is filed in court by the State Attorney stating the need and grounds for seeking a further adjournment beyond the adjournment made under paragraph (a), the court shall adjourn the case for a further period not exceeding, in the aggregate, sixty days;

(c) wherever a certificate is filed in court by the Director of Public Prosecutions or a person authorised by him in that behalf stating the need for and grounds for a further adjournment beyond the adjournment made under paragraph (b), the court shall not adjourn such case for a period exceeding an aggregate of twenty-four months since the date of the first adjournment given under paragraph (a).

(5) Where no certificate is filed under the provisions of subsection (4), the court shall proceed to hear the case or, where the prosecution is unable to proceed with the hearing discharge the accused in the court save that any discharge under this section shall not operate as a bar to a subsequent charge being brought against the accused for the same offence.

Robinson Mwanjisi and Three Others v. Republic [2003] TLR 218

According to section 225 (4) of the Criminal Procedure Act, what is unlawful is not "to hear" a case after an aggregate of sixty days has expired but what shall not be lawful is to "adjourn" a case after the expiry of sixty days if the exceptional circumstances have not been complied with; nowhere in the section is it implied or expressed that a hearing after the expiry of sixty days is a nullity; otherwise subsection 5 would be useless as it does not bar subsequent charges on the same facts. The purpose of section 225 generally and subsections (4) and (5) in particular, is to expedite trial but not to clear accused persons from criminal liability.

Alimas Kalumbeta v. R [1982] TLR 140

R v. Deeman Chrispin and Others [1980] TLR 116

John J. Onenge and Another v. R [1993] TLR 131

R v. Mgema Manyanya [1992] TLR 48

2.7: Judgment and Conviction

- Section 312 CPA
- Section 235 CPA
- In short a judgment must set out the point or points for determination, the decision thereon and the reasons for the decision. It must therefore cover essential ingredients of the offence. **Livingstone v. Uganda** (1972) EA 196, **Charles Izengo v. Republic**, (1982) TLR 237 and **George Mingwe v. Republic,** (1989) TLR 10

- Failure to convict is fatal-**Khamis Rashid Shaban v.DPP**, Criminal Appeal No 184 of 2012, CAT (unreported) and **Shabani Iddi Jololo and Others v. Republic,** Criminal Appeal No. 200 of 2006 CAT (unreported)

2.7.1: Substituting Convictions

Wambura Nyango v. Republic [1990] TLR 38

> "The general rule applicable in substituting convictions is that the verdict sought to be substituted for the existing one must be involving a minor and cognate offence to the offence charged."

Kayoke Charles v. Republic, Criminal Appeal No. 325 of 2007, Court of Appeal of Tanzania (unreported)

2.8: Sentence

- The foremost guide to the assessment of sentences is the seriousness of the crime committed and the maximum sentence provided by statute for each given offence.
- It is illegal to sentence a convict to term of imprisonment or a fine which is in excess of the maximum punishment provided by statute even for the most laudable of reasons.
- **Tabu Fikwa v. Republic** [1988] TLR 48

  (i) It is a common law principle that where a statute creating an offence lays down in no uncertain terms the sort of punishment to

be imposed on offenders against the statute it is incumbent on the called upon to enforce the law to act within the strict language of the law.

(ii)……

(iii)The application of common law principles must be subject to section 27(3) of the Penal Code which says that a person liable to imprisonment may be sentenced to pay a fine in addition to, or instead of imprisonment.

- **Note** section 27(3) in the above authority is currently section 27(2) of the Penal Code Cap 16 RE 2002 which states:

  27 (2) A person liable to imprisonment may be sentenced to pay a fine in addition to, or instead of, imprisonment, or where the court so determines under the Community Service Act, to community service under a community service order.
- **Silvanus Leonard Nguruwe v. Republic** [1981] TLR 66

2.8.1: Enhancement of sentence

Iddi Salum v. Republic, Criminal Appeal No. 29 of 2009 CAT (unreported)

Ladha v. R (1972) HCD n. 88 on powers of the High Court to enhance sentence.

2.9: Disposal of exhibits

Sections 353 -356 of the Criminal Procedure Act, [Cap 20 RE 2002]

R v. Athumani Rutaginga and Another [1975] LRT 5

Theobald Charles Kessy and Vicent Mwaikambo v. Republic [2000] TLR 186

> "(i) The disposal of the exhibits in contravention of section 353 (1) of the Criminal Procedure Act 1985 worked an injustice to the defence."

2.10: Bail pending appeal

Section 368 of the Criminal Procedure Act, Cap 20 R.E 2002

Lawrence Mateso v. Republic [1996] TLR 118

The Court (Samatta, JK as he then was) enunciated certain well-established principles to be followed when determining applications for bail pending the outcome of an appeal:

(i) The principle that bail is a right is applicable only to cases where the accused person has not yet been convicted;

(ii) Bail pending an appeal can be granted only where there are exceptional and unusual reasons or where there is an overwhelming probability that the appeal would succeed;

(iii) Where an argument on the facts needs detailed references to the text of the evidence or the judgment to support it, it cannot be said that the appeal has overwhelming chances of success;

(iv) Since no general principle exists that a person released on bail pending appeal will not be sent back to prison if his appeal fails, the court is reluctant to order that a convicted person be released on bail pending the outcome of the appeal;

(v) Deciding whether bail in a matter such as the present should be granted involves balancing the liberty of the individual with the proper administration of justice;

(vi) Conversely to an application for bail pending trial, the onus in an application for bail pending an appeal is on the individual, who must satisfy the court that justice will not be jeopardised, and that either exceptional and unusual reasons exist for bail, or that his appeal has overwhelming prospects of success.

2.11: General Principles

2.11.1: Accessory after the fact

Section 387 (1) of CPA, Cap 20 R.E. 2002

Damiano Petro and Another v. R [1980] TLR 260

"A person present at the scene of crime cannot become a principal in the second degree merely because he does not present the offence or apprehend the offender."

2.11.2: Issue Estoppel

Where an issue of fact has been tried by a competent Court on a former occasion, and a finding has been reached in favour of the accused, such finding would constitute an estoppel against the prosecution, and this evidence to disturb that finding of the fact when the accused is tried subsequently, even for a different offence, will not be received.

Issa Athmani Tojo v. The Republic [2003] TLR 199

> "In order to invoke the doctrine of issue of estoppels the parties in the two trials must be the same and the fact in issue proved or not in the earlier trial must be identical with what is sought to be reagitated in the subsequent trial."

Julius Michael and 4 Others v. The Republic, Criminal Appeal No. 264 of 2014, CAT (unreported)

2.11.3: Aiding and abeting

Section 22(1) (c) Penal Code Cap 16 R.E. 2002

Damiano Petro and Jackson Abraham v. R [1980] TLR 260

"Second accused should not have been convicted as aider and abettor as mere presence at the seen of crime is not enough to constitute a person an aider and abettor; the person must also participate in the crime to some extent."

2.11.4: Autrefois acquit

Section 280 of CPA-Plea of *autrefois acquit*

Section 137 CPA

Section 228 (5) CPA

Loizenu v. R [1956] EACA 566

The DPP v. Christopher Kikubwa and Another [1980] TLR 162

In **Maduhu Masele v. R** [1991] TLR 143 it was held:

"(i) It is the duty of the accused to plead autrefois acquit in order to derive the advantage or benefit thereof;

(ii) an accused person can raise the plea at any time, either as a plea in the bar to the second prosecution, or, at any stage in the proceedings, before the closure of the defence case;

(iii) it is the general rule that in pleas of autrefois acquit or convict, the burden of proof, (onus probandi) lies on the party who asserts the affirmative of the issue, or question in dispute."

2.11.5: Autrefois convict

- Section 280 of CPA-Plea of *autrefois* convict
- Section 137 CPA- a person once tried and convicted while such conviction has not been reversed is not liable to be tried again on the same facts for the same offence.
- The plea of *autrefois* convict can be raised at any time before the closure of the case-**Maduhu Masele v. R** [1991] TLR 143

2.11.6: Common Intention

Section 23 –Penal Code

> "When two or more persons form a common intention to prosecute an unlawful purpose in conjunction with one another, and in the prosecution of such purpose an offence is committed of such a nature that its commission was a probable consequence of the prosecution of such purpose, each of them is deemed to have committed the offence."

In order to fall within the ambit of this provision, the following facts must be proved:-

> (i) That two or more persons each formed an intention to prosecute a common purpose in conjunction with the other or others;
>
> (ii) that the common purpose was unlawful;
>
> (iii) that the parties, or some of them commenced or joined in the prosecution of the common purpose;

(iv) that in the course of prosecuting the common purpose, one or more of the participants committed the offence.

(v) that the commission of the offence was a probable consequence

Mathias Mnyemi and Another v. Republic [1980] TLR 290

Where in the absence of the common intention it is not possible in the evidence to say which accused person jointly charged committed the offence, all the accused persons must be given the benefit of doubt

Shija Luyeko v. The Republic, Criminal Appeal No. 43 of 1999, CAT (unreported)

The Director of Public Prosecutions v. Daudi S/o Mwayonga, Criminal Appeal No. 155 of 1994, CAT (unreported)

Sovelwa Mwayonga v. The Republic, Criminal Appeal No. 84 of 1992, CAT (unreported)

Godfrey James Ihuya and Others v. R [1980] TLR 197

Damiano Petro and Jackson Abraham v. Republic [1980] TL 260

1. The presence at the scene of crime is not enough to constitute a person an aider and abettor; the person must also participate in the crime to some extent.

2. A person present at the scene of crime cannot become a principal in the second degree merely because he does not prevent the offence or apprehend the offender

Jumanne Salum Pazi v. R [1981] TLR 246

Section 22 of the Penal Code

(1) When an offence is committed, each of the following persons is deemed to have taken part in committing the offence and to be guilty of the offence, and may be charged with actually committing it, that is to say–

(a) every person who actually does the act or makes the omission which constitutes the offence;

(b) every person who does or omits to do any act for the purpose of enabling or aiding another person to commit the offence;

(c) every person who aids or abets another person in committing the offence;

(d) any person who counsels or procures any other person to commit the offence, in which case he may be charged either with committing the offence or with counselling or procuring its commission.

2.11.7: Recent Possession

Section 122 Evidence Act, Cap 6

> "A court may infer the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case."

Twaha Elias Mwandungu v. Republic, Criminal Appeal No. 80 of 1995, CAT (unreported)

> A man who is in possession of stolen goods soon after the theft is either the thief or has received the goods knowing them to be stolen, unless he can account for his possession by at least giving an explanation which may reasonably be true. The presumption can extend to any charge however penal.

Joseph Mkumbwa and Samson Mwakagenda v. The Republic- Criminal Appeal No. 94 of 2007, CAT (unreported)

> For the doctrine to apply as a basis for conviction, it must be proved first, that the property was found with the suspect, second, that the property is positively proved to be the property of the complainant that the property was recently stolen from the complainant and lastly, that the stolen thing constitutes the subject matter of the charge against the accused.

Manazo Mandundu and Another v. Republic [1990] TLR 92

2.11.8: Receiving stolen property

Section 311 Penal Code Cap 16

Pascal Mwita and Two Others v. Republic [1993] TLR 295

2.11.9: Identification Parade

Section 60 Criminal Procedure Act, Cap 20

> (1) Any police officer in charge of a police station or any police officer investigating an offence may hold an identification parade for the purpose of ascertaining whether a witness can identify a person suspected of the commission of an offence.

Identification parade is grounded on section 60 of the Criminal Procedure Act; Section 38 of the Police Force and Auxiliary Services Act (Cap 322 RE 2002) and the Police General Orders issued by the Inspector General of Police from time to time (PGO 232)

Raymond Francis v. R [1994] TLR 100

> If any of the rules is not complied with, the identification parade becomes of little value as evidence.

Republic v. ex- C7535PC Venance Mbuta [2002] TLR 48

Godfrey Richard v. The Republic, Criminal Appeal No. 365 of 2008, CAT (unreported)

2.12: Criminal Appeals to the High Court

Section 359-Criminal Procedure Act, Cap 20

(1) Save as hereinafter provided, any person aggrieved by any finding, sentence or order made or passed by a subordinate court other than a subordinate court exercising its extended powers by virtue of an order made under section 173 of this Act may appeal to the High Court and the subordinate court shall at the time when such finding, sentence or order is made or passed, inform that person of the period of time within which, if he wishes to appeal, he is required to give notice of his intention to appeal and to lodge his petition of appeal.

Section 360 (1) No appeal shall be allowed in the case of any accused person who has pleaded guilty and has been convicted on such plea by a subordinate court except as to the extent or legality of the sentence.

Laurence Mpinga v. Republic [1983] TLR 166

1. An appeal against a conviction based on an unequivocal plea of guilty generally cannot be sustained, although an appeal against sentence may stand.

2. An accused person who has been convicted by any court of an offence "on his own plea of guilty" may appeal against the conviction to a higher court on any of the following grounds:

(a) that, even taking into consideration the admitted facts, his plea was imperfect, ambiguous or unfinished and, for that

reason, the lower court erred in law in treating it as a plea of guilty;

(b) that he pleaded guilty as a result of mistake or misapprehension;

(c) that the charge laid at his door disclosed no offence known to law; and

(d) that upon the admitted facts he could not in law have been convicted of the offence charged.

Alfani Mlaponi and Another v. Republic [1990] TLR 104

Section 361 No appeal from any finding, sentence or order referred to in section 359 shall be entertained unless the appellant–

(a) has given notice of his intention to appeal within ten days from the date of the finding, sentence or order or, in the case of a sentence of corporal punishment only, within three days of the date of such sentence; and

(b) has lodged his petition of appeal within forty-five days from the date of the finding, sentence or order,

Provided that in computing the period of forty-five days the time required for obtaining a copy of the proceedings, judgment or order appealed against shall be excluded.

And provided further that the High Court may, for good cause admit an appeal notwithstanding that the period of limitation prescribed in this section has elapsed.

Jamal Manji and Company v. Republic [1970] HCD n. 338

1. The compliance required by section 314 (now 361) is total. A partial compliance, as by giving the notice of appeal in time, but lodging the petitioner out of time or vice-versa, is not enough. A partial compliance creates at most an imperfect appeal which by section 314 (361) cannot be entertained.
2. The right of appeal conferred by section 312 (old of the Criminal Procedure Code) would be lost if the periods of limitation prescribed in section 314 (a) (b) were not complied with.
3. The proviso to section 314 however provides that the High Court may, for good cause, admit an appeal notwithstanding that the periods of limitation have elapsed, that is to say, restore the right of appeal and treat an imperfect appeal as valid and proper or allow a notice of appeal to be given and a petition of appeal to be lodged out of time, where no steps have been taken by the prospective appellant.

Section 377-386A CPA-Appeals by Director of Public Prosecutions

Note that section 371A CPA-Every appeal from a subordinate court (except an appeal from a sentence or fine) shall finally abate on the death of the appellant.

2.12.1: Summary Rejection

Section 364 Criminal Procedure Act

> (1) On receiving the petition and copy required by section 362, the High Court shall peruse them and–
>
> (a)…….
>
> (b)…….
>
> (c) if the appeal is against conviction and the sentence and the court considers that the evidence before the lower court leaves no reasonable doubt as to the accused's guilt and that the appeal is frivolous or is without substance and that there is no material in the judgment for which the sentence ought to be reduced, the court may forthwith summarily reject the appeal by an order certifying that upon perusing the record, the court is satisfied that the appeal has been lodged without any sufficient ground of complaint.

Idd Kondo v. The Republic, [2004] TLR 362

1. Summary dismissal *(sic)* rejection is an exception to the general principles of Criminal Law and jurisprudence and, therefore, the powers have to be exercised sparingly and with great circumspection.
2. The section does not require reasons to be given when dismissing an appeal summarily. However; it is highly advisable to do so.
3. It is imperative that before involving the powers of summary dismissal a Judge or a Magistrate should read thoroughly the record

of appeal and the memorandum of appeal and should indicate that he/she has done so in the order summarily dismissing the appeal.

4. An appeal may only be summarily dismissed if the grounds are that the conviction is against the weight of the evidence or that the sentence is excessive.
5. Where important or complicated questions of fact and/or law are involved or where the sentence is severe the court should not summarily dismiss an appeal but should hear it
6. Where there is a ground of appeal which does not challenge the weight of evidence or allege that the sentence is excessive, the court should not summarily dismiss the appeal but should hear it even if that ground appears to have little merit.

Issa Saidi Kumbukeni v. Republic [2006] TLR 227

Where the first appellate Court improperly used the power of summary dismissal the options open to the second appellate Court are:

(a) to send the appeal back to the first appellate Court to be admitted to hearing;

(b) in some deserving cases, of glaring irregularity or miscarriage of justice, to step into the shoes of the first appellate Court and determine the appeal' conclusively. The second appellate Court would step into the shoes of the first appellate Court by invoking its revisional powers.

2.13: Revision

Section 31 MCA

> (1) In the exercise of its revisional jurisdiction under this Part, the High Court shall have all the powers conferred upon it in the exercise of its appellate jurisdiction under this paragraph including the powers to substitute a conviction or a conviction and sentence for an acquittal or an acquittal for a conviction or to make a declaratory order; and the provisions of the proviso to paragraph (b) of section 29 shall apply in relation to an order quashing proceedings and ordering a rehearing which is made in the exercise of the High Court's revisional jurisdiction as they apply in relation to any such order made in the exercise of its appellate jurisdiction.

Section 43 MCA-Appeal, revision, etc

Section 44 MCA-Additional powers of supervision and revision

Section 372 CPA-Power of the High court to call for records

Section 373 CPA-Power of High court on revision

Section 374 CPA- Discretion of court as to hearing parties

Section 375-Number of judges on revision

Section 376 CPA-High court order to be certified to lower court

2.14: Criminal Sessions Cases

Clement Pancras v. R, Criminal Appeal No. 321 of 2013, CAT (unreported)

2.14.1: Preliminary Inquiry

Section 178-Criminal Procedure Act, Cap 20 R.E. 2002

> The High Court may inquire into and try any offence subject to its jurisdiction in any place where it has power to hold sittings; save that under section 93, no criminal case shall be brought under cognizance of the High Court unless it has been previously investigated by a subordinate court and the accused person has been committed for trial before the High Court.

The Republic v. (i) Dodoli Kapufi (ii) Patson Tusalile, Criminal Revision No 1 of 2008 C/f No. 2 of 2008, CAT (unreported)

> "An order of commitment is a pre-requisite for the High Court taking cognizance of an offence as a court of original jurisdiction. Trials in the High Court are normally preceded by committal proceedings in a subordinate court at which statements of prospective witnesses are read out."

The Republic v. Asafu Tumwine, Criminal Revision No 17 of 2006, CAT (unreported)

2.14.2: Committal proceedings

Where an offence with which the accused is charged is not triable by a subordinate court, the subordinate court will hold committal proceedings and transmit the record to the High Court for trial.

Sections 246 to 256 CPA

Section 256 CPA

> When an accused person has been committed for trial the record of committal proceedings, duly signed and authenticated by the magistrate, shall be transmitted without delay by the committing court to the Registrar of the High Court and authenticated copies of the charge and proceedings shall be forwarded to the Director of Public Prosecutions.

R v. Asafu Tumwine, Criminal Revision No. 1 of 2006, CAT (unreported)

Bandoma Fadhili Makaro and Another v. R, Criminal Appeal No. 14 of 2015, CAT (unreported)

2.14.3: Legal Representation

- It is the duty of the court to inquire from the accused person if he has the means to afford legal services at his trial. If he does not have the means, the court must recommend that the conduct of the accused person's defence be at the expenses of the State.
- **Samwel Kitau v. The Republic**, Criminal Appeal No. 390 of 2015, CAT (unreported) it was held that:

"The right to legal representation is a human rights issue. It is of prime importance for an accused person to have a fair trial. Access to counsel is therefore very important. However, in Tanzania, we do not yet have a public defender system where an accused person can obtain the services of a lawyer upon demand. Legal Aid is provided where an accused person is charged with a capital offence. A defence counsel is automatically appointed when an accused person is facing the charges of murder, manslaughter and treason. However, for other cases, legal assistance can be obtained upon request and only when the certifying authority considers that there is a need. It is therefore not automatic. There have been a number of situations where an accused person has been granted legal aid after putting in a special request. However, this position only applies to free legal aid, otherwise an accused person is at liberty to engage an advocate."

- Section 33 of the Legal Aid Act, No. 1 of 2017 regulates Legal aid by the order of the Court in criminal matters.

2.14.4: Persons of unsound mind

Sections 216 to 221 CPA

Procedure when accused does not understand proceedings.

The DPP v. Abbas Mohamed, Criminal Appeal No. 38 of 1989 CAT (unreported)

Danstan Anthony Luambano v. R [1990] TLR 4

(ii) Before section 220 (1) of the Criminal Procedure Act can be brought into play there must be some material which could reasonably make it appear to the court that the accused person might have been insane when he committed the offence.

(ii)……

2.14.5: Preliminary hearing

- Section 192 CPA
- In the course of the preliminary hearing, the court must explain to the accused person the nature and purpose of such hearing.
- At the conclusion of the preliminary hearing, the court must prepare a memorandum of matters agreed or not in dispute. These should be read to the accused person in a language which he understands.

Libert Hubert v. R, Criminal Appeal No. 28 of 1999, CAT (unreported)

Machela Magesa v. R, Criminal Appeal No. 3 of 1996, CAT (unreported)

Efraim Lutambi v. R, Criminal Appeal No. 3 of 1996, CAT (unreported)

Msemakweli v. R [1977] TLR 33

2.14.6: Trial

- Sections 264 to 299 CPA Practice and Procedure in trials before the High Court
- Criminal jurisdiction of the High court
- Trial to be with the aid of assessors
- Arraignment

2.14.7: Plea

- Section 282 CPA-Plea of guilty.
- Section 279 CPA-Plea of not guilty.
- Section 283 CPA-Proceedings after plea of not guilty.
- Section 280 CPA-Plea of *autrefois* acquit and *autrefois* convict.

2.14.8: Selection of Assessors

- Section 285 CPA –Selection of assessors.

  "When a trial is to be held with the aid of assessors, the assessors shall be selected by the court."

- Section 265 CPA-Trial before High Court to be with the aid of assessors. **Abdallah Bazamiye and Others v. Republic** [1990] TLR 42

2.14.9: Right of accused and opinion on suitability of assessors

An accused has a right to object to an assessor and must be given an opportunity to exercise the right.

Tongeni Naata v. Republic [1991] TLR 54

> "It is a sound practice which has been followed, and should be followed, to give an opportunity to an accused to object to any assessor…."

2.14.10: Trial within trial

Bakran v. Republic [1972] EA 92

> The object of holding a trial within a trial is twofold. First, in cases tried with a jury or with assessors, to avoid prejudice being caused to the accused person if the jury or the assessors should hear the evidence which will subsequently be ruled inadmissible…The second advantage of holding a trial within a trial is to avoid prejudice being caused to the accused person if the court subsequently holds, in coming to the decision that the statement was improperly admitted.

Makumbi Ramadhani Makumbi and 4 Others v. The Republic, Criminal Appeal No.199 of 2010, CAT (unreported)

> …the only way for every trial court to satisfy itself on the voluntariness of a disputed accused's statement is by holding a trial with a trial….

Twaha Ali and 5 Others v. Republic, Criminal Appeal No.78 of 2004, CAT (unreported)

Robinson Mwanjisi and 3 Others v. Republic, [2003] TLR 218

2.14.11: Close of prosecution case and opening of defence case: Prima facie Case

Section 293 Criminal Procedure Act, Cap 20

> "(1) When the evidence of the witnesses for the prosecution has been concluded, and the statement, if any, of the accused person before the committing court has been given in evidence, the court, if it considers after hearing the advocates for the prosecution and for the defence, that there is no evidence that the accused or any one of several accused committed the offence or any other offence of which, under the provisions of section 300 to 309 of this Act he is liable to be convicted, shall record a finding of not guilty.
>
> (2) When the evidence of the witnesses for the prosecution has been concluded and the statement, if any, of the accused person before the committing court has been given in evidence, the court, if it considers that there is evidence that the accused person committed the offence or any other offence of which, under the provisions of section 300 to 309 he is liable to be convicted, shall inform the accused person of his right–
>
> (a) to give evidence on his own behalf; and
>
> (b) to call witnesses in his defence,

and shall then ask the accused person or his advocate if it is intended to exercise any of those rights and record the answer; and thereafter the court shall call on the accused person to enter on his defence save where he does not wish to exercise either of those rights."

Director of Public Prosecutions v. (1) Morgan Maliki (2) Nyaisa Makori, Criminal Appeal No. 133 of 2013, CAT (unreported)

"…….a prima facie case is made out if, unless shaken, it is sufficient to convict an accused person with the offence with which he is charged or kindred cognate minor one….the prosecution is expected to have proved all the ingredients of the offence or minor cognate one thereto beyond reasonable doubt. If there is a gap, it is wrong to call upon the accused to give his defence so as to fill it in, as this would amount to shifting the burden of proof."

2.14.12: Summing up to Assessors

Section 298 (1) of the Criminal Procedure Act, Cap 20

When the case on both sides is closed, the judge may sum up the evidence for the prosecution and the defence and shall then require each of the assessors to state his opinion orally as to the case generally and as to any specific question of fact addressed to him by the judge, and shall record such opinion.

Hatibu Gandhi and Others v. Republic [1996] TLR 12

A trial judge is not required to state all the details of the case in his summing up. If he does so, it would cease to be a summing up. It is sufficient if he states the substantive or gist of the case on both sides in a manner which enables the assessors to give their opinions on the case in general, and on any particular point that the trial judge needs their opinion.

Ally Juma Mawepa v.R [1993] TLR 231

Shija Luyeko v. The Republic, Criminal Appeal No. 43 of 1999, CAT (unreported)

John Mley v. The Republic, Criminal Appeal No. 216 of 2007, CAT (unreported)

Charles Samson v. Republic [1990] TLR 39

- It is important to note that failure to sum up and record assessors' opinion is fatal and vitiates proceedings-**Tulubuzya Bituro v. Republic** [1982] TLR 264

2.14.13: Opinion of Assessors

Section 298(1) of the Criminal Procedure Act, [Cap 20 RE 2002]

Abdallah Bazamiye and Others v. Republic [1990] TLR 42

1. It is not the duty of assessors to cross-examine or re-examine witnesses or the accused. The assessors' duty is to aid the trial judge in accordance with section 265, and to do this they may put their

questions as provided for under section 177 of the Evidence Act, 1967. Then they have to express their non-binding opinions under section 298 of the Criminal Procedure Act, 1985.

2. Denying the assessors the opportunity to put questions …..means that the assessors were excluded from fully participating in the trials; to the extent that they were denied their statutory right, they were disabled from effectively aiding the trial judge who could only benefit fully as he would have if he had taken into judicious account all the views of his assessors;

3. Assessors' full involvement in the trial is an essential part of the process, its omission is fatal, and renders the trial a nullity.

2.14.14: Judgment

Section 312-Criminal Procedure Act, Cap 20

(1) Every judgment under the provisions of section 311 shall, except as otherwise expressly provided by this Act, be written by or reduced to writing under the personal direction and superintendence of the presiding judge or magistrate in the language of the court and shall contain the point or points for determination, the decision thereon and the reasons for the decision, and shall be dated and signed by the presiding officer as of the date on which it is pronounced in open court.

Hamisi Rajabu Dibagula v. The Republic, [2004] TLR 181

The failure to comply with the relevant statutory provisions as to the preparation of a judgment will be fatal to a conviction where there is insufficient material on the record to enable the appeal court to consider the appeal on its merits.

Republic v. Saidi Salehe (1977) LRT n.15

"The failure to write a judgment and record a conviction is fatal to the proceedings and is not curable."

2.15: Possible Defences

2.15.1: Intoxication

Section 14 (1) Penal Code Cap 16

"Save as provided in this section, intoxication shall not constitute a defence to any criminal charge."

Modestus Raphael Mbavumbili v. The Republic, Criminal Appeal No 62 of 1999, CAT (unreported)

"……it is trite principle of law under section 14 (1) of the Penal Code that intoxication shall not constitute a defence to a criminal charge unless it is shown that by reason of intoxication the appellant did not at the time of the offence know what he was doing and that he was incapable of forming the intent…"

Kahakeya Buzoya and Another v. Republic [1976] LRT n.16

Where an accused person in a murder charge sets intoxication as a defence-the burden of proving that the accused was capable of forming the intent necessary to constitute the offence of murder always remains on the prosecution.

Nicco Peter @ Rasta v. Republic [2006] TLR 84

As a general rule intoxication affords no defense to a criminal charge but under section 14 (4) of the Penal Code intoxication is taken into account in those cases requiring proof of a specific intention for the purpose of determining whether the person charged had formed any intention to commit the offence.

Athman Rashid v. Republic, Criminal Appeal No.138 of 1994, CAT (unreported)

2.15.2: Provocation

Section 201 Penal Code

"When a person who unlawfully kills another under circumstances which, but for the provisions of this section would constitute murder, does the act which causes death in the heat of passion caused by sudden provocation as defined in section 202, and before there is time for his passion to cool, he is guilty of manslaughter only."

Damian F. Kiula and Charles v. Republic [1992] TLR 16

"For the defence of provocation to stick, it must pass the objective test of whether an ordinary man in the community to which the accused belongs would have been provoked in the circumstances."

Saidi Mwamwindi v. R [1972] HCD n. 212

John Ndunguru Rudowiki v. Republic [1991] TLR 102

Georgina Venance v. Republic [2005] TLR 84

2.15.3: Insanity

Section 220 Criminal Procedure Act, Cap 20

(1) Where any act or omission is charged against any person as an offence and it appears to the court during the trial of such person for that offence that such person may have been insane so as not to be responsible for his action at the time when the act was done or omission made, a court may, notwithstanding that no evidence has been adduced or given of such insanity, adjourn the proceedings and order the accused person to be detained in a mental hospital for medical examination.

Dastan Anthony Luambano v. Republic [1990] TLR 4

"Before section 220 (1) of the Criminal Procedure Act can be brought into play there must be some material which could reasonably make it appear to the court that the accused person might have been insane when he committed the offence."

Republic v. Julius Madehe Ngere [1973] LRT n. 81

Republic v. Solile d/o Maganga [1974] LRT n. 2

Lucas Hassan Mwamba v. Republic [1999] TLR 369

Majuto Samson v. The Republic, Criminal Appeal No. 61 of 2002, CAT (unreported)

Section 12 of the Penal Code

> Every person is presumed to be of sound mind and to have been of sound mind at any time which comes in question until the contrary is proved.

Section 13 –Penal Code

(1) A person shall not be criminally responsible for an act or omission if at the time of doing the act or making the omission he is through any disease affecting his mind–

(a) incapable of understanding what he is doing;

(b) incapable of appreciating that he ought not to do the act or omission; or

(c) does not have control of the act or omission.

(2) A person may be criminally responsible for an act or omission although his mind is affected by disease, if such disease does not in fact produce upon his mind one or other of the effects referred to in subsection (1) to that act or omission.

Republic v. Agnes Doris Liundi [1980] TLR 46

1. The accused must show, on all the evidence that insanity is more likely than sanity, though it may be ever so little more likely

2. The Court is not bound to accept medical testimony if there is good reason for not doing so. At the end of the day, it remains the duty of the trial court to make a finding.

Hilda Abel v. Republic [1993] TLR 246

"Insanity within the context of section 13 of the Penal Code is a question of fact which could be inferred from the circumstances of the case and the conduct of the person at the material time."

2.16: Retrial

- It is settled law that a retrial should not be ordered unless the appellate court is of the opinion that on a proper consideration of the admissible or potentially admissible evidence a conviction might result.
- **Fatehali Manji v. R** (1966) EA. 343
- In general, a retrial will be ordered only when the original trial was illegal or defective; it will not be ordered where the conviction is set aside because of insufficiency of evidence or for the purpose of enabling the prosecution to fill gaps in its evidence at the trial…each case must be made where the interests of justice requires it.
- **Pascal Clement Branganza v. R** (1957) EA 152
- A retrial is ordered only where there has in fact been a previous trial that was conducted but which is vitiated by reason of an error in law or procedure.
- When a trial of a case is declared a nullity, it means that there has never been a trial as the purported trial had no legal force or effect.

- Where a trial of a case is declared a nullity for non compliance with the provisions of law, the court will bear in mind the gravity of the offence, justice of the case and all other circumstances in ordering a fresh trial to the accused.

2.17: Adjudication of corruption and economic offences (Economic and Organised Crimes Control Act [Cap.200 RE 2002] as amended in 2016)

2.17.1: Jurisdiction

- Section 8 of the Written Laws (Miscellaneous Amendment) Act, 2016, (Act No.3 of 2016) amended section 3 of the Economic and Organized Crime Control Act, (Cap 200 RE 2002) with the effect of establishing the Corruption and Economic Crimes Division of the High Court.
- As regard to the jurisdiction of the Corruption and Economic Crimes Division of the High Court, section 8 of Act No. 3 of 2016 repealed and replaced the provisions of section 3 (3) of Cap 200 R.E 2002 as follows:

  "3 (3) The Court shall have jurisdiction to hear and determine cases involving-

  (a) Corruption and economic offences specified in paragraphs 3 to 21 and paragraphs 27, 29 and 38 of the First Schedule whose value is not less than one billion shillings save for paragraph 14;

(b) Economic offences specified under paragraphs 22, 23, 24, 25, 26, 27, 28, 30, 31 ,32, 33, 34, 35, 36, 37 and 39 of the schedule regardless of their value; and

(c) Such other offences as may be referred to, or instituted in the court in terms of the provisions of this Act."

Thus, the court is vested with power to hear and determine cases involving both corruption and economic offences in three categories:

- Offences of whose value is not less than one billion shillings [S. 3(3) (a)] which fall under paragraphs 3 to13, 15 to 20, 21, 27, 29 and 38 of the First Schedule.
- Offences triable by the Court regardless of the value enumerated under paragraphs 22 to 28, 31 to 37 and 39 of the First Schedule [S.3 (3) (b)].
- Offences referred to the Court by the D.P.P [Ss. 3(3) (c) and 12 (4)].

Note that: Section 16 of Act No 3 of 2016 amended the First Schedule to Cap 200 to prescribe new offences under paragraphs 21- 39 as follows:-

- 21. Offences under the Prevention and Combating of Corruption Act, Cap.329 except offences under section 15 of that Act.
- 22 Offences under sections 12, 17 and 20 of the Anti-Money Laundering Act, Cap.423.
- 23 Offences under sections 15, 16 of 23 of the Drugs Control and Enforcement Act, Cap.95.
- 24 Offences under the Prevention of Terrorism Act.

- 25. Offences under the Territorial Sea and Exclusive Economic Zone Act.
- 26. Offences under section 18 of the Deep Sea Fishing Authority Act, Cap.388.
- 27. Offences under section 18 of the Mining Act, Cap.123.
- 28. Offences under sections 11, 13, 14 or 72 of the Atomic Energy Act, Cap.188.
- 29. Offences under sections 32, 48 or 114 of the Food and Drugs Control Act, Cap.219.
- 30 Offences under sections 23 or 24 of the Extractive Industries (Transparency and Accountability) Act, Cap.447.
- 31 Offences under sections 20, 21 or 45 of the Fire Arms and Ammunition Control Act, Cap.223.
- 32. Offences under Armaments Control Act, Cap.246.
- 33 Offences under sections 86 or 89 of the Forest Act, Cap.323.
- 34 Offences under sections 239 or 240 of the Petroleum Act, Cap.392.
- 35. Offences under section 21 of the Oil and Gas Revenues Management Act, Cap.328.
- 36. Offences under sections 6,7,8,9,10,11,12 or 19 of the Cyber Crime Act, Cap.443.
- 37. Offences under sections 120,122,123 or 124 of the Electronic and Postal Communications Act, Cap.306.
- 38. Offences under sections 66, 96,194A, 284A, or 318A of the Penal Code, Cap.16.

- 39. Offences under section 16 of the Whistleblower and Witness Protection Act, Cap.446.

Wagama Mwita and Another v. R, Criminal Appeal No. 148 of 2009, CAT (unreported)

2.17.2: Bail

- Where the value of the subject matter or economic offence exceeds ten million shillings, bail application must be made to the Corruption and Economic Crimes Divisions of the High Court.
- Section 10 of the Written Laws (Miscellaneous Amendments) Act No. 3 of 2016 amended section 36 (5) (a) of the Economic and Organised Crime Control Act, Cap 200 prescribing the conditions for bail to the effect that:

  > "Where the offence with which the person is charged involves actual money or property whose value exceeds ten million shillings unless that person deposits cash or other property equivalent to half the amount or value of actual money or property involved and the rest is secured by execution of a bond: Provided that, where the property to be deposited is immovable, it shall be sufficient to deposit the title deed, or if the title deed is not available such other evidence as is satisfactory to the court in proof of existence of the property; save that this provision shall not apply in the case of police bail."
- Thus, following the amendment of the Economic and Organized Crime Control Act, bail conditions have been changed. The accused

can now deposit cash and/or title deed to the property or any other evidence satisfactory to the Court.

- See also the following cases on how the court has dealt with the issue of bail:

  Edward D. Kambuga and Another v. R [1990] TLR 84

  Kashindi Ramadhani and Mcha Pascal v. R, Criminal Appeal No. 268 of 2008, CAT (unreported)

  Hafidhi Mohamed Della v. R, Criminal Appeal No. 110 of 2013 CAT (unreported)

2.17.3: Consent of the DPP

Section 12(3)

The Director of Public Prosecutions or any State Attorney duly authorized by him may in each case in which he deems it necessary or appropriate in the public interest by a certificate under his hand, order that any case involving an offence triable by the Court under this Act be tried by such court subordinate to the High Court as he may specify in the certificate.

Section 12 (4)

The Director of Public Prosecutions or any State of Attorney duly authorized by him, may, in each case in which he deems it necessary or appropriate in the public interest, by certificate under his hand, order that any case instituted or to be instituted before a court subordinate to the

High Court and which involves a non-economic offence or both an economic offence and a non-economic offence, be instituted in the court.

S.26 (1) Subject to the provisions of this section no trial in respect of an economic offence may be commenced under this Act save with the consent of the Director of Public Prosecutions.

(1) Rhobi Marwa Mgare (2) Samweli Daud (3) Marwa Wilson Chacha @ Swida v. The Republic, Criminal Appeal No. 192 of 2005, CAT (unreported)

1. The Director of Public Prosecution can by a certificate under his hand, transfer any economic case to be tried by a subordinate court.
2. Under Section 12(4), the Director of Public Prosecutions has power to sanction the trial of a combination of economic and non-economic offences in a subordinate court.
3. The consent of the Director of Public Prosecution must be given before any trial involving an economic offence.

Paulo Matheo v. Republic [1995] TLR 144

Abdulswamadu Aziz v. The Republic, Criminal Appeal No. 180 of 2011, CAT (unreported)

Peter Thomas @ Peter Toshi v. Republic [1996] TLR 370

(i)Jovinary Senga (ii) Jesilin Mbasha (iii) Alphonce Sebagande (iv) Fredrick Kitambumbwire v. The Republic, Criminal Appeal No. 152 of 2013, CAT (unreported)

2.17.4: Trial

- Part IV of Economic and Organised Crime Control (The Corruption and Economic Crimes Division) (Procedure) Rules, 2016, GN No. 267 of 2016 regulates trial of corruption and economic offences before the Corruption and Economic Crimes Division of the High Court.
- The procedures of hearing Corruption and Economic offences are stipulated under rule 10 to 20 of the said GN No. 267 of 2016.
- As regards to the composition of the Corruption and Economic Crimes Division of the High Court, section 8 of the Written Laws (Miscellaneous Amendments) Act No. 3 of 2016 amended Section 3(2) of Cap 200 to the effect that:

  > "The Corruption and Economic Crimes Division of the High Court shall consist of a Judge or such number of Judges of the High Court as may be determined by the Chief Justice."

- Thus, during trial, the Court must be composed of a Judge of the High Court and sitting with lay members is no longer a requirement.
- Protection of witnesses is currently enhanced as provided for under section 11 of Act No 3 of 2016 amending section 53 (2) of Cap. 200 to the effect that:

  > "Subject to subsection (1), the provisions of the Whistleblower and Witness Protection Act, and other relevant law shall apply in matters relating to witness protection under this Act."

- Rule 21 of GN No. 267 of 2016 provides for protection of witnesses.

CHAPTER THREE

EVIDENCE RULES

3.0: General Rules of Evidence

The object of the rules of evidence is to help the court to ascertain the truth and to avoid the confusion in the minds of magistrates and judges which may result from the admission of evidence in excess. It is in this regard that the correct and uniform rule of practice has been enacted (The Evidence Act, Cap 6 R.E. 2002).

Basis of rules of evidence

- No facts other than those having some connection with the matter in controversy should be worked into by the court however interesting it may be; and
- All facts having rational probative value i.e. which helps the court to come to conclusion upon the existence or non existence of the matter in controversy, are admissible in evidence, unless excluded by some rule of paramount importance.

Leading rules of Evidence

- The sole object and end of evidence is to ascertain the truth of several disputed facts and points in issue and no evidence ought to be admitted which is not relevant to the issue.
- The point in issue is to be proved by the part who asserts the affirmative.
- The evidence must be sufficient to prove the substance of the issue.

- The best evidence must be given of which the nature of the thing is capable.
- Hearsay evidence of fact is not admissible with some slight exceptions.
- No person is bound to incriminate himself.

3.1: Burden of proof/standard of proof

Section 110 Cap 6

(1) Whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts must prove that those facts exist.

(2) When a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.

Antony M. Masanga v. (1) Penina (Mama Mgesi) (2) Lucia (Mama Anna), Civil Appeal No. 118 of 2014, CAT (unreported)

> In civil cases, the burden of proof lies on the party who alleges anything in his favour. It is common knowledge that in civil proceedings the party with legal burden also bears the evidential burden and the standard in each case is on the balance of probabilities.

Wolfgango Dourado v. Toto Da Costa, Civil Appeal No. 102 of 2002 CAT (unreported)

3.2: Admission of evidence

- Section 145 of Evidence Act, Cap 6 R.E. 2002
- Section 7 to 19 of Evidence Act, Cap 6 R.E. 2002
- The law will admit in evidence only that evidence which it declares material and proper for proof of material at issue or in dispute.
- Generally speaking, only such material as relates directly or circumstantially to questions at issue or questions relevant to questions at issue are admissible.
- Admission is a statement, oral or documentary or contained in electronic form which suggests any inference as to any fact in the issue or relevant fact, and which is made by any of the persons under some circumstances.

3.2.1: Section 34B (2) Evidence Act, Cap 6

Director of Public Prosecutions v. Ophant Monyancha [1985] TLR 127

The correct interpretation of section 34B (2) of the Evidence Act, 1967 is that for a statement to be admissible under that section, all the conditions laid down in all the paragraphs, that is from (a) to (f) of the subsection must be met.

3.3: Circumstantial evidence

The law on circumstantial evidence is that it must irresistibly lead to the conclusion that it is the accused and no one else who committed the crime. The inculpatory facts must not be capable of any other interpretation than that the person in the dock is guilty of the offence charged.

Bahati Makeja v. The Republic, Criminal Appeal No. 118 of 2006, CAT (unreported)

Mathias Bundala v. The Republic, Criminal Appeal No. 62 of 2004, CAT (unreported)

Wallii Abbdallah Kibutwa, Kadili Ahmad and Happy Balama v. The Republic, Criminal Appeal No.127 of 2003, CAT (unreported)

Shabani Abdallah v. The Republic, Criminal Appeal No.127 of 2003, CAT (unreported)

Seilf Seleman v. Republic, Criminal Appeal No. 130 of 2005, CAT (unreported)

Where evidence against an accused person is wholly circumstantial, the facts from which an inference adverse to the accused is sought to be drawn must be clearly connected with the facts from which the inference is to be inferred. In other words, the inference must irresistibly lead to the guilt of an accused person.

3.4: Corroboration

It was stated in the case of **Lusabanya Siyantemi v. Republic** [1980] TLR 275 that:-

> It is a rule of practice, not of law, that corroboration is required of the evidence of a single witness of identification of the accused made under unfavorable conditions; but the rule does not preclude a conviction of the evidence of a single witness if the court is fully satisfied that the witness is telling the truth.

Hassan Juma Kanenyera and Others v. Republic [1992] TLR 100

Hatibu Gandhi and Others v. Republic [1996] TLR 12

> The law regarding the value and weight to be attached to retracted confessions has been settled in East Africa in number of cases culminating with the case of **Tuwamoi v. Uganda**. One of the major propositions in Tuwamoi's case is that a court can convict the maker of an uncorroborated retracted confession, if it warns itself of the danger of acting upon such an uncorroborated retracted confession, and is fully satisfied that the retracted confession cannot but be true.

Ally Msutu v. Republic [1980] TLR 1

Evidence which requires corroboration cannot corroborate another.

3.5: Competence, compellability, privileges and credibility of witnesses

- Covered under section 127 to 143 of the Evidence Act, Cap 6 R.E. 2002
- **Note that**: There are some witnesses who can testify but are not compellable witnesses. Then there are witnesses who, though competent to testify, will not be permitted by the court to do so.

3.5.1: Competence

Section 127(1) TEA, Cap 6 R.E. 2002

3.5.2: Compellability

Section 130 TEA, Cap 6 R.E. 2002

Section 199 CPA, Cap 20 R.E. 2002

3.5.3: Privilege

A witness may in certain cases claim privilege as a ground for declining to give evidence on certain matters.

Section 141 TEA, Cap 6 R.E. 2002

3.5.4: Credibility of Witnesses

Section 143 TEA

> Subject to the provisions of any other written law, no particular number of witnesses shall in any case be required for the proof of any fact.

Yohanis Msigwa v. Republic [1990] TLR 148

> As provided under section 143 of the Evidence Act 1967, no particular number of witnesses is required for the proof of any fact. What is important is the witness's opportunity to see what he/she claimed to have seen, and his/her credibility.

Goodluck Kyando v. Republic [2006] TLR 363

> It is trite law that every witness is entitled to credence and must be believed and his testimony accepted unless there are good and cogent reasons for not believing a witness

Masudi Amlima v. Republic [1989] TLR 25

Paulo s/o Tarayi v. The Republic, Criminal Appeal No.216 of 1994, CAT (unreported)

> It is not the law that whenever relatives testify to an event they should not be believed unless there is also evidence of a non-relative corroborating that story. While the possibility that relatives may choose to team up and untruthfully promote a certain version of

events must be borne in mind, the evidence of each of them must be considered on merit, as should also the totality of the story told by them. The veracity of their story must be considered and gauged judiciously, just like the evidence of non-relatives.

Shaban Daudi v. Republic, Criminal Appeal No. 28 of 2001, CAT (unreported)

….credibility of a witness is the monopoly of the trial court but only in so far as demeanor is concerned. The credibility of a witness can also be determined in two other ways. One, when assessing the coherence of the testimony of that witness. Two, when the testimony of that witness is considered in relation to the evidence of other witnesses, including that of the accused person. In those two ways other occasions, the credibility of a witness can be determined even by a second appellate court when examining the findings of the first appellate court.

In **Mathias Bundala v. Republic**, Criminal Appeal No. 62 of 2004, CAT (unreported)

Good reasons for not believing a witness, include the fact that the witness has given improbable evidence, or the evidence has been materially contradicted by another witness or witnesses.

3.6: Confession

Section 3- The Evidence Act, Cap 6 R.E. 2002

"Confession" means–

(a) words or conduct, or a combination of both words and conduct, from which, whether taken alone or in conjunction with other facts proved, an inference may reasonably be drawn that the person who said the words or did the act or acts constituting the conduct has committed an offence; or

(b) a statement which admits in terms either an offence or substantially that the person making the statement has committed an offence; or

(c) a statement containing an admission of all the ingredients of the offence with which its maker is charged; or

(d) a statement containing affirmative declarations in which incriminating facts are admitted from which, when taken alone or in conjunction with the other facts proved, an inference may reasonably be drawn that the person making the statement has committed an offence;

Michael John @Mtei v. R, Criminal Appeal No.202 of 2012, CAT (unreported)

In a confession the prosecution has to prove:

(i) the accused by his conduct or words made a statement, and

(ii) the statement or conduct amounting to a confession was freely and voluntarily made.

Republic v. Kusenta Chaligana and Another [1978] LRT n.11

Where an alleged confession is the only evidence against an accused person the onus is always upon the prosecution to prove affirmatively that the alleged confession had been voluntary made and it had not obtained by improper or unlawful means.

Rhino Migere v. R, Criminal Appeal No.122 of 2002, CAT (unreported)

"….for a statement to qualify for a confession it must contain the admission of all the ingredients of the offence charged as provided for under section 3(c) of the Evidence Act, 1967."

Diamon s/o Malakela @Maunganya v. R, Criminal Appeal No.205 of 2005, CAT (unreported)

Section 27(2) The onus of proving that any confession made by an accused person was voluntarily made by him shall lie on the prosecution.

28. A confession which is freely and voluntarily made by a person accused of an offence in the immediate presence of a magistrate as defined in the Magistrates' Courts Act, or a justice of the peace under that Act, may be proved as against that person.

29……..

Hatibu Gandhi and Others v. Republic [1996] TLR 12

The issue whether or not the particular appellant pretended to be a free agent before the magistrates, cannot be resolved in a court of law by other means except by reference to the conduct and physical appearance of the person concerned…..what goes on the mind of

another person can reasonably be ascertained only by reference to the conduct or physical appearance of that person.

The law places the onus on the prosecution to prove affirmatively the voluntariness of any confession sought to be put in evidence. That is a rule of procedure which emerges from the totality of section 27 and 28 of the Evidence Act. Section 29 does not qualify section 27 but it is complementary to it.

Ally Hemedi v. Republic [1973] LRT n.88

Richard Lubilo and Mohamed Selemani v. Republic [2003] TLR 149

Brasius Maona and Gaitan Mgao v. R, Criminal Appeal No.215 of 1992, CAT (unreported)

Once torture has been established courts should be cautious in admitting such statements in evidence even under the provisions of section 29 of the Evidence Act, 1967 which in our considered opinion was not meant to be invoked in situations where inducement involved is torture.

Section 33 (1) of Evidence Act, Cap 6

When two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction, and a confession of the offence or offences charged made by one of those persons affecting himself and some other of those persons is proved, the court may take that confession into consideration against that other person.

(2) Notwithstanding subsection (1), a conviction of an accused person shall not be based solely on a confession by a co-accused.

Where an accused person implicates himself with an offence in his confession, his statement that a co-accused participated in the commission of the offence must be corroborated by other independent evidence pointing to the guilty of his co-accused.

3.6.1: Retracted and repudiated confession

Tuwamoi v. Uganda [1967] EA 84, 87

> "The basic difference between retracted and repudiated confession is of course, that a retracted statement occurs when the accused person admits that he made the statement recorded but now seeks to recant, to take back what he said, generally on the ground that he had been forced or induced to make the statement, in other words that the statement was not a voluntary one. On the other hand a repudiated statement is one in which the accused person avers he never made."

Kashindye Meli v. Republic [2002] TLR 374

> It is now settled law that although it is dangerous to act upon repudiated or retracted confession unless such confession is corroborated, the court may act upon such confession if it is satisfied that the confession could not but be true.

Hassan J. Kanenyera and Others v. Republic [1992] TLR 100

Amiri Ramadhani v. Republic, Criminal Appeal No.225 of 2005, CAT (unreported)

3.7: Recording of Statements under Sections 57 and 58 of Criminal Procedure Act [Cautioned statement]

Athuman Rashid v. The Republic, Criminal Appeal No.138 of 1994, CAT (unreported)

(1) The provisions of section 57 of the Criminal Procedure Act seek to ensure that the statements allegedly made to the police by suspects are voluntary and free from error.

(2) Where a cautioned statement is objected to for want of a certificate as required by sub-section (3) of the Act, the court should ascertain on the voluntariness and correctness of the statement, usually by holding a trial within a trial. If the court is satisfied that the statement was made voluntarily and was recorded correctly it should proceed to admit it in evidence, but if it is not so satisfied then it should accordingly hold it inadmissible.

(3) It is not mandatory for the question and answer style to be used. Section 57(2) (a) of the Act speaks of "so far as it is practicable to do so" suggesting that where it is impracticable one may dispense with that style.

Note that section 57 has been amended by section 9 of the Written Laws (Miscellaneous Amendmnents) (No. 2) Act, 2018 [Act No. 7 of 2018] as follows:

The principal Act is amended in section 57 by adding immediately after subsection (4) the following new subsections:

"(5) An interview of a person by a police officer under this section may, if available, and subject to sections 53, 54 and 55, be undertaken by using an audio or video recording device and in such circumstances-

(a) any machine which can make an audio or video recording may be used;

(b) the person being interviewed shall be informed of the use of such recording device;

(c) a copy of the recording shall be made available to the person or his legal representative immediately after that interview; and

(d) a certificate of completion of the interview shall be filled in by the police officer in accordance with the requirements of subsection (3) and the person shall sign the certificate and be supplied with a copy of that certificate, save that, the requirement to read, initial each page of the record and sign the certificate at the end of the record shall not apply.

(6) The recording shall be used as evidence of the content and conduct of the interview without the requirement for a written record.

(7) The Chief Justice may make rules for carrying out the provisions of subsection (5)."

Seko Samwel v. The Republic, [2005] TLR 371

3.8: Recording of interviews-Section 50-51 Criminal Procedure Act

Section 50 and 51 of the Criminal Procedure Act set specific periods within which interviews of suspects can be taken. Statements taken without following the prescribed procedure are inadmissible in evidence subject to section 169 of the Criminal Procedure Act.

Zakayo Shungwa Mwashilindi, Rai Shungwa Mwashilindi and Abel Mwamwezi v. The Republic, Criminal Appeal No. 78 of 2007, CAT (unreported)

Salim Petro Ngalamba v. Republic, Criminal Appeal No.85 of 2004, CAT (unreported)

Emmanuel Malalya v. Republic, Criminal Appeal No.212 of 2004, CAT (unreported)

Prosper B Kileo, Huruma John v. The Republic, Criminal Appeal No. 150 of 2011, CAT (unreported)

Nyerere Nyague v. The Republic, Criminal Appeal No.67 of 2010, CAT (unreported)

3.9: Dying Declaration

Section 34 of the Evidence Act, Cap 6

> (1) Statements, written or oral, of relevant facts made by a person who is dead ……. are themselves admissible in the following cases:–

(a) when the statement is made by a person as to the cause of his death as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question, whether the person who made them was or was not, at the time when they were made under expectation of death, and whatever may be the nature of the proceeding in which the cause of his death comes into question.

Elisante Simon @ Kilinganya v. Republic, Criminal Appeal No.154 of 2003, CAT (unreported)

Rule of practice is that evidence of a dying declaration needs material corroboration before it can be acted upon

Godson Hemedi v. R [1993] TLR 241

Hamis Saidi Mchana v. R [1984] TLR 319

Ally Bakari and Pili Bakari v. R [1992] TLR 10

3.10: Extra-judicial statement

Section 28 of the Evidence Act, Cap 6

"A confession which is freely and voluntarily made by a person accused of an offence in the immediate presence of a magistrate as defined in the Magistrates' Courts Act, or a justice of the peace under that Act, may be proved as against that person."

Kashindye Meli v. R [2002] TLR 374

Dotto Ngasa v. R, Criminal Appeal No. 64 of 2002, CAT (unreported)

See also A Guide of Justice of Peace issued by Chief Justice reaviling how Justice of Peace must record Extra judicial Statement of accused person and the case of **Japhet Thadei Msigwa v. The Republic**, Criminal Appeal No. 367 of 2008, CAT (unreported).

3.11: Exclusion of evidence illegally obtained (S.169 CPA)

Section 169 CPA,

> (1) Where, in any proceedings in a court in respect of an offence, objection is taken to the admission of evidence on the ground that the evidence was obtained in contravention of, or in consequence of a contravention of, or of a failure to comply with a provision of this Act or any other law, in relation to a person, the court shall, in its absolute discretion, not admit the evidence unless it is, on the balance of probabilities, satisfied that the admission of the evidence would specifically and substantially benefit the public interest without unduly prejudicing the rights and freedom of any person.
>
> (2) The matters that a court may have regard to in deciding whether, in proceedings in respect of any offence, it is satisfied as required by subsection (1) include–
>
> (a) the seriousness of the offence in the course of the investigation of which the provision was contravened, or was not complied with,

the urgency and difficulty of detecting the offender and the urgency or the need to preserve evidence of the fact;

(b) the nature and seriousness of the contravention or failure; and

(c) the extent to which the evidence that was obtained in contravention of in consequence of the contravention of or in consequence of the failure to comply with the provision of any law, might have been lawfully obtained.

(3) The burden of satisfying the court that evidence obtained in contravention of, in consequence of the contravention of, or in consequence of the failure to comply with a provision of this Act should be admitted in proceedings lies on the party who seeks to have the evidence admitted.

(4) This section is in addition to, and not in derogation of, any other law or rule under which a court may refuse to admit evidence in proceedings.

Zakayo Shungwa Mwashilingi, Rai Shungwa Mwashilingi and Abel Mwamwezi v. Republic, Criminal Appeal No. 78 of 2007, CAT (unreported)

Janta Joseph Komba and Three Others v. Republic, Criminal Appeal No. 95 of 2005, CAT (unreported)

Robinson Mwanjisi and Three Others v. Republic [2003] TLR 218

Note that section 169 has been amended by section 11 of the Written Laws (Miscellaneous Amendments) (No. 2) Act, 2018 [Act No. 7 of 2018]:

The principal Act is amended in section 169-

(a) in subsection (2), by adding immediately after paragraph (c) the following new paragraph:

"(d) all the circumstances of the offence, including the circumstances in which the evidence was obtained."

(b) by adding immediately after subsection (3) the following new subsections:

"(4) The court shall, prior to exclusion of any evidence in accordance with subsection (1), be satisfied that the failure or breach was significant and substantial and that its exclusion is necessary for the fairness of the proceedings.

(5) Where the court excludes evidence on the basis of this provision it shall explain the reasons for such decision."; and

(c) by renumbering subsection (4) as subsection (6).

3.12: Evidence of Accomplice

Jasson Rwebangira v. Republic [1975] LRT n.26

In law the evidence of an accomplice needs no corroboration, however, in practice, accomplice evidence should not be acted upon in the absence of corroboration unless the court warns itself of the danger of acting on such uncorroborated evidence and is convinced as to the credibility of the witness

Amanyisye Mwandiga and 3 Others v. Republic [1976] LRT n.14

Shabani Ali and Another v. R [1970] HCD n.348

3.13: Child evidence

Section 127 (2) TEA, Cap 6

Nguza Vikings @ Babu Seya and Four Others v. The Republic, Criminal Appeal No. 56 of 2005, CAT (unreported)

> From the wording of the section, before court relies on the evidence of the independent child witness to enter a conviction, it must be satisfied that the child witness told nothing but the truth. This means that, there must first be compliance with Section 127(2) before involving Section 127 (7) of the Evidence Act "Voire dire" examination must be conducted to ascertain whether the child possesses sufficient intelligence and understands the duty to speak the truth. If the child witness understands the duty to speak the truth, it is only then its evidence can be relied on for conviction without any corroboration otherwise the position of the law remains the same, that is to say, that unsworn evidence of a child witness requires corroboration.

Kimbute Otiniel v. The Republic, Criminal Appeal No. 300 of 2011, CAT (unreported)

1. Where there is a complete omission by the trial Court to correctly and properly address itself on sections 127 (1) ad 127(2) of the Evidence

Act governing the competency of a child of tender years, the resulting testimony is to be discounted.

2. Where there is a misapplication by a trial court of Section 127 (1) and/or 127 (2) the resulting evidence is to be retained on the record. Whether or not any credibility, reliability, weight or probative force is to be accorded to the testimony in whole, in part or not at all is at the discretion of the trial court. The law and practice governing the admissibility of evidence, cross examination of the child witness, critical analysis of the evidence by the Court and the burden of proof beyond reasonable doubt, continue to govern.
3. Where there is other independent evidence sufficient in itself to sustain and guarantee the safe and sound conviction of an accused, the court may proceed to determine the case on its merit, always bearing in mind the basic duties incumbent upon it in a criminal trial and the fundamental rights of the accused.
4. A first appellate court has a prompt and prime duty to ascertain compliance by a trial court with the strict requirements of sections 127 (1) and 127 (2). It is suitability posed to re-evaluate the matter including the whole evidence and come to its own conclusion. Where appropriate it may also order a retrial according to the law and/ or make any other lawful order or decision.

NOTE THAT the position of dealing with a child witness stated in **Kimbute Otiniel's case** and several other cases has changed following the amendment of section 127 of the Evidence Act by section 26 of The

Written Laws (Miscellaneous Amendment) Act No. 2 of 2016. The amendment provides as follows:

"Section 127 of the Principal Act is amended by-

(a) Deleting subsections (2) and (3) and substituting for them the following:

"(2) A child of tender age may give evidence without taking an oath or making an affirmation but shall, before giving evidence, promise to tell the truth to the court and not to tell any lies."

(b) Re-numbering subsections (4), (5), (6) (7) and (8) as subsections (3), (4) (5), (6) and (7) respectively."

3.14: Statements by medical witnesses [S.291 Cap 20]

Requirement under Section 291 Criminal Procedure Act Cap 20

"291. Statements by medical witnesses

(1) In any trial before the High Court, any document purporting to be a report signed by a medical witness upon a purely medical or surgical matter, shall be receivable in evidence save that this subsection shall not apply unless reasonable notice of the intention to produce the document at the trial, together with a copy of the document, has been given to the accused or his advocate.

(2) The court may presume that the signature to any such document is genuine and that the person signing it holds the office or had the

qualifications which he professed to hold or to have when he signed it.

(3) Where the evidence is received by the court, the court may, if it thinks fit, and shall, if so requested by the accused or his advocate, summon and examine or make available for cross-examination, the person who made the report; and the court shall inform the accused of his right to require the person who made the report to be summoned in accordance with the provisions of this subsection.

(4) Notwithstanding the provisions of subsection (3), the court may dispense with the requirement of this subsection where it is satisfied that the person who made the report is dead or that his attendance cannot be procured without undue delay or expense."

3.15: Electronic evidence

- Section 40A TEA Cap 6– Information retrieved from computer systems, networks and servers, etc. is admissible in evidence.
- For rules on admissibility of Electronic Evidence see the Electronic Transactions Act, 2015, No. 6 of 2015 and The Cyber Crimes Act, 2015, No 4 of 2015. See also **Lazanus Mirisho Mafie and M/S Shiddya Tours Safaris v. Odilo Gasper Kilenga @Moiso Gasper**, Commercial case No. 10 of 2008 (High Court Commercial Division-unreported).
- Rule 20 of the Economic and Organised Crime Control (The Corruption and Economic Crimes Division) (Procedure) Rules, 2016

GN No. 267 of 2016 permits the trial judge of Corruption and Economic offences to admit in evidence electronic evidence.

3.16: Estoppel

- Section 123- 126 TEA Cap 6 RE 2002
- Estoppel prevents a person from saying one thing at one time and retreating from it another time.
- Estoppel thus prevents a person to rebut what has been represented by him.
- Estoppel can be inferred from the conduct of the parties.

3.17: Judicial notice

Section 58 and 59 TEA, Cap 6 R.E. 2002

Section 58 of the Evidence Act, Cap 6 provides:

> **"58. Facts judicially noticed**
>
> No fact of which a court takes judicial notice need be proved."

Section 59 of the Evidence Act (*supra*) provides:

> **"59. Facts of which court shall take judicial notice**
>
> (1) A court shall take judicial notice of the following facts–
>
> (a) all written laws, rules, regulations, proclamations, orders or notices having notice the force of law in any part of the United Republic;
>
> (b) the existence and title of societies or other bodies the registration of which has been notified in the Gazette;
>
> (c) the course of proceedings of Parliament;
>
> (d) all seals of all the courts of the United Republic duly established and of notaries public, and all seals which any person is authorised to use by any written law;
>
> (e) the accession to office, names, titles, functions and signatures of the persons holding any public office in any part of the United Republic, if the fact of their appointment to such office is notified in the Gazette;
>
> (f) the existence, title and national flag of every State or Sovereign recognised by the United Republic;
>
> (g) the divisions of time, the geographical divisions of the world, and public festivals, feasts and holidays notified in the Gazette;

(h) the commencement, continuance and termination of hostilities between the United Republic and any other State or body of persons;

(i) the names of the members and officers of the court, and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates and other persons authorised by law to appear or act before it.

(2) In all cases referred to in subsection (1) and also in matters of public history, literature, science or art, the court may resort for its aid to appropriate books or documents of reference.

(3) If the court is called upon by any person to take judicial notice of any fact, it may refuse to do so unless and until such person produces any such book or document as it may consider necessary to enable it to do so."

In **Mwajuma Mbegu v. Kitwana Amani**, Civil Appeal No.12 of 2001, CAT (unreported) the Court of Appeal stated:

"It is true that certain matters need not formally be proved. The principal matters of which the court will take judicial notice are contained in section 59 (1) of the Evidence Act, 1967 ..."

3.18: Calling witnesses not listed

Section 289 of the Criminal Procedure Act, Cap 20 RE 2002 provides:

> (1) No witness whose statement or substance of evidence was not read at committal proceedings shall be called by the prosecution at the trial unless the prosecution has given a reasonable notice in writing to the accused person or his advocate of the intention to call such witness.
>
> (2) The notice shall state the name and address of the witness and the substance of the evidence which he intends to give.
>
> (3) The court shall determine what notice is reasonable, regard being had to the time when and the circumstances under which the prosecution became acquainted with the nature of the witness's evidence and determined to call him as a witness; but no such notice need be given if the prosecution first became aware of the evidence which the witness would give on the date on which he is called.

Bandoma Fadhili Makaro and Another v. The Republic, Criminal Appeal No. 14 of 2015, CAT (unreported)

> Trials in the High Court are normally preceded by committal proceedings in a subordinate court at which statements of prospective prosecution witnesses are read out in open court in the presence of the accused…..There is no equivalent provision for trials in the subordinate courts and there is no law therefore which prevent

the prosecution from calling witnesses…..even those who were not listed at the preliminary hearing.

CHAPTER FOUR

PROBATE AND ADMINISTRATION OF ESTATES

4.0: Introduction

- For the issue of administration of the estate of the deceased or the law of succession to come into play the following key factors must co-exist:

  One, there must be death of the property owner. This can be proved or evidenced by death certificate or affidavit of a relative or a person who attended the burial of the deceased.

  Two, there should be devolution of property to heirs. Various laws and rules apply to regulate the distribution of the deceased's estate to a beneficiary or heirs.

  Three, there must be property or estate left by the deceased capable of being transferred to another person. **Note** that estate is an essential element in the law of succession.

  Fourth, Probate or letters of administration must be sought by the executor or personal legal representative in a court of competent jurisdiction.
- Section 2 of the Probate and Administration of Estates Act, Cap 352 – distinguishes "probate" and "administration".
- In "probate" it is the wish of the deceased testator that is given effect as shown in the will. In "administration of estate" the deceased dies without leaving a will and a third party applies to the court to

administer his estate – **Mark Alexander Gaetje and Two Others v. Brigitte Gaetje Defloor,** Civil Revision No. 3 of 2011, CAT (unreported).

4.1: Laws applicable in Probate and Administration of Estates in Tanzania

- Generally, administration of the estate of the deceased person and matters of succession in Tanzania are regulated by Statutory law, Islamic law and Customary law. These laws are outlined and explained below.

4.1.1: The Indian Succession Act, 1865

- It was made to apply to Tanganyika through the Indian Acts (Application) Ordinance, Cap 2 passed by the British Indian Government. It contains provisions only covering Christians.

4.1.2: The Succession (Non-Christian Asiatics) Act, Cap 28 R.E. 2002

- The Act applies in matters of succession relating to estates of deceased Non-Christians of Asiatic origin. Section 6(1) of the Act, provides that succession to the movable property in mainland Tanzania of a deceased Non-Christian Asiatic who at the time of death was domiciled in Mainland Tanzania and succession of the immovable property in mainland Tanzania of a Non- Christian Asiatic

whether or not domiciled in mainland Tanzania at death, shall be regulated by the law of the religion professed by that Non-Christian Asiatic.

4.1.3: The Judicature and Application of Laws Act, Cap 358 R.E. 2002

- This Act applies in matters of administration of estates and it specifically recognizes the application of customary and Islamic laws in administration of estate of the deceased.

4.1.4: The Probate and Administration of Estates Act, Cap 352 R.E. 2002

- It regulates substantive and procedural matters relating to the grant of probate and letters of administration of the estate of the deceased persons. It provides for powers and duties of executors and administrators.
- It provides for jurisdiction of various courts in administration of the estate of the deceased persons like the jurisdiction to grant and reseal probate and letters of Administration.
- It also recognizes the application of customary law and Islamic law in the administration of the estate of the deceased.

4.1.5: The Administrator- General (Powers and Functions) Act, Cap 27 R.E. 2002

- It provides for the appointment and duties of an Administrator General. It also stipulates instances in which an Administrator General may be appointed to administer the estate of the deceased.
- Please also take note of the amendments to the Act by Act No. 7 of 2018- The Written Laws (Miscellaneous Amendments) (No.2) Act, 2018.

4.1.6: The Magistrates' Courts Act, Cap 11 R.E. 2002

- It regulates administration of the deceased's estate procedures in Primary courts where the law applicable is customary law or Islamic law. Example in **(1) Mrs. Merathum Ramadhani (2) Sharifa Ramadhani v. (1) Churi Ramadhani, (2) Mahamud Ramadhani**, (PC Civil Appeal No. 42 of 1990) it was stated that:

  > Once one professes Islam, one's way of life is governed by the dictates of the Holy Quran. A Moslem takes it whole; he or she is not left with the choice of picking those portions that he or she finds more favourable to himself or herself and discard those found unfavourable. Moslems hold the Quran as the word of God, whose attributes amongst many is that He is All knowing and wise. In His Wisdom, he has set out portions to be given to those entitled to inherit estates left by Moslems ……those who profess Islamic do so voluntarily and they are enjoined to accept

wholly the Holy Quran as the first principal sources of their religion. There is no room for those who pick from the Holy Quran what is best for them and leave the rest which is not. It is take it or leave it all ….

- It provides for powers and duties of executors and administrators appointed by the Primary Courts. It also stipulates the Jurisdiction of the Primary Courts in administration of the deceased's estate and other matters related thereto.

4.1.7: The Law of the Child Act No. 21 of 2009

- It is mainly concerned with the welfare of a child. Section 10 of the Act provides that children are entitled to inherit from the estate of their deceased parents.

4.1.8: The Civil Procedure Code, Cap 33 R.E. 2002

- It applies when a District court, District Delegate or the High Court are exercising jurisdiction and where an application for probate and administration of the estates becomes contentious. This is provided under section 52 of the Probate and Administration of estates Act, Cap 352 R.E 2002.
- It also applies in proceedings where an executor or administrator applies to be made a party in cases involving an estate he is administering. This is reflected under Order XXX Rule 1 and 2 of the Civil Procedure Code, Cap 33 RE 2002.

4.2: Conflict of laws in probate and administration of the estate of the deceased

- It arises where one is to decide which law is applicable especially where there is a dispute of application of the existing laws. For instance, where a conflict is between statutory law and customary law or where a conflict is between statutory law and Islamic law. Courts on several occasions have adopted the mode of life test to resolve the conflict.
- **Innocent Mbilinyi, (Deceased)** [1969] HCD n.283, the issue of application of customary law and statutory law arose. Georges C.J held that;

  "On these facts which are in no way contraverted I am satisfied that it can be said that the deceased had abandoned the customary way of life in favour of what may be called a Christian and non-traditional way. There is satisfactory evidence that he was to a large extent alienated from his family and that his children had no connection whatever with them. Accordingly, I would direct that the law to be applied in the administration of the estate of the deceased should be Indian Succession Act."

- **Violet Ishengoma Kahangwa and Jovine Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa** [1990] TLR 72 the Court of Appeal held that;

  "the life style of the deceased at the time of his death was governed by traditions, customs and practices of Bahaya tribe to

which he (the deceased) belonged, and therefore, the law applicable in administering the distribution of the estate was the customary law of the Bahaya."

- **Seif Marare v. Mwadawa Salum** [1985] TLR 253
- **Note that** where there is conflict between statute law and customary law, then statute law applies.
- **Deocras Lutabana v. Deus Kashaga** [1981] TLR 122
- Also, in resolving the conflict of Islamic law and statutory law the court considers the life style which a deceased person had lived to determine how his estate will be administered after his death.
- **Asha Shemzigwa v. Halima A. Shekigenda** [1998] TLR 254 at 258, Mwaikasu, J. (as he then was) observed that;

  "as both parties and the deceased were Moslems, and had been professing Islam, it follows that Islamic rules were applicable to the dispute concerning administration of the estate of the deceased."

- **Amina Taratibu Monde v. Sulemani Ahmedi Mtalika** [2000] TLR 56 the High Court held that;

  "Since the deceased was a Moslem who professed his religion until his death, the distribution of his estate was governed by Islamic law."

4.3: Jurisdiction of Courts in Probate and Administration of Estates

- Jurisdiction means courts power and limit within which it can entertain a certain matter. In probate and administration of the estate cases, the issue of jurisdiction is of great importance as failure to observe it will render proceedings a nullity.
- **Masoud Mbita and 2 Others v. Daria Rutihinda**, Misc. Civil Application No. 85 of 1998, High court of Tanzania at Moshi (unreported) Munuo, J (as she then was) stated that;

  > "The issue of jurisdiction is fundamental and the lack of jurisdiction renders proceedings a nullity. In this case the deceased, husband of the respondent whose estate is being contested by the parties was domiciled at Moshi although he also has real property at Iringa. In that situation the District Court of Moshi had jurisdiction to determine the probate and administration cause for the matter could be filed at Moshi or at Iringa."

- Section 3 of the Probate and Administration of Estates Act, Cap 352 R.E 2002 provides that the High Court has powers in all matters relating to probate and the administration of deceased's estates including powers to grant probate of wills and letters of administration and to revoke or alter the grant.

- Section 4 of the said Act empowers the High Court to reseal grants of probate and letters of administration made by a court of probate in any part of the commonwealth. The section reads:

  "The High Court shall have jurisdiction to re-seal grants of probate and letters of administration made by a court of probate in any part of the Commonwealth in accordance with the provisions of Part X of this Act."

- Where there is a dispute over the estate of the deceased, it is only the Probate and administration Court seized of the matter that can decide the issue of ownership of the property forming the estate of the deceased. **Mgeni Seif v. Mahamed Yahaya Khalfan**, Civil Application No. 2009, CAT (unreported)

4.4: Citation

- Section 61 (1) (a-c) of the Probate and Administration of Estates Act, Cap 352 RE 2002 directs that upon application being lodged, the court should issue citations calling upon all people claiming to have interest in the estate of the deceased. The purpose is to afford them opportunity to follow the proceedings and in order to ensure that justice is not only done but also seen to be done before the petitioner is granted probate or letters of administration.
- Section 61 (2) of the Probate and Administration of Estates Act, Cap 352 RE 2002 directs that, citation should be directed to the

public particularly to those having interest in the estate of the deceased. It may also be placed on a conspicuous part of the court house, or be published in a local newspaper having a wide circulation in the country, or in the area where the deceased at the time of his death had place of abode or to be placed in such places as the court will direct.

- **Revenanth Eliawory Meena v. Albert Eliawory Meena and Another**, Civil Revision No.1 of 2017, CAT (unreported)

4.5: Non-contentious petition [no objection to the grant]

- Following citation and where there is no any objection to the grant and the requirements have been fulfilled, the court will grant probate or letters of administration to the applicant.
- Thus, where an application for grant of probate and letters of administration of estates has not been objected and the court is satisfied that the petitioner complied with all the requirements, then the grant should be made. After making the grant, the court's duty as far as probate and administration of estates are concerned will be discharged unless there is an important issue which needs court intervention.

4.6: Caveat

- Following citation, a person who feels that he has an interest over the estate of a deceased person may enter a caveat against the proceedings for grant of probate or letters of administration.

- Section 58 of the Probate and Administration of Estates Act provides as follows;

  "(1) Any person having or asserting an interest in the estate of the deceased may enter a caveat against the probate grant or letters of administration.

  (2) A caveat may be entered with the High Court or, where the deceased at the time of his death had his fixed place of abode within an area for which a District Delegate has been appointed or application for probate or letters of administration has been made to a District Delegate, with that District Delegate.

  (3) Immediately on a caveat being entered with a District Delegate he shall send a copy thereof to the High Court.

  (4) Where a caveat lodged with the High Court discloses that the deceased at the time of his death, has his fixed place of abode within an area for which a District Delegate is appointed, the Registrar shall send a copy thereof to that District Delegate.

  (5) A caveat shall remain in force for four months after the date upon which it was lodged (unless sooner withdrawn) but, subject to the provisions of section 59, may be renewed."

- Section 59 (1) of Cap 352 once a caveat has been entered the proceedings for any grant will be stayed, pending determination of the caveat. It reads;

  "Save as provided in this section, no proceedings shall be taken on a petition for probate or letters of administration after a caveat against the grant or a copy thereof has been entered with a court

to whom application has been made so long as the caveat remains in force."

- Granting probate or letters of administration while there is a caveat is wrong.
- **Kijakazi Mbegu and 5 Others v. Ramadhani Mbegu** [1999] TLR 174 -It was held that, "the Court erred in granting letters of administration to the respondent while the caveat was in force."

4.7: Contentious petition [objection to grant-caveat]

- Proceedings subsequent to caveat means application for any grant will turn to be contentious and each side will be required to adduce evidence to substantiate his claim.
- Section 52(2) of the Probate and Administration of Estates Act, Cap 352 RE 2002 stipulates that upon application and where there is a contentious matter, the proceedings take the form of civil suit. The applicant seeking for grant shall be treated as the plaintiff while the person objecting the grant shall be treated as the defendant.
- For clarity, section 52 (a-b) of Probate and Administration of Estates Act provides that;

  "Except as hereinafter provided, and subject to any Probate Rules made in that behalf–

  (a) the proceedings of the court relating to the grant of probate and letters of administration shall be regulated, so far as the circumstances of the case admit, by the Civil Procedure Code, or any enactment replacing the same; and

(b) in any case in which there is contention, the proceedings shall take, as nearly as may be the form of a suit in which the petitioner for the grant shall be plaintiff and any person who appears to oppose the proceedings shall be defendant."

- In **Nuru Hussein v. Abdul Ghani Ismail Hussein** [2000] TLR 217 it was held that:

  (i) The filing of a caveat in a probate or administration proceedings changes the proceedings into an ordinary civil suit, the petitioner becoming the plaintiff and the respondent becomes the defendant and parties must file special pleadings.

- **Revenanth Eliawory Meena v. Albert Eliawory Meena and Another**, Civil Revision No. 1 of 2017, CAT (unreported)

4.8: Proceedings subsequent to caveat

- In the **Matter of the Estate of the late Joseph Saroni Tarimo and in the Matter of Application for letters of Administration by Mage Joseph Tarimo**, Probate and Administration Cause No.6 "B" of 2001, High Court of Tanzania at Moshi (unreported) following a caveat, the petitioner was required to move the court to order citation to the caveator as contemplated by section 59 (2) of the Probate and Administration of Estates Act, Cap 352 RE 2002 after caveat had been lodged but for undisclosed reasons he failed.
- When caveat has been lodged against any grants, courts must adhere to the procedure of resolving it.

- **Professor (Mrs) Esther Mwaikambo v. Davis J. Mwaikambo and 4 Others**, Civil Appeal No. 52 of 1997, Court of Appeal of Tanzania (unreported) in which part of the proceedings of the case was vitiated as the court which tried the application disregarded the provision of handling the lodged caveat. The Court of Appeal, stated that:-

  "…It is apparent that the proceedings were conducted in accordance with the law only up to the stage when the appellant applied for the issue of citation to the caveators. Thereafter, however, it is obvious that the proceedings leading to the disposal of the matter were short circuited. Section 59 (2) of the Probate and Administration Ordinance Cap 445 provided that;

  (2) Where a caveat has been entered, any person who petitions for a grant of probate or letters of administration shall apply for the issue of a citation to the caveator calling upon him to state, within such time as may be specified therein, whether he supports the grant of probate or letters of administration to the petitioner and, if he does not, requiring him to enter an appearance to the petition."

- The Court further stated that;

  "As stated earlier, the appellant duly applied for the issue of citation to the caveators. But the Registrar did not issue citation to the caveators as required by Rule 82 (3) of the Probate Rules (hereinafter referred to as the Rules.). That rule says:-

Upon receipt of an application under paragraph (2) the Registrar shall issue a citation in the form prescribed in the first schedule to the caveator calling upon him to state, within a period of thirty days from the date of the service of the citation upon him, whether he supports the grant of probate or letters of administration to the petitioner, and, if he does not, requiring him to enter an appearance.

This omission by the Registrar derailed the rest of the trial. For, by reason of it the respondent caveators failed to enter an appearance which could have rendered the matter contentious and hence bring it within the ambit of section 53 of the Probate and Administration ordinance.

Thus, although the respondent caveators clearly contested or opposed the position by having the caveat entered on their behalf, they did not thereafter comply with the prescribed procedure which requires, inter alia, that where, as here, the petition has been opposed the proceedings shall take as nearly as may be the form of a suit, with the implication that essentially the court is required to decide the matter on the basis of oral evidence."

- **Hadija Masudi (as the legal representative of the late Halima Masudi) v. Rashidi Masudi**, Civil Appeal No. 26 of 1992, Court of Appeal of Tanzania (unreported) it was held that;

  "Once a caveat has been entered against grants for Probate or letters of administration, the caveator will be made a party to the

case, he will have a right to appeal in the same manner as it is with ordinary suits subject to jurisdiction and time limit."

4.9: Limitation period of caveat

- Once lodged, a caveat shall remain in force for a period of four months from the date when it was lodged. Section 58 (4) of the Probate and Administration of Estates Act provides;

  "A caveat shall remain in force for four months after the date upon which it was lodged (unless sooner withdrawn) but, subject to the provisions of section 59, may be renewed."
- It is the duty of a person who petitions for probate or letters of administration to apply for issue of citation as provided for under section 59 (2) of the Probate and Administration of Estates Act.
- Rule 82 (2A) of the Probate Rules directs that, in case the petitioner has failed to file such an application within the stipulated period, the Registrar shall cause a notice to be served upon the petitioner requiring him to lodge the application within a further period of twenty-one (21) days from the date of the service of the notice.
- Rule 82 (2B) of the Probate Rules provides that, in case the petitioner will fail to respond to the notice by the Registrar within the time provided then the petition shall be deemed to have been withdrawn.
- In **the Matter of the Estate of the late Joseph Saroni Tarimo and In the Matter of Application for Letters of Administration by Mage Joseph Tarimo**, (*supra*), it was stated that the applicant therein was duty bound to comply with the provisions of section 59

(2) of the Ordinance (now Cap. 352 RE 2002) which requires the petitioner to apply for the issue of citation once caveat has been lodged. The petitioner made an application for the issue of citation after a lapse of a year. In the case, Mmilla, J. (as he then was) was of considered view that;

> "One thing is clear that there is no section under the Probate and Administration Ordinance Cap.445 which prescribes time within which an application of this kind may be instituted. In such circumstances, resort is made to the Law of Limitation Act No. 10 of 1971.Part III of the First Schedule to that statue *(sic)* covers limitation of time in respect of applications. Paragraph 21 under this part provides for a limitation period of sixty (60) days in respect of, among others, other written law for which no period of limitation in this Act or any other written law has been prescribed. In view of the fact that a year has been elapsed from the time when a copy of the caveat was served on the applicant, the pleadings cannot be served now for being time barred."

- Rule 82 (3) of the Probate rules stipulates that, when citation is issued to the caveator he will be required to state within thirty (30) days whether he supports the grant or not. If the caveator does not support the grant he should enter an appearance to the petition.

4.10: Grant of probate and letters of administration

- Section 24 – Grant of probate only to an executor appointed by the will. In **(1) Mark Alexander Gaetje (2) Wiebke Gaetje (3)**

Hedda Heerdegen v. Brigitte Gaetje Defloor, Civil Revision No. 3 of 2011, CAT (unreported), it was stated that:

> "Probate" means the copy of a will, or in the case of an oral will a statement of the contents thereof certified under the seal of the Court with a grant of administration of the estate of the testator

1. In probate it is the wish of the deceased testator that is given effect as shown in the will. In the case of administration of estates, on the other hand, the outstanding difference with probate is that the deceased dies without leaving a will and third party applies to the court to administer the estate of the deceased.
2. The Probate and Administration of Estates Act details the procedure for applying for Letters of Administration in intestate succession in sections 33 to 34 of the Act.
3. Section 28 of the Act shows the effect of the grant of probate in that it establishes the will and grants title to the executor to execute the will. On the other hand, the effect of a grant of letters of Administration under section 44 of the Act is to grant all the rights of the deceased. This means the rights of an executor are derived from the will, and the rights of an administrator are derived from the grant made by the Court.

Isidor Stephen Msacky v. (1) Eveta Mangowi, (2) Homest Ngowi, (3) Theresia Shayo, Civil Appeal No. 42 of 2006, CAT (unreported)

- Section 33 – Letters of administration may be granted to any person, etc. **In the matter of the Estate of the late Col. Secilius Kutisa Fussi (Deceased) and In the Matter of Application for Grant of Letters of Administration by Dorah Kawawa Fussi** Probate and Administration cause No. 57 of 2010 it was stated that:
    1. Rules 39 (f), 71 and 72 of the Probate and Rules leaves me in no doubt that consent document is important in application for letters of administration where the deceased died intestate.
    2. Rule 71 of the Probate Rules is to the effect that where an application for the grant of letters of administration is made on an intestacy, that application must be supported by written consent of all those persons who, according to the rules for the distribution of the estate of an intestate applicable in the case of the deceased, would be entitled to the whole or part of his estate.
    3. Rule 72 of the Probate Rules prescribes for situations where the consent of the beneficiaries of the estate of the deceased cannot be obtained either because the person whose consent is required refuses to give such consent, or if such consent cannot be obtained without undue delay or expence.

    Fadhil Abdallah Batenga (Deceased) and (1) Kheri L. Batenga, (2) Khalid A. Batenga Administrators, Probate Administration Cause No. 51B of 1991, HC (unreported)

- A person below the age of 18 years and of unsound mind cannot be appointed as an executor or administrator.

- The Court can grant interim administration of the estate depending on the circumstances of the case (Administrator/Administrix pendent lite) to authorize to do some matters like "arrange for and determine the place of burial of the deceased." **Albert Braganza and Another v. Mrs. Flora Lourdin Braganza** [1992] TLR 307.

4.11: Powers and duties of executors and administrators

- After obtaining a grant of probate or letters of administration the executors and administrators respectively, become the personal and legal representatives of the deceased person in all matters concerning the estate.
- Section 71 of the Probate and Administration of Estates Act provides that;

  "Probate and letters of administration shall–

  (a) have effect over all the property, movable and immovable, of the deceased throughout Tanzania; and

  (b) be conclusive as to the representative title against all debtors of the deceased, and all persons holding property which belongs to him; and

  (c) afford full indemnity to all debtors paying their debts, and all persons delivering up such property to the person to whom such probate or letters of administration shall have been granted."
- Section 100 of the Probate and Administration of Estates Act confers executors or administrators powers to sue;

"An executor or administrator has the same power to sue in respect of all causes of action that survive the deceased, and may exercise the same powers for the recovery of debts due to him at the time of his death, as the deceased had when living."

- **Sekunda Mbwambo v. Rose Ramadhani** [2004] TLR 439;

  "The objective of appointing an administrator of the estate is the need to have a faithful person who will, with reasonable diligence, collect all the properties of the deceased. He will do so with the sole aim of distributing the same to all those who were dependants of the deceased during his life-time. The administrator, in addition, has the duty of collecting all the debts due to the deceased and pays all the debts owed by the deceased. If the deceased left children behind, it is the responsibility of the administrator to ensure that they are properly taken care of and well brought up using the properties left behind by their deceased parent. After the administrator has so faithfully administered and distributed the properties forming the estate he has a legal duty to file an inventory in the Court which made the appointment giving a proper account of the administration of the estate.

  This action is intended to help anyone of the beneficiaries who feels aggrieved at the way the property was distributed and thus dissatisfied to lodge his/her complaints to the Court which would in turn investigate the same and decide the matter in accordance with the dictates of the law. In view of all this, it is evident that

the administrator is not supposed to collect and monopolize the deceased's properties and use them as his own and/or dissipate them as he wishes, but he has the unenvitable heavy responsibility which he has to discharge on behalf of the deceased. The administrator might come from amongst the beneficiaries of the estate, but he has to be very careful and impartial in the way he distributes the estate.

Furthermore, it must by now be very obvious to all, that such an administrator must be a person who is very close to the deceased and can therefore, easily identify the properties of the deceased. He must also have the confidence of all the beneficiaries or dependants of the deceased. Such a person may be the widow or the widows, the parent or child of the deceased or any other close relatives of the deceased. If such people are not available or if they are found to be unfit in one way or another, then the Court has the powers to appoint any other fit person or authority to discharge this duty."

- Duty to account in the court for administration of estate. **Ally Omari Abdi v.Amina Khalil Ally Hildid**, Civil Appeal No. 103 of 2016, CAT (unreported)

4.12: Revocation of grant

- Revocation means cancelling the effect of previous act.
- Section 49(1) (a-e) of Cap 352 and Rule 29

- Grants may be revoked in instances/circumstances specified under section 49.
- Once an executor has filed an inventory and account in court, the probate cannot be revoked.
- Once inventory and account has been lodged, exchequer receipts must be issued as a proof.
- Once the executor has discharged his duty of executing the will, whether honestly or otherwise and has already exhibited the inventory and accounts in the court, there is no probate which can be revoked or annulled in terms of section 49. **Ahmed Mohamed Al-Laamar v.Fatuma Bakari and Another**, Civil Appeal No. 71 of 2012, CAT (unreported)

4.13: Procedure after grant of probate and letters of administration

- Generally covered under PARTS VIII and X but note:-
  Section 84 – District Court to make returns to the High Court.
  Sections 106 and 107 - on inventory and accounts, respectively.
- The court has a duty to ensure that these requirements are complied with.
- After obtaining the grant, one should not distribute the estate unless he has issued a notice to the creditors and all who have claims against the estate of the deceased. The notice should be made within sixty days of the appointment.

- After administration and distribution of the estate, the administrator shall prepare a report of administration and send it to court which made the grant.
- By the report, the executor or administrator is telling the court that the work of administration of the estate in which a grant was made has been completed.
- After completion of administration, any interested person who feels that he was entitled to a share of the estate of the deceased person may bring a claim against other beneficiaries.
- In **Hadija Masudi (as the legal representative of the late Halima Masudi) v. Rashidi Masudi**, Civil Appeal No. 26 of 1992, the Court of Appeal (unreported) the administrator had discharged his duties of administration by handing over the entire estate to the sole heir of the deceased. Administration of the estate was made under supervision of a Primary Court without objection from any quarter. Afterward, the administrator died. The respondent filed application for letters of administration. As the administrator was dead, the Court of Appeal observed that;

  > "That being the position, it is not possible to reverse the process for two main reasons. Firstly, the administrator is already dead and consequently there is no question of revoking his appointment. Secondly, the administration of the estate of the deceased Salima Masudi was done and completed under the sanction of the Primary Court of Morogoro and there has been no appeal from that court to a higher court."

- It was further held that;

  "This state of affairs does not however mean that a person who claims to be an heir of Salima Masudi and who has not got his or her rightful share of the deceased's estate, has no remedy at law; far from it. The remedy for such person, like the respondent, is to sue for the recovery of his or her share of the estate of the deceased Salima Masudi from any person who is in possession of it. This is what the respondent should have done in this case instead of seeking to be appointed an administrator of an estate which has already been administered. This means that the respondent should have sued Halima Masudi or her heirs as she has since died.

  It would seem that the respondent cannot sue the administrator appointed by the Primary Court or his estate since he got discharged by the court after completing his assignment and also because his bond for performance of his duties did not bind his heirs."

- **Issa Mashaka v. Abrahamani Kassimu**, (PC) Civil Appeal No. 35 of 1996 (unreported)
- Section 92 (1) and 73(1-3) enjoys the District Court to take into account various rules of customary law prevailing in the area where it is established. Also regard be to rules of Islamic law. **Violet Ishengoma Kahangwa and Jovin Mutabuzi v. The**

Administrator General and Mrs Eudokia Kahangwa [1990] TLR 72

4.14: The Role and duties of Administrator General

- Sections 5, 6 and 7 of Cap 27 RE 2002– spell out circumstances under which the Administrator General may apply to administer estates.
- Section 41 – The Administrator General to make a complete inventory of every estate, etc.
- Section 43 – The Administrator General to file in court accounts and vouchers relating to the estate.

CHAPTER FIVE

MATRIMONIAL PROCEEDINGS

5.1: Definition of Marriage

Section 9 (1) Law of Marriage Act, Cap 29 R.E. 2002

"Marriage means the voluntary union of man and woman intended to last for their joint lives."

Section 10- Marriage can be monogamous or intended to be monogamous and polygamous or potentially polygamous.

5.2: Conciliation Boards

Section 2(1) in this Act, except where the context otherwise requires "Board" means a Marriage Conciliation Board established under the provisions of Section 102;

"Ward" means a ward established under the Local Government (District Authorities) Act or the Local Government (urban Authorities) Act.

Section 101 – Law of Marriage Act, Cap 29

No person shall petition for divorce unless he or she has first referred the matrimonial dispute or matter to a Board and the Board has certified that it has failed to reconcile the parties.

Provided that this requirement shall not apply in any case:–

(a) where the petitioner alleges that he or she has been deserted by, and does not know the whereabouts of, his or her spouse;

(b) where the respondent is residing outside Tanzania and it is unlikely that he or she will enter the jurisdiction within the six months next ensuing after the date of the petition;

(c) where the respondent has been required to appear before the Board and has wilfully failed to attend;

(d) where the respondent is imprisoned for life or for a term of at least five years or is detained under the Preventive Detention Act * and has been so detained for a period exceeding six months;

(e) where the petitioner alleges that the respondent is suffering from an incurable mental illness;

(f) where the court is satisfied that there are extraordinary circumstances which make reference to the Board impracticable.

Section 102 Cap 29

(1) The Minister shall establish in every ward a Board to be known as a Marriage Conciliation Board and may, if he consider it desirable so to do, establish two or more such Boards in any ward.

(2) Where the Minister is satisfied that any community in Tanzania has established for itself a committee or a body of persons to perform the functions of a Marriage Conciliation Board and that it is desirable that such committee or body of persons be designated to be the Board having jurisdiction over the members of that

community, the Minister may so designate such committee or body of persons.

Athanas Makungwa v. Darini Hassani [1983] TLR 132

Where there is no certificate within the meaning of section 101 of the Law of Marriage Act, 1971 from the Conciliation Board indicating its failure to reconcile the spouses a petition for divorce becomes incomplete.

Mariam Tumbo v. Harold Tumbo [1983] TLR 293

Under paragraph (f) of the provision to Section 101 of the Law of Marriage Act, 1971 the Court may dispense with reference to the Marriage Conciliation Board where it is satisfied that there are extraordinary circumstances which make reference impracticable.

5.3: Presumption of marriage

Section 160 Law of Marriage Act, Cap 29

(1) Where it is proved that a man and woman have lived together for two years or upward, in such circumstances as to have acquired the reputation of being husband and wife, there shall be a rebuttable presumption that they were duly married.

Francis s/o Leo v. Paschal Simon Maganga [1978] LRT n. 22

Section 160 (1) does not automatically convert concubines into wives at the end of two years or more of cohabitation. All that

this section does is to provide for a presumption which is rebuttable that such people were duly married and this must refer to the forms and procedures for marriage provided for under the Law of Marriage Act.

Raphael Debugo v. Frablances Wambura [1975] LRT n. 42

Where a man and a woman have lived together in circumstances that lead the outside world to believe they are husband and wife, the party denying that status has to tilt the balance with weightier evidence.

Ally Mfaume Issa v. Fatuma Mohamed Alkamu [1974] LRT n. 67

……as a general proposition where parties have lived together as husband and wife for such a long time……the court should as far as possible construe the position in favour of the union and there should be very good reasons for disturbing it.

In **Hemed S Tamim v. Renata Mashayo** [1994] TLR 197 the Court of Appeal held:

(i) Where the parties have lived together as husband and wife in the course of which they acquire a house, despite the rebuttal of the presumption of marriage as provided for under s 160 (1) of the Law of Marriage Act 1971, the courts have the power under s 160 (2) of the Act to make consequential orders as in the dissolution of marriage or separation and division of matrimonial property acquired by the parties during their relationship is one such order;

(ii) Having found that the parties were not duly married, the decision of the lower court regarding the dissolution of marriage is void.

5.4: Void and voidable marriages

- Section 38 – Circumstances where a ceremony purporting to be a marriage shall be a nullity. That is, if either party is below the minimum age, if parties are within the prohibited relationships, etc.
- **Basiliza B. Nyimbo v. Henry Simon Nyimbo** [1986] TLR 93
- Section 39 – Voidable marriages – instances where a marriage may be voidable, that is, where either party was incapable of consummating it, etc.
- A voidable marriage is for all purposes a valid marriage until it is annulled by a decree of the court.

5.5: Divorce and Separation

5.5.1: Divorce

Cap 29

- Section 99 – Any married person may petition for divorce.
- Section 100 - No petition before the expiry of two years, etc.
- Section 101- No petition unless the dispute has been referred to a conciliation board.
- Section 107

  Only the court can grant decree of divorce.

Evidence of breakdown of marriage - adultery, sexual perversion, cruelty etc. but proof of any such matter **does not** entitle a party as of right to a decree of divorce. To grant divorce the court must be satisfied that **the marriage has broken down beyond repair.**

- 107 (3) Cap 29- Where it is proved to the satisfaction of the court that–

  (a) the parties were married in Islamic form;

  (b) a Board has certified that it has failed to reconcile the parties; and

  (c) subsequent to the granting by the Board of a certificate that it has failed to reconcile the parties, either of them has done any act or thing which would, but for the provisions of this Act, have dissolved the marriage in accordance with the Islamic law,

  the court shall make a finding that the marriage has irreparably broken down and proceed to grant a decree of divorce.

- **NB.** It is important to observe here that when the requirements under (a) (b) and (c) above are met, the court has no choice but to grant a decree of divorce.

5.5.2: Separation

- Separation may arise in either of two ways - (a) judicial or (b) parties may agree to separate.
- Section 99 Cap 29– Any married person may petition for separation.
- Section 111 Cap 29– A decree of separation relieves the parties from cohabiting, etc. but shall not dissolve the marriage.
- Please note that just like a decree of divorce, a decree of separation is a complete and independent decree. Thus, a court can grant a decree of separation in lieu of divorce and vice versa only where the petitioner for divorce has prayed in the alternative – **Dotto Malamla v. Lukelesha Lyaku** [1981] TLR 29.

5.6: Custody of children

- Section 125 Cap 29– Power of the court to make an order for custody – In making the order the paramount consideration is the welfare of the child.
- **Pulcheria Pundugu v. Samwel Pundugu** [1985] TLR 7
- **Ramesh Rajput v. Sunanda Rajput** [1988] TLR 96
- **Mbegu v. Chanzi** [1971] HCD n. 82
- Section 133 Cap 29- If there are any material changes in the circumstances of the parties after an order of custody, an application to original court has to be made-**Halima Kahema v. Jayantilal G. Karia** [1987] TLR 147.

5.7: Division of Matrimonial Assets

- Section 114 Cap 29- Power to order division of matrimonial assets when granting or subsequent to the grant of decree of separation or divorce. In exercising the power the court shall have regard to the customs of the community, etc, the extent of contribution made by each party - **Bi Hawa Mohamed v. Ally Seif** [1983] TLR 32.
- **Mohamedi Abdallah v. Halima Lisangwe** [1988] 197
- **Pulcheria Pundugu v. Samwel Huma Pundugu** [1985] TLR 7
- **Somoe Nakuwa v. Said Abdallah Nakuwa** [2001] TLR 175
- **Ramadhani Bakari v. Kichunda Mwenda and Another** [1973] TLR 3
- **Re. Innocent Mbilinyi v. The Administrator of Estate** (1969) HCD n. 283

5.8: Maintenance orders

- Section 115 Cap 29– A court may order maintenance for spouse.
- **Dinya v. Dawa** (1971) HCD n. 30
- **Bahawari v.Bahawari** [1971] HCD n.102
- Section 120 Cap 29– Maintenance to cease on remarriage.
- Section 129 Cap 29 -Duty to maintain children.
- Section 130 Cap 29– Court may order maintenance for children.
- **Basiliza B. Nyimbo v. Henry Simon Nyimbo** [1986] TLR 93
- **Manyasa v. Mwana Kombo** [1971] HCD n.10

5.9: Matrimonial Assets

Section 114 (1) Law of Marriage Act, Cap 29

The court shall have the power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such asset and the division between the parties of the proceeds of sale.

Bi. Hawa Mohamed v. Ally Sefu [1983] TLR 33

1. The assets envisaged in section 114 must firstly be matrimonial assets, and secondly they must have been acquired by them during the marriage by their joint efforts.
2. "Joint efforts" and "work towards the acquiring of the assets" have to be construed as embracing the domestic "efforts" or "work" of husband and wife. Husband and wife in performing their domestic duties are to be treated as working not only for their current need but also for their future needs.

CHAPTER SIX

SENTENCING

6.1: Sentencing

Section 366 (1) CPA Cap 20-At the hearing of the Appeal, the appellant or his advocate may address the Court in support of the particulars set out in the petition of appeal and the public prosecutor, if he appears, may then address the court. The Court may invite the appellant or his advocate to reply upon any matters of law or fact raised by the public prosecution in his address. The Court may then, it considers there is not sufficient ground for interfering dismiss the appeal or may:-

(a) In an appeal from conviction

(i) Reserve the finding and sentence, and acquit the accused or discharge him under section 38 of the Penal Code or order him to be retried by a Court of competent jurisdiction or direct the subordinate Court to hold a committal proceedings, or

(ii) Alter the finding, maintaining the sentence, or with or without altering the finding, reduce or increase the sentence, or

(iii) With or without such reduction or increase and with or without altering the finding, alter the nature of the sentence.

(b) In an appeal against sentence, increase or reduce the sentence or alter the nature of the sentence.

(c) In an appeal from any other order, alter or reverse such order, and in any such case may make any amendment or any consequential or incidental order that may appear just and proper.

6.2: Jurisdiction of courts in sentencing

Section 298 (2) of CPA

> "If the accused person is convicted, the judge shall pass sentence on him according to law."

Tofiki Juma v. The Republic, Criminal Appeal No. 418 of 2015, CAT (unreported)

> "Under sections 195 and 198 of the Penal Code, a conviction of manslaughter attracts a maximum of life imprisonment. So, on the face of it, it appears that the sentence of 10 years was within this range. But the sentencing court also had other alternative sentences set out under section 25 or section 38 of the Penal Code excepting that of death, and of course, subject to other statutory limitations, such as those set out under the Law of the Child Act No. 21 of 2009 which prohibits custodial sentences on children, and statutory minimum sentences."

6.3: Principles of sentencing

Principles to be taken into consideration in sentencing:

Abdallah Njugu v. The Republic, Criminal Appeal No. 495 of 2007, CAT (unreported)

1. Where the sentence is manifestly excessive or it is so excessive as to shock,
2. Where the sentence is manifestly inadequate,
3. Where the sentence is based on a wrong principle of sentencing,
4. Where a trial Court overlooked a material factor,
5. Where the sentence is plainly illegal,
6. Where the sentence is based on irrelevant considerations,
7. Where the time spent in remand custody by an accused person before trial not considered,

Charles Mashimba v. Republic [2005] TLR 90

Swalehe Ndugajilungo v. Republic, Criminal Appeal No. 84 of 2002, CAT (unreported)

Samweli Yese @ Kiangwa v. Republic, Criminal Appeal No. 208 of 2005, CAT (unreported)

Nyanzala Madaha v. Republic, Criminal Appeal No. 135 of 2005, CAT (unreported)

Seleman Makumba v. Republic [2006] TLR 379

Hussein Kabeke and Others v. R [1980] TLR 267

6.4: The Discretion of the court in sentencing

Gaidon Nelson Mapunda v. Republic [1982] TLR 318

> A maximum sentence should be rarely imposed for a first offence as that will leave no margin for a subsequent or serious offence.

6.5: Types of sentences

- Death (s.25 (1) Penal Code)
- Imprisonment (s.25(2) Penal Code)
- Corporal punishment (s. 25(3) Penal Code)
- Fine (s. 25 (4) Penal Code)
- Forfeiture (s. 25 (5) Penal Code)
- Compensation (s.25 (6) Penal Code)
- Security to keep peace (s.25 (7) Penal Code)
- Absolute discharge (s.38 of Penal Code)
- Conditional discharge (ss. 38 Penal Code and 326 CPA)
- Probation (s.341 CPA)
- Police supervision (s.341 CPA)
- Restitution (s.357 CPA)
- Costs (s. 32 Penal Code)
- Community service (section 3 of the Community Service Act, No. 6 of 2002)

6.6: Interfering with sentence by the Appellate Court

Selemani Makumba v. Republic [2006] TLR 379

> The High Court has power to interfere with the sentence of the trial Court where the sentence is manifestly excessive or inadequate, or where the Trial Court acted on a wrong principle or took into account irrelevant matters.

Silvanus Leopord Nguruwe v. Republic [1981TLR 66

Sultan Seif Nassor v. Republic [2003] TLR 231

Mwita Wambura v. Republic [1992] TLR 114

> Where more than one count of murder have been charged, and convictions entered on two or more counts, the practice has been to impose the death sentence in respect of the first of such convictions……. There is no rule which makes it obligatory on the court to hand out the sentence in respect of the first conviction…….. The choice of which count to pass the sentence on is a matter which is better left to the discretion of the trial judge.

Republic v. Agnes Doris Liundi [1980] TLR 46

Hussein T. Kabeke and Three Others v. Republic [1980] TLR 267

> Concurrent sentences are non-cumulative in effect and are therefore supposed to be executed at the same time. If, the sentencing Court

passes concurrent sentences on an offender, it is wrong for the court to add up those sentences as if they are consecutive.

6.7: Concurrent sentences

Section 36 of the Penal Code, Cap 16 RE 2002

John Peter Shayo and Two Others v. Republic [1998] TLR 198

Section 36 of the Penal Code empowers a Court to make a prison term meted out to a person to run concurrently with any other prison term the person is undergoing, and the practice has been to make sentences imposed at two distinct trial concurrent provided that the offences are related.

Chacha Makoli Chacha v. Republic [1998] TLR 413

The trial Court Magistrate should not have imposed consecutive sentences of 30 years and 12 strokes of corporal punishment coming to a total of 60 years and 24 strokes; it is a long established practice that in such and similar circumstances the sentence should be ordered to run concurrently and in the instant case there is no justification for departing from that practice.

6.8: Concurrent and consecutive sentences

- Except in very exceptional circumstances, where an offender commits more than one offence at the same time and in the same transaction the practice is to impose concurrent sentences – **Chacha Makoli**

Chacha v. Republic [1998] TLR 413, **Laurent Analeti and Another v. Republic** [1973] LRT 34.

- On the other hand, consecutive sentences are an exception to the above rule. Consecutive sentences may be ordered because of the gravity of the offence – **Baguani Mhina Jumbe v. R,** Criminal Appeal No. 120 of 1993, CAT (unreported).

6.9: Substituted sentence

- Where the sentence meted by a trial court is excessive an appellate court may vary and substitute it with a lesser one – **Kabula Mhoja v. Republic** [1986] TLR 248, **Boniface Mbije and Another v. R** [1991] TLR 156.
- **Herman Henjewele v. Republic**, Criminal Appeal No. 164 of 2005 CAT(unreported)
- **Ifunda Kisile v. Republic,** Criminal Appeal No. 47 of 2003, CAT(unreported)

6.10: Omnibus sentences

Jumanne Ramadhani v. Republic [1992] TLR 40

It is unlawful to award omnibus sentence. Each Count must receive a requisite sentence. The magistrate may then decide to order the sentences either to run concurrently or consecutively depending on the nature of the charges and the evidence unfurled at the trial.

Section 27 (3) Penal Code

A person liable to imprisonment may be sentenced to pay a fine in addition to or instead of imprisonment.

Tabu Fikwa v. Republic [1998] TLR 48

1. It is a common law principle that where a statute creating an offence lays down in no uncertain terms the sort of punishment to be imposed on offenders against that statute, it is incumbent on the court called upon to enforce the law to act within the strict language of the law.
2. The application of the common law principle above must be subject to section 27 (3) of the Penal Code which says that a person liable to imprisonment may be sentenced to pay a fine in addition to or instead of imprisonment.

Note that section 27 (3) referred in the above authority is currently section 27 (2) of the Penal Code, Cap 16 RE 2002 which states:

> 27 (2) A person liable to imprisonment may be sentenced to pay a fine in addition to, or instead of, imprisonment, or where the court so determines under the Community Service Act, to community service under a community service order.

CHAPTER SEVEN

JUDGMENT WRITING

7.1: Meaning of judgment

- Section 3 CPC – a statement given by a judge or magistrate of the grounds for a decree or order.
- Judgment is the culmination of the trial which finally determines the rights and obligation of the parties or the guilty or innocence of an accused person.

7.2: Style

- Judgment writing is a matter of style. Every judge or magistrate has got his or her own style of composing a judgment. What matters is that the essential ingredients of a judgment should be there – **Amir Mohamed v. Republic** [1994] TLR 138.

7.3: Purpose of a judgment

- To clarify your thoughts
- To explain your decision to the parties
- To communicate the reason for the decision to the parties and public.

7.4: Elements of a good judgment

- A good judgment is one which complies with the requirements under section 312 of CPA (read together with section 230 thereto) **or** Order

XX Rule 4 CPC **or** Rule 16 of GN 312 of 1964, as the case may be. It must contain a concise statement of the case, the points for determination, and reasons for the decision etc.

- A good judgment is clear, systematic and straightforward. Every judgment should state the facts of the case, establishing each fact by reference to the particular evidence by which it is supported; and it should give sufficiently and plainly the reasons which justify the finding.

7.5: Essentials of a judgment

- Beginning/Heading (title of court, title and case No, names of the parties and designation of a judge).
- Opening (brief facts put forward by the parties)
- Issues and points for determination
- Decision on each issue and points with reasons therefor with reference to the evidence (oral and documentary).
- Decretal/Operative part (Final order granting or refusing to grant relief in a civil case, and convicting the accused or acquitting him in criminal case and warding punishment in case of conviction).
- Signature and designation of a judge and the date of the decision.

7.6: Delivery of judgment

- Section 311 CPA

  To be pronounced in open court either immediately after termination of the trial or on a subsequent date, etc.

- Order XX CPC

  Rule 1 – To be pronounced in open court at once or on some future day.
- Section 28 CPC – Judgment to be delivered within 90 days from the date of hearing to the date of Judgment.
- Section 311 CPA – Judgment to be delivered within ninety days after termination of trial.
- Order XX Rule 2 Civil Procedure Code Act

  "A judge or magistrate may pronounce a judgment written but not pronounced by his predecessor"

(1) VIP Engineering and Marketing Limited (2) Tanzania Revenue Authority v. (1) SGS Societe Generale de Serveillence (2) SGS Tanzania Superintendence Company Limited, Civil Revision No. 5 of 2011, CAT (unreported)

> "Though the word used in the rule is "may" it is mandatory upon the succeeding judge to pronounce the judgment prepared but not delivered by his predecessor, and it is not open to him to re-open the whole matter. That has always been the practice here in our jurisdiction……..a duty is cast on the judge to pronounced judgment in the interests of litigant public and in the main to save judicial time, the word 'may' used in Order XX rule 2 of the Code has a compulsory force and the succeeding judge is under an obligation to pronounce the judgment that was written by his predecessor and it is not competent for him to re-hear the suit."

In **SGS Societe Generale de Serveillance SA and Another v. VIP Engineering and Marketing Limited and Another**, Civil Application No.25 of 2015, CAT (unreported) the Court of Appeal emphasised that:-

> " The word "may" in rule 2 of Order XX as read along with sections 2(2)(a) and (b) and 53 (1) of Cap 1 must be interpreted in such a way as imposing a mandatory obligation on the successor judge to pronounce the judgment of his predecessor. To interpret otherwise is to invest a successor judge with jurisdiction which he does not have."

Order XLIII rule (m) –GN 136 of 01/04/2011

1. Subject to any general or special direction of the Chief Justice, the following powers may be exercised by the Registrar or any Deputy or District Registrar of the High Court in any proceedings before the High Court

   (m) to exercise the powers and duties of a judge or of a magistrate and may pronounce judgment and sign decrees and make orders and transact the business of the High Court or the Court of a magistrate.

NOTE- In composing judgment note the following important matters:-

- Eliminate unnecessary words
- Use plain, easy and simple language
- Be precise and to the point
- Edit carefully
- Use the active voice rather than the passive

- Avoid obvious errors
- Use citation properly
- Try to be interesting
- Be particular rather than vague
- Organise your judgment properly
- Avoid quoting extensively from pleadings of the parties and their evidence
- Support your finding on each issue/point with clearly explained reasons
- Ensure linkage and cohesion in the judgment
- Don't cut and paste; quote only when the language of the quoted material is at issue
- Write an ending that recapitulates your analysis.

-Therefore take time to adequately prepare and compose the judgment.

CHAPTER EIGHT

JUDICIAL ETHICS AND CONDUCT

8.1: Meaning and general overview

- Ethics means rules of conduct or behaviour pertaining to a particular class of human action.
- Judicial ethics refer to a body of moral principles that control, influence or guide the conduct of behaviour of judicial officers.
- Judicial conduct and ethics addresses the complete spectrum of judicial conduct, including uses and abuses of judicial power, judicial demeanor, disqualification, ex-parte communications, case management, financial activities and disclosure, civil and criminal liability, methods of discipline and removal, civic and charitable activities, personal conduct and political activities.
- Judicial ethics therefore is part of a large category of legal ethics, a term that apply to lawyers in all branches of the legal profession. But judicial officers form a particular group within the community of lawyers.
- Ethics issues for judicial officers may arise in the courtroom, outside the courtroom and in judgment writing.
- Thus judicial conduct and ethics apply both in and outside the courtroom.

- Judicial ethics thus can be defined as an examination of the proper behaviour of Judges. It concerns an examination of the high standards of judicial conduct necessary for rule of law to flourish.
- It must be noted that failure by judicial officers to live by these standards will inevitably weaken the confidence that the society generally has in the judiciary and ultimately in the justice system as a whole.
- Judges do not live in a vacuum .They are the product of society and form an important part of it. But they must stand apart from those who are judged in terms of conduct and ethics as they cannot enjoy the same freedom enjoyed by other citizens like not being a member of political parties. Magistrates as judicial officers are expected to behave according to certain standards of conduct both in and outside of the court.
- The Constitution of the United Republic of Tanzania, Cap 2 under Article 151 defines the ethics of the office of the judge to mean ethical rules guiding the conduct of persons holding the office of Judge or Magistrate.
- **NOTE THAT**: Section 3 of The Judiciary Administration Act, (JAA) 2011, No. 4 of 2011 defines a judicial officer to mean a person in the service, appointed to perform the functions and exercise the powers of adjudication or determination of cases in the courts of law and includes a Judge's Assistant.

- The cardinal principles of judicial ethics that apply to any judicial officer whether in the subordinate court or higher court can be divided broadly into three categories-

  One, concerning the acts attributable to his official functions as a judicial officer;

  Two, concerning his conduct while in public glare;

  Third, the expectation of him during his private life. These may necessarily overlap each other.

8.2: The Purpose of Judicial Ethics and Conduct

- To help Judges to adhere to highest standards of personal and official judicial conduct.
- To preserve the judicial system fairness, integrity and impartiality by eliminating bias and prejudice.
- To enhance public trust and confidence in the Judiciary.
- To provide guidance to Judges for regulating judicial conduct.
- To improve conduct and help Judges to perform their duties more efficiently.
- To safeguard and promote Independence of the Judiciary.
- To maintain confidence in the expectations of citizens.

8.3: Sources of Judicial Ethics and Conduct

- Judicial oath is the starting point of judicial ethics. The oath makes a judicial officer to step into a position of judicial power.
- The oath of a judge in Tanzania states:

"I.....Do swear that I will well and truly serve the United Republic of Tanzania in the office of.... and I will do justice in accordance with the Constitution of the United Republic of Tanzania as by law established and in accordance with the laws and customs of the United Republic without fear or favour, affection or ill will. So help me God."

- The Constitution of the United Republic of Tanzania, Cap 2.
- International Standards of judicial conduct; The Bangalore Principles on Judicial Conduct.
- The Judiciary Administration Act No. 4 of 2011.
- The Maxims for Magistrates.
- The Code of Conduct for Judiciary Officers of Tanzania adopted in 1984 by Judges and Magistrates in a Conference held at Arusha in March 15th – 16th.
- The Code of Ethics and Conduct for Public Service, 2005.
- The Leadership Code of Ethics, 1995 (Cap 398) (Section 4 defines a public leader to include a judge and a magistrate)

8.4: Fundamental matters contained in the Codes of conduct and ethics

8.4.1: The Rules of the Code of Conduct for Judicial Officers of Tanzania, 1984

- The Code of Conduct has four (4) rules:-

Rule 1- A Judicial Officer should avoid impropriety and appearance of impropriety in all his duties.

Rule 2- A Judicial Officer should be competent and have the necessary knowledge and skills in adjudicative and administrative duties. The rule is divided into four parts:

A-Adjudicative duties

B-Administrative

C-Disqualification

D-Waiver of disqualification

Rule 3- A judicial officer may engage in activities to improve the law, the legal system and the administration of justice.

Rule 4 - A judicial officer should regulate his extra judicial activities to minimize the risk of conflict with his judicial duties.

8.4.2: Bangalore Principles of Judicial Conduct, 2003

- The Bangalore Principles of Judicial Conduct were adopted in April, 2003. These were annexed to the report presented to 59th Session of the United Nations Special Rapparteur on the Independence of Judges and Lawyers, Doto Param Cumaraswamy.
- The Bangalore Principles of Judicial Conduct has become the International model for professional ethics of judicial officers and many countries in the Commonwealth and the world have made the same part of the laws.
- The Principles contain six fundamental values:

  Value 1- Independence

  Judicial independence is a pre-requisite to the rule of law and a fundamental guarantee of a fair trial. A judge shall therefore uphold

and exemplify judicial independence in both its individual and institutional aspects.

Value 2-Impartiality

Impartiality is essential to the proper discharge of the judicial office. It applies not only to the decision itself but also to the process by which the decision is made.

Value 3-Integrity

Integrity is essential to the proper discharge of the judicial office.

Value 4- Propriety

Propriety and the appearance of propriety are essential to the performance of all the activities of a judge.

Value 5- Equality

Ensuring equality of treatment to all before the courts is essential to due performance of the judicial office.

Value 6- Competence and diligence

Competence and diligence are prerequisite to the due performance of judicial office.

8.4.3: The Code of Ethics and Conduct for Public Service

- Code of Ethics and conduct for Public Service (under the Authority of section 34 of the Public service Act, 2002 and Regulation 65 (1) of the Public service Regulations 2003). In order for the public service to be efficient and respected, public servants must behave, conduct and observe the following matters constituting the Code of Ethics and Conduct:-

1. Pursuit of Excellence in service
2. Loyalty
3. Diligence
4. Impartiality
5. Integrity
6. Accountability
7. Respect for law
8. Proper use of official information

8.4.4: The Leadership Code of Ethics Act, Cap 398 RE 2015

4 (1) In this Act, unless the context requires otherwise–

"Code" means the Code of Ethics for Public Leaders established by this Act;

"Commissioner" means the Ethics Commissioner appointed under section 19;

"Government" means the Union Government or the Revolutionary Government of Zanzibar;

"Minister" means the Minister responsible for public leadership code of ethics;

"public leader" means any person holding any of the following public offices, namely–

(i) President of the United Republic;

(ii) Vice-President of the United Republic;

(iii) President of Zanzibar;

(iv) Prime Minister;

(v) Chief Minister of Zanzibar;

(vi) Speaker and Deputy Speaker;

(vii) Chief Justice of the United Republic;

(viii) Minister, Deputy Minister and Regional Commissioner;

(ix) Attorney-General;

(x) Judge and Magistrate;

(xi) Member of Parliament;

(xii) …

6. The Code of Ethics for public leaders shall seek as far as possible to institute and invoke the following principles in respect of the conduct of public leaders, namely–

(a) in relation to ethical standards, that public leaders shall while in office act with honesty, compassion, sobriety, continence, and temperance, and uphold the highest possible ethical standards so that public confidence and trust in the integrity, objectivity and impartiality of Government are conserved and enhanced;

(b) in relation to public scrutiny, that public leaders shall have an obligation–

(i) to perform their official duties and arrange their private affairs in a manner that would bear the closest public scrutiny, an obligation that is not fully discharged by simply acting lawfully;

(ii) in relation to all public leaders whether in elective or appointive offices, there is to be established a procedure for declaration of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, without prejudice to the right of wives and husbands of public leaders to own property independently of their spouses;

(c) in relation to decision making, that public leaders shall, in fulfilling their official duties and responsibilities make decisions in accordance with law, in the public interest and with regard to the merits of each case;

(d) in relation to private interests, that public leaders shall not have private interests, other than those permitted by the Code that would be affected particularly or significantly by government actions in which they participate;

(e) in relation to public interest, that on appointment or election to office, and thereafter, public leaders shall so arrange their affairs as will prevent real, potential or apparent conflicts of interest from arising, but if such a conflict does arise between the private interests of a public leader and his official duties and responsibilities, the conflict shall be resolved in favour of the public interest;

(f) in relation to gifts and benefits, that public leaders shall not solicit or accept transfers of economic benefit other than incidental gifts, customary hospitality or other benefits of nominal value, unless the transfer is pursuant to an enforceable contract or property right of the public leader;

(g) in relation to preferential treatment, that public leaders shall not step out of their official roles to assist private entities or persons in their dealing with the government where this would result in preferential treatment to any person;

(h) in relation to inside information, that public leaders shall not knowingly take advantage of, or benefit from, information which is obtained in the course of their official duties and responsibilities and that is not generally available to the public;

(i) in relation to government property that public leaders shall not directly or indirectly use, or allow the use of, government property of any kind, including property leased to the government, for purposes of according economic benefit to the leader;

(j) in relation to post-employment, that public leaders shall not act, after they leave public office, in such a manner as to bring the service to ridicule or take improper advantage of their previous office, so that possibilities may be minimised of–

(i) allowing prospects of outside employment to create a real, potential or apparent conflict of interest for public leaders while in public office;

(ii) obtaining preferential treatment or privileged access to government after leaving public office;

(iii) taking personal advantage of information obtained in the course of official duties and responsibilities until it becomes generally available to the public; and

(iv) using public office to unfair advantage in obtaining opportunities for outside employment.

8. The provisions of this Part shall constitute part of the code of ethics for public leaders according to the Constitution, and breach of the code shall result in any of the following actions, namely–

(a) warning and caution;

(b) demotion;

(c) suspension;

(d) dismissal;

(e) advising the leader to resign from the office to which the breach relates;

(f) imposition of other penalties provided for under the rules of discipline related to the office of the leader; and

(g) initiating action for the leader to be dealt with under the appropriate law.

9 (1) Every public leader shall, except where the Constitution or any other written law provides otherwise–

(a) within three months after the commencement of this Act; or

(b) within thirty days after taking office;

(c) at the end of each year; and

(d) at the end of his term of office,

submit to the Commissioner a written declaration, in a prescribed form, of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, subject to subsection (2) and subsection (5).

(2) Where the declaration of assets is made by the Commissioner under this section, the declaration shall be submitted to the President.

(3) A public leader shall not be required to declare as his property, and property shall not be deemed to be declarable by a public leader if–

(a) it is not matrimonial property;

(b) it is not jointly owned with the public leader's spouse or spouses;

(c) there is no allegation that a public leader appears to have suddenly and inexplicable come into possession of extraordinary riches in relation to his observable sources of income.

(4) Any property or asset acquired by a public leader after the initial declaration required by paragraph (a) or (b) of subsection (1) and which is not attributable to income, gift, or loan approved in the Code shall be deemed to have been acquired in breach of the Code unless the contrary is proved.

(5) Any public leader who has previously made a declaration of assets under this section shall, during the subsequent declaration be required to declare as to the increase or decrease of assets as the case may be.

(6) The public leader shall, in making the declaration of assets under this section–

(a) state the monetary value of the declared assets and the source or the manner in which he has acquired the assets;

(b) state or disclose his debts if any and any other liabilities

12 (1) A public leader shall be considered to have breached the Code if he knowingly acquires any significant pecuniary advantage, or assists in the acquisition of any pecuniary advantage by another person, by–

(a) improperly using or benefiting from information which is obtained in the course of his official duties and which is not generally available to the public;

(b) disclosing any official information to unauthorised persons;

(c) exerting any improper influence in the appointment, promotion, disciplining or removal of a public officer;

(d) directly or indirectly converting Government property for personal or any other unauthorised use for the purposes of reaping private economic benefit;

(e) soliciting or accepting transfers of economic benefit, other than benefits of nominal value, including customary hospitality and traditional or token gifts;

(f) gifts from close family members or from public leaders elsewhere; or

(g) transfers pursuant to an enforceable property right of the public leader or pursuant to a contract for which full value is given.

(2) The public leader shall, where he receives a gift of the value exceeding fifty thousand shillings–

(a) declare the received gift and its value; and

(b) submit the declaration of the gift to the accounting officer of the office concerned, who shall in writing direct as to the use or disposal of the gift.

18 (1) The Ethics Secretariat, which is established by section 132 of the Constitution of the United Republic, shall be an extra-ministerial department of Government under the Office of the President.

(2) The Secretariat shall, subject to the Constitution and to this Act, have the duty to receive–

(a) declarations which are required to be made by public leaders under the Constitution or any other law;

(b) allegations and notifications of breach of the Code from members of the public; and

(c) inquiries into any alleged or suspected breach of the Code by all public leaders who are subject to this Act.

(3) The Secretariat shall, in performing its duties under this section, have the power to receive and entertain all allegations in respect of any public leader, whether oral or written from the members of public without inquiring as to the names and addresses of the person who has made the allegation.

(4) The Secretariat shall, in addition to the duties conferred on it under subsection (2) and (3) have power to initiate and to conduct any investigation in respect of breach of ethics prescribed under this Act.

(5) Notwithstanding subsection (4), the Commissioner shall, where the Secretariat intends to conduct investigation in respect of Bank Accounts, by order in writing Supported by warrant issued by a Magistrate upon showing cause to the Magistrate as to why the Order should be issued, authorise any officer of the Secretariat to investigate any bank account of a public leader.

(6) Any Order made by the Commissioner under subsection (1) shall be sufficient authority for the disclosure or production by any person of all or any information accounts, documents or articles as may be required by the officer of the Secretariat so authorized.

(7) The President shall provide for the staffing of the Secretariat, and for the taking by them of the oath of secrecy in respect of matters handled by them.

8.5: The Judicial Service Commission (JSC)

- The Judicial Service Commission is established under Article 112 of the Constitution of the United Republic of Tanzania and its functions and powers are provided under Article 113.
- According to Article 112(2) of the said Constitution, members of the Commission are -

  (a) the Chief Justice who is the Chairman;

  (b) the Attorney General;

  (c) a Justice of Appeal of Tanzania who is appointed in that behalf by the President after consultation with the Chief Justice;

  (d) the Principal Judge; and

  (e) two members who are appointed by the President.
- Article 113(1) of the Constitution provides for the functions of the Commission which are –

  (a) to advise the President regarding appointments of the Judges of the High Court;

  (b) to advise the President on matters relating to discipline of Judges;

(c) to advice the President in relation to salaries and remuneration for Judges;

(d) to advise the President in respect of appointment and discipline for Registrar of the Court of Appeal and the Registrar of the High Court;

(e) to appoint magistrates and control their discipline; and

(f) to establish various committees for purposes of implementation of its functions.

8.6: Dismissal and removal

- Section 35 (1) JAA-The powers to remove from office or terminate the appointments of judicial officers other than the Chief Justice, Justices of Appeal, the Jaji Kiongozi, Judges of the High Court, the Chief Registrar, the Registrar of the Court of Appeal and the Registrar of the High Court, shall be exercised in accordance with this section.

  (2) A judicial officer shall not be dismissed unless the Commission is satisfied that-

  (a) a disciplinary charge has been made and proved on a balance of probability against such officer on any or all of the following grounds-

  (i) misconduct incompatible with the holding of judicial office;

  (ii) gross negligence in the discharge of judicial duties;

  (iii) breach of the Code of Judicial Ethics; and

  (iv) bad reputation incompatible with the holding of judicial office;

  (b) such officer has had an opportunity to answer a charge under paragraph (a); and

(c) an inquiry has been held into the charge.

8.6.1: Disciplinary Charges

The charge against a magistrate or judicial officer may be preferred in the following grounds:

(a) misconduct incompatible with the holding of judicial office,

(b) gross negligence in the discharge of judicial duties,

(c) breach of the code of judicial ethics, and

(d) bad reputation incompatible with the holding of judicial office-Section 35 (2) JAA.

8.6.2: Some instances of misconduct

A judicial officer commits an offence against discipline if he or she does all or any of the following:-

(a) conduct himself or herself in any manner prejudicial to the good image, honour, dignity and reputation of the service;

(b) practices favouritism, nepotism or corruption whether for personal advantage or gain or that of any other person;

(c) practices discrimination of sex, race, ethnic origin, tribe, birth, creed or religion, social or economic standing, political opinion or disability;

(d) is a habitual late comer or absents or absconds from duty without reasonable excuse;

(e) is insubordinate, rude, abusive, and disrespectful or uses vulgar language;

(f) is lazy or produces poor standard work;

(g) is untrustworthy or lacks integrity in public or private transaction;

(h) engages in private interests at the expenses of his or her official duties;
(i) divulges official information to unauthorised persons;
(j) acts in contravention of the code of conduct for judicial officers, judicial oath or any other oaths taken by the judicial officer;
(k) is convicted of a criminal offence by the court of law;
(l) disregards the chain of command in his or her place of employment without reasonable excuse;
(m) abuses judicial authority; or
(n) in any way contravenes any provisions of the law standing orders or any other instructions relating to the discipline of judicial officers.

8.6.3: Disciplinary procedures for High Court judges and justices of Appeal

Article 110A of the Constitution of the United Republic of Tanzania 1977 as amended from time to time provides:

"110A. Utaratibu wa kushughulikia nidhamu ya Majaji wa Mahakama Kuu

(1) Utaratibu wa kushughulikia nidhamu ya Majaji, kwa sababu mbali na zile zilizoainishwa katika ibara ndogo ya (2), utakuwa kama utakavyoelekezwa na Sheria itakayotungwa na Bunge.
(2) Jaji wa Mahakama Kuu aweza tu kuondolewa katika madaraka ya kazi kwa sababu ya kushindwa kutekeleza kazi yake (ama kutokana na maradhi au sababu nyingine yoyote) au kwa sababu ya tabia mbaya inayoathiri maadili ya kazi ya Jaji au sheria ya maadili ya viongozi wa umma; na

hataweza kuondolewa kazini ila kwa mujibu wa masharti ya ibara ndogo ya (4) ya Ibara hii.

(3) Iwapo Rais anaona kuwa suala la kumwondoa Jaji kazini lahitaji kuchunguzwa, basi katika hali hiyo utaratibu utakuwa kama ifuatavyo:-

(a) Rais anaweza baada ya kushauriana na Jaji Mkuu, kumsimamisha kazi Jaji huyo;

(b) Rais atateua tume ambayo itakuwa na Mwenyekiti na Wajumbe wengine wasiopungua wawili. Na huyo Mwenyekiti na angalau nusu ya Wajumbe wengine wa Tume hiyo itabidi wawe watu ambao ni Majaji wa Mahakama Kuu au Mahakama ya Rufani katika nchi yoyote iliyomo kwenye Jumuiya ya Madola;

(c) Tume hiyo itachunguza shauri lote halafu itatoa taarifa kwa Rais kuhusu maelezo ya shauri lolote na itamshauri Rais kama huyo Jaji anayehusika aondolewe kazini kwa mujibu wa masharti ya Ibara hii kwa sababu ya kushindwa kufanya kazi kutokana na maradhi au sababu nyingine yoyote au kwa sababu ya tabia mbaya.

(4) Ikiwa Tume iliyoteuliwa kwa mujibu wa masharti ya ibara ndogo ya (3) itamshauri Rais kwamba Jaji ambaye habari zake zimechunguzwa na hiyo Tume aondolewe kazini kwa sababu ya kushindwa kufanya kazi kutokana na maradhi au sababu nyingine yoyoteau kwa sababu ya tabia mbaya, basi Rais atamwondoa kazini Jaji huyo anayehusika na utumishi wa Jaji huyo utakuwa umekoma.

(5) Ikiwa suala la kumwondoa Jaji kazini limepelekwa kwenye Tume kwa ajili ya uchunguzi kwa mujibu wa masharti ya ibara ndogo ya (3) ya Ibara hii, Rais anaweza kumsimamisha kazi Jaji huyo anayehusika, na Rais aweza

wakati wowote kufuta uamuzi huo wa kumsimamisha kazi Jaji huyo, na kwa hali yoyote uamuzi huo utabatilika ikiwa Tume itamshauri Rais kwamba Jaji huyo asiondolewe kazini.

(6) Masharti ya Ibara hii yatatumika bila ya kuathiri masharti ya ibara ndogo ya (11) ya Ibara ya 109 ya Katiba hii."

Article 120A of the Constitution of the United Republic of Tanzania 1977 (supra);

"**120A. Utaratibu wa kushughulikia nidhamu ya Majaji wa Rufani**

(1) Utaratibu wa kushughulikia nidhamu ya Majaji wa Rufani kwa makosa mbali na yale yaliyoainishwa katika ibara ndogo ya (2) utakuwa kama utakavyoelekezwa na sheria itakayotungwa na Bunge.

(2) Jaji wa Rufani aweza kuondolewa katika madaraka ya kazi ya Jaji wa Rufani kwa sababu ya kushindwa kutekeleza kazi zake ama kutokana na maradhi au sababu nyingine yoyote au kwa sababu ya tabia mbaya, na hataweza kuondolewa kazini ila kwa mujibu wa masharti ya utaratibu unaofanana na ule uliowekwa kwa ajili ya kumwondoa kazini Jaji wa Mahakama Kuu kama ilivyoelezwa katika ibara ndogo ya (2) na ya (3) ya Ibara ya 110A ya Katiba hii, na kwa ajili hiyo masharti ya ibara ndogo ya (4) ya Ibara hiyo ya 110A yatatumika kwa Jaji wa Rufani kwa namna ile ile yanavyotumika kwa Jaji wa Mahakama Kuu.

(3) Masharti ya Ibara hii yatatumika bila ya kuathiri masharti ya ibara ndogo ya (5) ya Ibara ya 118 ya Katiba hii."

8.7: Some Important matters pertaining to office of the judge

- "Judges ought to be more learned than witty, more reverent than plausible, and more advised than confident. Above all things, integrity is their portion and proper virtue."-Bacon
- A judge must utilize his judicial time to the optimum. He should not sit idle.
- A judge must earn good respect and reputation from the public and the bar by facilitating expeditious disposal of cases in court.
- Restraint and discipline are important attributes of an ideal judge.
- A judge must always be polite and considerate and imbued with a sense of humility.
- A judge should be non-partisan and therefore not identify himself with the cause of particular section of the society.
- A judge must be overboard and demonstrate absolute integrity not only in his court but also in his private life outside the court.
- A judge must refrain from socializing unnecessarily not only with persons having official work in his court but also generally with the society at large, since there is no guarantees as to who could have a case coming in his court in the future. Nevertheless a judge need not be unsocial as his personal life would involve his near and dear ones. Yet, he is expected to be asocial, since his movement in any particular section of the society might give rise to reasonable apprehension in the minds of the litigants about his independence.
- A judge must be careful on what he speaks in public.

- A judge is a public property.There cannot therefore, be anything about his life which should remain hidden from public glare. His life must be an open book. Thus the assets and liabilities of the judge are known to one and all.
- A judge's financial or property transmissions should have no nexus with his official dealings. He must declare the same scrupulously and at no cost.
- A judge must train himself not to fall prey to offers of valuable gifts in cash, kind or service from members of the general public.
- A judge cannot afford to be accused of acts of moral turpitude. He should not indulge, in or outside his court, in such behavior as can create, doubts about the credibility of his character.
- A judge's behavior must be a model one to be able to command respect.
- The duty of the judge to remain within the bounds of morality is not limited only to himself. He has to see to it that members of his family, at least those who live with him also subscribe to ethics.
- A judge's scandalous behavior, even in his private affairs is bound to affect his image and prestige in his judicial office.
- A judge's adherence to judicial ethics restores and maintains public confidence in the judiciary.
- The qualities of a good judge are the qualities of a good man.
- Judges' actions must inspire confidence in the impartiality and integrity of their own decisions and the judiciary as a whole.
- Judges are held to the highest standards of professional behavior.

- A judge is obviously expected to observe certain standards of conduct in his or her ordinary life.
- Like all self-respected citizens, a judge should refrain from being drunk, or disorderly in public, using abusive language or engaging in conduct which is abusive, insulting or demeaning of others.
- A judge must command respect from the courts, members of the legal fraternity and the public at large for sterling qualities of his/her character.
- Judges are the privileged class and vested with duties of great responsibility, holding offices of public trust.
- The office of the judge requires more than the general principles of the code of ethics governing public servants.